



# ETHICS

## Classroom Study Material Part-2



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## ETHICS PART – 2

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# ETHICS IN ADMINISTRATION- CONCERNS, DILEMMAS AND SOLUTIONS

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## Note-

This document shall cover the following sections from the syllabus-

- Ethics in Public Administration: Status and Problems; Ethical Concerns and Dilemmas in Government and Private Institutions
- Codes of Ethics, Codes of Conduct, Strengthening of Ethical and Moral Values in Governance.

## 1. Governance, Good Governance and Ethical Governance

Governance is the exercise of economic, political and administrative authority to manage a country's affairs at all levels. Good governance is perhaps the single most important factor in eradicating poverty and promoting development.

Without **good governance**, no number of developmental schemes can bring improvements in the quality of life of the citizens. On the contrary, if the power of the state is abused, or exercised in weak or improper ways, those with the least power in the society – the poor- are most likely to suffer.

Though, good governance is a dynamic concept, but it is largely said to have the elements of efficiency, economy, effectiveness, equity, transparency, accountability etc. which are essential for promoting prosperity of all.



**Ethical governance**, on the other hand, is a step ahead of good governance in that it seeks to realize certain universal desirable values, and not merely virtues of administrative efficiency. For example, the Government of India Act 1858 was also called as "Act for Good Government of India", but it was intended for the benefit of the British at the cost of Indians. Therefore, what is 'good' keeps on changing with time and space. Hence, it is ethical governance that is needed.

### Key elements of ethical governance

Ethical governance means governance based on certain value premise, which is also "good". For example, probity, integrity, compassion, empathy, responsibility, social justice etc. without which ethical issues can't be upheld.

Elimination of corruption is not only a moral imperative but an economic necessity for a nation aspiring to catch up with the rest of the world. The most important elements of ethical

governance to eliminate corruption and reduce bureaucratic delays should be rule of law, probity, and responsibility.

- Probity would ensure that the sole purpose of administration is public interest, thereby devoid of any wrongdoing.
- Responsibility, not merely accountability, ensures the inculcation of internal accountability for every act of omission or commission in the form of judgement based on one's conscience. If this is attained then there would be no question of corruption.
- Rule of law checks arbitrariness in governance, thereby reducing chances of misusing discretion.

## 2. Status of Ethical Standards in Indian administration

The Indian civil services suffer from strange paradoxes-

- **Poor self-actualization:** Rigid adherence to procedure combines with a ready susceptibility to personal pressure and intervention. While a bureaucrat may give the appearance of being preoccupied with correctness and propriety, in practice he may be committing endless irregularities and improprieties.
- **One size fits all approach:** An apparent pursuit of the uniform application of absolute justice may contain glaring anomalies. It is a curious reflection on their attitudes and thinking that Indian bureaucrats are willing to tolerate such contradictions between theory and practice.

### 2.1. Ethical issues in Indian administration

- **Excess of personal authority or rank position:** Intentionally, officials make actions that are out of their position responsibilities and rights that, finally makes damage to the interests of state or certain citizens.
- **Negligence:** A public official either does not perform his professional responsibilities or performs them in a delinquent manner, causing damage to the state or community. This is mostly because of the lack of interest that one has in one's duties and responsibilities
- **Bribery:** Bribery and corruption have come to become an acceptable part of the society, as a necessary evil greasing the wheels of the economy
- **Complacency replaces the hard work-** Although there is a core of exceptionally hardworking, dedicated and conscientious officers, they stand today overwhelmingly outnumbered by the complacent, who are obsessed with status, rank and emoluments and addicted to habits of personal luxury and indolence
- **Psychology of evasion-** When confronted with a difficult decision, the Indian bureaucrat seldom makes any attempt to tackle the problem with initiative and imagination. Instead, he will refer the matter to another department or make a series of unnecessary references to subordinates to gain time.
- **Patronization:** The post-retirement assignment of senior officers to Regulatory bodies and other important posts is largely done on patronage with no set guidelines.
- **Administrative Secrecy-** Secrecy is the hallmark of bureaucracy. In the name of public interest private interests are served while maintaining secrecy. Transparency therefore is one of the most vital virtue of Ethical Governance
- **Nepotism-** The practice of nepotism (the appointment of relations and/or friends to public positions, thereby ignoring the merit principle), may lead to the downgrading of the quality of the public service.
- **Lack of compassion:** Indifference towards the feelings or the convenience of individuals and by an obsession with the binding and **inflexible authority of departmental decisions, precedents, arrangements or forms**, regardless of how badly or with what **injustice** they work in individual cases.

Student Notes:

- **Abuse of personal authority or rank position for private benefit:** Intentionally, public official may use the authority and facilities exercisable by virtue of holding a position (and provided to make that exercise of power more effective), in the guise of public service for personal interest. It appears when:
  - **Leaking official information-** It is usually of sensitive nature and disclosure of such information can lead to chaos, corrupt practices or, for some individuals, improper monetary gains. Leaking official information at a date prior to the public announcement thereof is a violation of procedural prescriptions
  - Performing administrative actions while **ignoring the facts** and without a just motive;
  - **Use of public technical means**, cars, communications, premises in a public official's private interests;
  - Inactivity causing damages for community

## 2.2. Ethical dilemmas in Indian administration

Public servants find themselves in dilemmas that include conflict between:

- Between different values of public administration – such as efficiency v/s accountability
- Aspects of the code of conduct- accepting rewards or gifts for performance of duty
- Personal values v/s those of senior or a governmental directive
- Professional ethics v/s following an unjustified order by a supervisor/authority
- Blurred or competing accountabilities- such as towards department or society



The set of fundamental principles or criteria that integrate the process of dealing with ethical dilemmas in public administration are:

- Democratic accountability of administration,
- The rule of law and the principle of legality,
- Professional integrity; and
- Responsiveness to civil society.

This can be described as the **ALIR (Accountability, Legality, Integrity, Responsiveness)** model of imperatives of ethical reasoning in public administration.

### 3. Ethical Concerns and Dilemmas in Private/Business Institutions

Student Notes:

Business ethics is the predominant source of guidance in Private/business institutions. The philosophy may vary from organization to organization; however, fundamentals remain the same. Individuals often find themselves in a situation of conflicting desires. Sometimes they have to choose amongst two rights or wrongs. For example, whether to leak information which is harmful to public interest but serves the interest of the private corporation? Likewise, other general Ethical issues in Private sector are discussed below:

#### 3.1. Ethical Issues of Private Sector in General

- **Favoritism, Nepotism and partisanship:** Conflict of interest in appointments- especially in family run companies- to positions such as board of directors.
- **Integrity of the audit process-** Companies have been found to fudge their balance sheets. It is the job of auditors to conduct proper audit and flag any violations, which they have failed to do in many instances. For example DHFL case. At times even third party auditors failed to highlight incongruence in the balance sheet.
- **Insider trading and manipulation of share prices:** Excessive competition in the market often forces people for unethical practices. It is also when personal interests take precedence over the organizational and the share-holders interest. Companies poach such employee for insider information. This may have debilitating results.
- **Cartelisation and manipulation of markets:** Big conglomerates often to displace the new entrants form cartels having monopoly over the market. Such cartels have been seen in drug, communication, cement etc. These cartels manipulate the market due to their hefty share. Price manipulation is one big impact of the same.
- **Lobbying with the government for favourable policies:** Lobbying in some countries is ethical. In India there is no law which defines Lobbying. Defence contracts are often heated topics for the lobbying angles involved in the same. Lobbying in a regulated manner is often recommended by experts.
- **Oligopoly or Monopoly:** For example, Communication sector is suffering from monopoly of few big conglomerates. The price wars have displaced many players from the market. Burning money to replace competitors is an unethical practice and competition commission in India regulates it.

#### 3.2. Ethical Issues of Employers

- **Favouritism:** This means that the employer may favour a particular person with regard to promotions and bonuses and evidently neglect other eligible employees. This conduct is considered highly unethical on the part of the employer.
- **Sexual harassment at work place:** is not legal/ethical/moral whether in the workplace or out of it. Harassing an employee sexually, or refraining from taking action against those who are involved in such offences, is strictly forbidden. Despite having laws, most of the companies do not have internal committees to address the complaints.
- **Hire and Fire culture:** Terminating an employee without any notice. In some cases, for reasons like budget management, companies opt for mass retrenchment to reduce the number of employees. Such steps should be undertaken after prior indications and notice of at least a month or two, so that the person can find another job.
- **Gender neutrality:** To develop gender neutral architecture in organizations is another ethical issue. Organizations are often found to be insensitive and partial. Some organisations hire less women due to maternity leaves and other gender associated prejudices. Various studies have found that despite having better leadership skills women face glass ceilings within the organization. Women are considered to be less productive.

- **Accessibility:** Organizational infrastructure should be accessible to all, including disabled. Most of the organizations lack sensitivity and awareness about disabled.

Student Notes:

### 3.3. Ethical Issues of Employees

The employees in an organization may fall prey to many unethical practices, knowingly and unknowingly. Some of the important ethical issues that employee may face are as following:

| Ethical Issues                                        | Explanation                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|-------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Work Ethics</b>                                    | <ul style="list-style-type: none"> <li>• Any and every organization has some work culture and employees there follow some work ethics.</li> <li>• Some of the <b>important values</b> of which are; Punctuality, proactive communication, Documentation, Upholding the dignity of fellow employee and regularity. Any breach of these values is an ethical concern.</li> <li>• E.g. taking excessive leave beyond the allowed number is a breach of ethical code. It not only leads to losses for the company but also brings the employee a bad name.</li> </ul> |
| <b>Breach of rules and regulations of the company</b> | <ul style="list-style-type: none"> <li>• Accepting terms and conditions are usually done as a part of joining procedure.</li> <li>• Violating any of these rules may lead to undesirable issues between the company and the employee.</li> <li>• E.g. Failing to maintain the privacy policy of the company is sort of breaking of rules</li> </ul>                                                                                                                                                                                                               |
| <b>Misuse of resources</b>                            | <ul style="list-style-type: none"> <li>• Utilisation of organizational resources to fulfill personal needs is unethical.</li> <li>• E.g. Making unnecessary phone calls at the company's cost.</li> <li>• E.g. Some employees pocket tools and stationery such as staplers, pins, papers etc. to use them at home</li> </ul>                                                                                                                                                                                                                                      |
| <b>Using office hours for private work</b>            | <ul style="list-style-type: none"> <li>• Because employees tend to spend so much of their weekday hours on the job, they often are tempted to conduct personal business on company time.</li> <li>• E.g. This can include setting up doctor's appointments on company phone lines etc.</li> </ul>                                                                                                                                                                                                                                                                 |
| <b>Working for multiple organizations</b>             | <ul style="list-style-type: none"> <li>• Companies usually prohibit employees to work in more than one organization, especially in a competing company where confidential information may be used.</li> <li>• This also questions the loyalty one has for employer.</li> </ul>                                                                                                                                                                                                                                                                                    |
| <b>Taking Credit for Others' Work</b>                 | <ul style="list-style-type: none"> <li>• Taking the credit of success and disowning the blame for failure is a common unethical practice that leaders do.</li> <li>• E.g. Prof. Satish Dhawan (then chairman of ISRO) demonstrated this quality while accepting failure for first Satellite Launch Vehicle mission by a team led by Dr. APJ Abdul Kalam. However, such ethical traits have been found missing in many organisations.</li> </ul>                                                                                                                   |
| <b>Harassing Behaviour</b>                            | <ul style="list-style-type: none"> <li>• Employees often don't know what to do if they see one of their co-workers harassing another <b>employee either mentally, sexually or physically</b>.</li> <li>• Employees may worry for their jobs if they attempt to report a superior for harassment. They may fret that they'll be labelled a troublemaker if they report co-workers who display inappropriate behaviour toward other employees.</li> </ul>                                                                                                           |

## 4. Existing Framework for Ethical Standards in India

India inherited the colonial bureaucratic structure and with time functional and structural unethical behavior started to appear. Important ethical standards were therefore created to improve the quality of administration. Some of the key Ethical standards in India are as follows:

### 4.1. Central Civil Services (Conduct) Rules 1964

Conduct rules governing the conduct of India's bureaucracy largely ensure that officers do not divulge confidential information or criticise government policy, and remain politically neutral.

- Officers from the **administrative, police and forest services** are governed by the **All India Service (Conduct) Rules, 1968**.
- Officers from the **Indian Revenue Service, Indian Information Service, Indian Customs & Central Excise Service, Indian Postal Service, Indian Audit & Accounts Service**, etc. are governed by the **Central Civil Service (Conduct) Rules, 1964**.

- Some services like the **Indian Railway Service** have their **own set of conduct rules**, though effectively they are all similar.

**Some important and widely used/misused rules are:**

- Rule 3(1), “**every member of the service shall at all times maintain absolute integrity and devotion to duty and shall do nothing which is unbecoming of a member of the service**”.
- The rule is elaborated in a sub-section to say that every officer must maintain the following – **high ethical standards, integrity and honesty, political neutrality, promoting of the principles of merit, fairness and impartiality in the discharge of duties, accountability and transparency, responsiveness to the public, particularly to the weaker sections, and courtesy and good behaviour with the public.**
- According to **Rule 7 of the AIS Conduct Rules**, no member of the service can criticize any policy or action of the central or state government on a radio broadcast, communication over any public media, in any document, in any communication to the press, or in any public utterance.
- Further, they are prohibited from saying anything “**which has the effect of an adverse criticism of any current or recent policy or action of the central government or a state government**” or “**which is capable of embarrassing the relations between the central government and any state government**”.

#### **4.1.1. Critique of the Rules**

- No mention of values or Code of ethics:** While the Central Government has issued conduct rules for government employees known as Central Civil Services (Conduct) Rules 1964, it does not lay down the values, which civil servants should follow or a code of ethics.
- Nature of the Rules:** The rules are more in the nature of “do’s” and “don’ts”. The Conduct Rules cover matters such as property transactions, acceptance of gifts, joining non-political organizations and a host of other issues covering almost every activity, which a normal individual undertakes.
- Restrictive in Nature:** The rules are highly restrictive, seriously curtailing freedom of operation of a government employee, couched in vague language and sometimes impractical to follow.
- Primitive service rules for government employees:** Shah Faesal, who was suspended for tweeting against rape culture in the subcontinent, was accused of not “maintaining absolute honesty and integrity in discharge of official duty and thus acted in a manner unbecoming of public servant”.
- Golam Mohiuddin vs State of West Bengal, AIT 1964:** In this case Calcutta high highlighted the ambiguity inherent in the rules, leading to subjective satisfaction of the government or disciplinary authority.

**Recent disciplinary actions against bureaucrats under the Central Services Conduct Rules:**

- The Department of Telecommunication (DoT) suspended Ashish Joshi, a 1992-batch Indian Post and Telecommunication Accounts and Finance Service officer, for reportedly misusing his official letterhead to file a complaint against Delhi MLA Kapil Mishra for uploading an incendiary video online.
- The central government asked the West Bengal government to take action against five officers from the Indian Police Service (IPS) for sharing the stage with Chief Minister Mamata Banerjee, during her protest against the CBI. They allegedly violated conduct rules, which prohibit officers from taking part in political protests.

#### **4.2. Draft Public Service Bill 2006**

In 2006 the Department of Personnel drafted a **Public Service Bill** which enumerated fundamental values of Public Services, a Code of Ethics, a Management Code etc. with the object of developing public services as a professional, politically neutral, merit based and

accountable civil service. The main values by which the Public Servants shall be guided are as follows:

- Allegiance to the Constitution and the law, democracy, nationalism, sovereignty, integrity of India and the security of the nation;
- Function in apolitical manner;
- Act objectively, impartially, honestly, equitably, and in a fair and just manner;
- Act with integrity and in a courteous and just manner;
- Establish high standards, and ensure quality service, effective working and prompt decision making;
- Be accountable for the decisions;
- Establish merit as the fundamental principle in employment, promotion and placements;
- Discharge functions with due regard to diversity of the nation/community and religion but without discrimination of caste, community, religion, gender or class and duly protecting the interest of poor, underprivileged and weaker sections;
- Provide honest, impartial and frank advice to political executive;
- Ensure that public money is used with utmost economy and care;

One problem with the draft bill was that it intended to fulfil too many objectives. Apart from values and ethics, the Bill envisaged laying down principles of management of public services, principles which should govern appointment to public services, performance indicators for public services etc. With such wide ranging and diverse coverage of matters relating to service matters, it is difficult to reach consensus and secure legislative approval. As such, the bill lapsed for want of both political will and societal will.

### 4.3. Code of Conduct for Legislators

The Committee on Ethics of the Rajya Sabha and the Lok Sabha have drafted some guidelines for the legislators of both the houses of the Parliament. Some of the common principles include-

- Members must not do anything that **brings disrepute to the Parliament** and affects their credibility.
- Members must utilize their position as Members of Parliament **to advance general well-being of the people.**
- If Members are in **possession of confidential information** owing to their being Members of Parliament or Members of Parliamentary Committees, they should not disclose such information for advancing their personal interests.
- Members must keep uppermost in their mind the **fundamental duties listed in Part-IV of the Constitution.**
- Members should maintain high standards of **morality, dignity, decency and values in public life.**

### 4.4. Code of Conduct for Ministers

The Ministers of both the Union and State Governments have to follow ethical conduct based on the following-

#### Before taking office-

According to the **Representation of the People Act, 1951** a person before taking office as a Minister, shall:

- disclose to the Prime Minister, or the Chief Minister, as the case may be, details of the assets and liabilities, and of business interests, of himself and of members of his family.
- sever all connections, short of divesting himself of the ownership, with the conduct and management of any business in which he was interested before his appointment as Minister.

Student Notes:

**After taking office-**

So long as he remains in office, the Minister shall:

- furnish annually by the 31st March to the Prime Minister, or the Chief Minister, as the case may be, a declaration regarding his assets and liabilities;
- refrain from buying from or selling to, the Government any immovable property except where such property is compulsorily acquired by the Government in usual course;
- refrain from starting, or joining, any business;
- report the matter to the Prime Minister, or the Chief Minister as the case may be, if any member of his family sets up, or joins in the conduct and management of, any other business.

Apart from this, a minister **should not accept valuable gifts** except from close relatives, and he or members of his family should not accept any gifts at all from any person with whom he may have official dealings.

## 4.5. Code of Conduct for Judges

The Supreme Court of India in its Full Court Meeting held on May 7, 1997 unanimously adopted a charter called the '**Restatement of Values of Judicial Life**', generally known as the Code of Conduct for judges. It includes the following-

- No member of his family, who is a member of the Bar, shall be permitted to use the **residence in which the Judge actually resides** or other facilities for professional work.
- A Judge should practice a **degree of aloofness** consistent with the dignity of his office.
- A Judge **shall not hear and decide a matter in which a member of his family**, a close relation or a friend is concerned.
- A Judge **shall not enter into public debate** or express his views in public on political matters or on matters that are pending or are likely to arise for judicial determination.
- A Judge is expected to **let his judgments speak for themselves**. He shall not give interviews to the media.
- A Judge **shall not accept gifts or hospitality** except from his family, close relations and friends.
- A Judge shall not hear and decide a matter in which a company in which he holds shares is concerned unless he has disclosed his interest and no objection to his hearing and deciding the matter is raised.
- A Judge **shall not speculate in shares, stocks or the like**.

## 5. Code of Ethics and Code of Conduct

A code of ethics is an **assembly of institutional guidelines** used to **reduce ethical vagueness**. Within an organization and serve as a means of **reinforcing ethical conduct**.

# CODE OF ETHICS **VS** CODE OF CONDUCT



- An aspirational document, issued by the higher-level management/ board of directors containing core ethical values, principles and ideals of the organization is Code of Ethics
- A directional document containing specific practices and behavior, that are followed or restricted under the organization is Code of Conduct

| Code of Ethics                | Code of Conduct                                         |
|----------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|
| ➤ It include core ethical values, principles and ideals of the organisation.                                   | ➤ It is a directional document containing specific practices and behaviour, that are followed or restricted under the organisation.        |
| ➤ Code of ethics is a set of principles which influence the judgement.                                         | ➤ Code of conduct is a set of guidelines that influence employee's actions.                                                                |
| ➤ Code of ethics are wider in nature as compared to code of conduct.                                           | ➤ Code of conduct are narrow.                                                                                                              |
| ➤ Ethical standards generally are non-specific and are designed to provide a set of values or decision-making. | ➤ Conduct standards generally provides a fairly clear set of expectations about which actions are required, acceptable or prohibited.      |
| ➤ It enable employees to make independent judgments about the most appropriate course of action.               | ➤ It enable employees to work in compliance with rules and actions are guided by the codes.                                                |
| ➤ A particular rule in the Code of Ethics might state that all employees will obey the law.                    | ➤ A Code of Conduct might list several specific laws relevant to specific areas of organizational operations, that employees need to obey. |

## 5.1. Purpose of Code of Ethics and Conduct

The codes are developed based not only on past organizational or individual experience, but also based on actions that the organization wishes to prevent from ever occurring

Three main purposes that the codes of ethics serve, which are as following:

- Codes assure people outside the profession or organization that they can expect a **degree of uniformity** as relates to expectation of performance and moral conduct from employees of the profession or organization.
- Codes assure individuals within the organization or profession that they can rely upon colleagues within the organization and profession to maintain a level of standards in exchange for that individual conducting himself in adherence to the same principles upon which the others are held.
- Codes serve as a notice that people outside of the organization or profession are not bound by the code and, perhaps may be seen as adhering to lower standards pertaining to ethics.

### Purpose of Code of Ethics and Conduct

⦿ The codes are developed based not only on past organizational or individual experience, but also based on actions that the organization wishes to prevent from ever occurring. According to Robert Bowen, codes of ethics have two fundamental purpose :

(a) They **provide moral guidelines and professional standards of conduct**. The professional codes **hold people accountable** for proper performance and devotion to honesty and obligation.

(b) The second purpose of codes is to **define professional behavior to promote a sense of pride, tolerance and responsibility among professionals**.



## 5.2. Key Elements

The key elements of such a Code are:

- Personal Responsibility
- Compliance with the Law
- Relations with the Public
- Limitations on the Acceptance of Gifts, Rewards, Hospitality and Discounts
- Avoiding Conflicts of Interest
- Limitations on Political Activities
- Conduct in Money Matters
- Confidentiality and use of Official Information
- Use of Official Property and Services
- Private Purchases of Government Property by Employees
- Work Environment

### Characteristics of a Code of Ethics or Code of Conduct:



**01** **Desirable:** It must meet the expectations and desires of the organization and fit the organization theme.

**02** **Feasible:** The code must not be so impossible as to prohibit the ability to adhere to it.





**03** **Enforceable:** Just as laws without punishment make for useless laws, so too is a code of ethics that is enforceable and fails in its purpose.

**04** **Enforced:** An individual will lose the respect for law if the law is not implemented in letter and spirit. This is true for ethical codes as well. Failure to enforce the codes results in a lack of respect for the codes and the underlying intent is lost. This often diminishes the integrity of the process and causes diminished support for the ethos.



While writing the code of ethics following things can be kept in mind;

- (a) It should be written to a general audience
- (b) It should be attainable
- (c) It should be written in clear, yet specific language
- (d) Follow a logical order

## 5.3. Importance of Code of Ethics

- (a) Organization displays that it is **willing to take responsibility for organizational ethics**
- (b) Serves as **decision making** guide and waiver of liability
- (c) Reduces **cognitive dissonance** and stress associated with some **decision-making** processes.



#### 5.4. Limitations of Code of Ethics

Code of Ethics, no matter how well intentioned may generate several limitations, some of which are as following;

- A code of ethics cannot provide guidance for every individual in every situation.
- Ethical code will through guidelines helps ensures public trust but cannot be enforced through criminal or civil code. It serves little to establish code of ethics that cannot be defended in courts.
- Limited to the imagination of individuals. Behaviour cannot be guided by set of rules, it must come from within the individuals and the organisations.
- Public service is a profession that must be governed by an inherent set of rules that do not come from reading a specific code.

#### 5.5. First Initiative for Code of Ethics- May 1997

The **Department of Administrative Reforms of the Government of India** had prepared a **Code of Ethics for public services**, as part of an **Action Plan for an Effective and Responsive Government**, which was presented in a conference of Chief Ministers presided by the Prime Minister held in May 1997. The objective of the Code was to prescribe standards of integrity and conduct that are to apply to public services. The salient features of the code are as follows:

- Assist the government:** The public services should **assist** the government in **formulating and implementing policies** and **administering public services** in the most effective way.
- To act with probity and integrity and in Public interest:** Employees in public services should **uphold the rule of law** and respect for human rights and act solely in public interest. They must maintain the **highest standards of probity and integrity**.

- **Building Public Trust:** They should conduct themselves in such manner that the public feels that the decisions taken, or recommendations made by them are objective and transparent and are not calculated to promote improper gains for the political party in power, for themselves, or for any third party.
- **Cooperation with the government:** They should not seek to frustrate or undermine the policies, decisions and action taken in public interest by Government by declining or abstaining from action.
- **When to approach the higher authority:** Where an employee in public service has reasonable grounds to believe that he or she is being required by superior authority to act in a manner, which is illegal or against prescribed rules and regulations, he should decline to implement the instructions. He will have the right to bring the fact to the notice of superior authority.
- **Conflict of Interest:** Employees in public service should refrain from decisions; i) which are calculated to benefit any particular person or party at the expense of the public interest; ii) shall disclose any clash of interest when there is conflict between public interest and private interest.
- **Independence, Dignity and Impartiality:** They should maintain their independence and dignity and impartiality by not approaching politicians and outsiders in respect of service matters or private benefits, and exercise peer pressure to dissuade those within their own cadre who do so and to set in motion disciplinary proceedings against such persons.
- **Accountability to Citizens:**
  - Employees in public services **should be accessible to the people** and practice **accountability** to them in terms of **quality of service, timeliness, courtesy, people orientation, and readiness to encourage participation** and form partnership with citizen groups for **responsive government**.
  - They should be consistent, equitable and honest in their treatment of the members of the public.
  - They should accept obligation to recognize and enforce citizen's right for speedy redressal of their grievance.
- **Financial prudence:** They should have concern for public assets and funds, avoid wastage and extravagance and ensure effective and efficient use of public money within their control.
- **Non- abuse of official position:** Employees in public services have a responsibility to take decisions on merits, as they are in a position of trust, they must not use their official position to influence any person to enter into financial or other arrangements with them or anyone else.

The code also deals with issues such as: public comment, release of official information, integrative role of public services and continuous improvement through professionalism and teamwork.

## 5.6. Second ARC Recommendations with respect to Code of Conduct and Code of Ethics

- Civil Service Values which all public servants should aspire, should be defined and made applicable to all tiers of government and parastatal organizations.
- Any transgression of these values should be treated as misconduct, inviting punishment"
- In order to create a regime under which quick disciplinary action can be taken against delinquent Government servants, the ARC has recommended deletion of Article 311 of the Constitution, with a proviso that legislation under article 309 be made to protect public servants against arbitrary action.
- The Commission has also suggested certain measures to protect honest Civil Servants against malicious complaints.

- The ARC in its 10th Report on Personnel Administration has re-emphasized the need for prescribing Civil Service Values and laying down a Code of Ethics.
- The Code of Ethics should include: integrity, impartiality, commitment to public service, open accountability, devotion to duty and exemplary behaviour.

## 6. Strengthening of Ethical and Moral Values in Governance

The discontent with respect to bureaucracy has shown a sharp rise in recent past. There have been protests to oppose the glaring fall in the ethical conduct of the public servants. Not surprisingly, there is a great deal of skepticism concerning the morality of governmental action and the ethics of its officials, and unless public trust and confidence are restored, moral government will remain a distant dream.

That restoration will depend upon how public officials are able to demonstrate the highest standards of ethics and responsibility in the use of the power entrusted to them. Towards this, 'they (the elected as well as appointed public servants) will need to reinforce their sense of mission to serve the public, by acknowledging the place of administrative theology, and by acquiring the necessary education and training in public service ethics and responsibility

### 6.1. General Strategies to Strengthen ethical and Moral Values

- There is a **need to resurrect the concept of service and vocation** so that a public administrator can **rise above individualistic leanings** and become a **true 'public servant'**. **Exemplary action against improprieties and malfeasance** committed by either the elected or appointed officials would have a salutary effect on the morale of all concerned, including the public.
- The **exercise of discretion** should serve the **public interest**. A public official should push back bounds on rationality so that deliberation may take place, provide truthfulness in the **discharge of official responsibilities, demonstrate procedural respect, exercise restraints on the means** chosen to accomplish organizational ends.
- **Education and training** in virtue and morality are prerequisites to holding a public office
- **By demonstrating the highest standards of personal integrity, honesty, fairness and justice**, which are the key ingredients of a moral government, public officials can inspire public confidence and trust.
- Public servants should be aware of the conduct expected of them, not only by the state which employs them, but also by the public. **A set of principles and guidelines with the force of law** should be developed, and an office be established for enforcement and resolution of conflicts.

### 6.2. Specific Strategies to be Considered

- **Effective laws:** Which require civil servants to give reasons for their official decisions.
- **New Management approaches:** To encourage all public officials and civil servants to deal positively with corruption and unethical practice when encountered.
- **Strengthening the Whistle Blower Protection Regime:** Whistle-blower' protection law to protect appropriate 'public interest disclosures' of wrongdoing by officials.
- **Ethics audits:** To identify risks to the integrity of the most important processes.
- **New Human Resource Management strategies** (which link, for example, ethical performance with entry and advancement, and ethical 'under-performance' with disciplinary processes), **merit-based promotion and recruitment, anti-discrimination protections.**
- **Training and development** in the content and rationale of Ethics Codes, the application of ethical management principles, the proper use of official power, and the requirements of

professional responsibility. Effective external and internal complaint and redress procedures.

- **Developing administrative practices and processes which promote ethical values and integrity:** The system should promote role models and incorporate the process of disseminating best practices and exemplary actions of civil servants to the entire bureaucracy. Also, performance assessment systems have to be renewed in line with growing scope of innovation in civil services.
- **New techniques** need to be undertaken to institutionalize ethically competent decision making, disinterested advice to Government, and, ultimately, an 'ethical culture' which supports professional responsibility, self-discipline, and support for the rule of law;
- **Second ARC recommendation:** In Its wide-ranging recommendations, it has suggested **partial state funding of elections; tightening of anti-defection law and code of ethics for ministers, legislatures, judiciary and civil servants.**
- To check corruption: Second ARC proposed tightening the provision of **Prevention of Corruption Act**, making corrupt public servants liable for paying damages, confiscation of property illegally acquired and speedy trials.

## 7. Way Forward

Moral administration **does not mean that its officials exhibit only the negative obligations** such as to do no harm, to avoid injury or to keep out of trouble. On the contrary, the notion of public sector ethics suggests that administrators actively undertake actions that are **socially just and moral**. Only by actively pursuing the goals of **social justice, equity and human dignity** can the officials and the state be moral and just.

## 8. Previous Years UPSC GS Mains Questions

1. What do you understand by the terms 'governance', 'good governance' and 'ethical governance'? (2016)
2. Discuss the Public Services Code as recommended by the 2nd Administrative Reforms Commission. (2016)
3. Distinguish between "Code of ethics" and "Code of conduct" with suitable examples. (2018)
4. Explain the process of resolving ethical dilemmas in Public Administration. (2018)
5. Suppose the Government of India is thinking of constructing a dam in a mountain valley bond by forests and inhabited by ethnic communities. What rational policy should it resort to in dealing with unforeseen contingencies. (2018)

## 9. Previous Years UPSC Mains Questions: Case Studies

1. Suppose one of your close friends, who is also aspiring for civil services, comes to you for discussing some of the issues related to ethical conduct in public service. He raises the following points:
  - (i) In the present times, when unethical environment is quite prevalent, individual attempts to stick to ethical principles may cause a lot of problems in one's career. It may also cause hardship to the family members as well as risk to one's life. Why should we not be pragmatic and follow the path of least resistance, and be happy with doing whatever good we can?
  - (ii) When so many people are adopting wrong means and are grossly harming the system, what difference would it make if only a small minority tries to be ethical? They are going to be rather ineffective and are bound to get frustrated.
  - (iii) If we become fussy about ethical considerations, will it not hamper the economic progress of our country? After all, in the present age of high competition, we cannot afford to be left behind in the race of development.
  - (iv) It is understandable that we should not get involved in grossly unethical practices, but giving and accepting small gratifications and doing small favours increases everybody's

motivation. It also makes the system more efficient. What is wrong in adopting such practices?

Student Notes:

Critically analyze the above viewpoints. On the basis of this analysis, what will be your advice to your friend?

## 10. Previous Years Vision IAS GS Mains Questions

1. *The universal adoption of common good approach poses the ethical dilemma of putting collective interests over and above the individual interests. Discuss with examples.*

**Approach:**

- Start with defining the concept of common good with examples.
- Discuss the ethical dilemma before the individual in dealing with challenges of common good. Illustrate with some examples.
- Conclude.

**Answer:**

An individual entity- a person, a group, a community, a nation- may choose to act in a manner which brings it maximum good. This good usually comes at a cost to another individual entity. There are two ways to minimize the cost to other entities. Either all act in a selfish manner and compete with each other to maximise their own benefits, with no consideration of the cost to other; or, everyone may act in a harmonious manner so that benefits are maximized for all together rather than one entity. This way, the cost to all is borne by all, and hence everyone strives to minimize it while maximizing benefits. However, the ethical dilemma here is what if the other entity works to maximise its own benefits, rather than everyone's? Hence, it becomes clear that universal adoption of common good approach poses the dilemma- Am I/Are we being left behind? Are others committed to common good just like me/us? Will pursuing my self-interest bring more and quicker happiness to me, and so on.

According to John Rawls, the common good refers to "certain general conditions that are equally to everyone's advantage." It is either what is shared and beneficial for all or most members of a given community. Examples- Universal public health care system, an effective system of public safety, an unpolluted natural environment etc.

Because such systems, institutions, and environments have a powerful impact on the well-being of members of a society, virtually every social problem is linked to how well these systems and institutions function.

Examples:

- Keeping the neighbourhood clean would require efforts of all households and if one of them does not properly dispose its waste, others will be demotivated to keep it clean.
- One set of people- forest dwellers- being made to bear the entire burden of relocation for mining projects without getting any benefit in return.
- Richer people disproportionately contributing to pollution through their lifestyle lessens the motivation of others to cut down on their emissions.
- Developed countries pursuing their interests in WTO at the cost of developing and poor countries lessens the incentive to respect and abide by global rules, treaties.

### Challenges of ensuring Common Good

No one can be easily excluded from the common good. This leads to following challenges:

- As Accountability can't be fixed on a particular individual, everyone expects others to contribute while he himself focuses on his individual interest.
- In the face of such pluralism, efforts to bring about the common good may lead to adopting or promoting the views of some, while excluding others.
- Individuals can become "free riders" by taking the benefits the common good provides while refusing to do their part.
- In the individualistic culture it is difficult to convince people that they should sacrifice some of their freedom, personal goals, and self-interest, for the "common good".
- For the sake of common good, particular individuals or groups may have to bear costs higher than others.

Despite these issues, appeals to the common good ought not to be dismissed. For they urge us to reflect on broad questions concerning the kind of society we want to become and how we achieve that society. Through dialogue and discussion, others can be persuaded to act in a manner which maximises common good.

**2. What do you understand by ethical dilemma? Bring out some examples of ethical dilemma often faced by civil servants.**

**Approach:**

- Define ethical dilemma and briefly explain it.
- With examples, explain ethical dilemma often faced by civil servants.
- Conclude by suggesting ways to deal with ethical dilemmas.

**Answer:**

An ethical dilemma is a complex situation, that often involves conflict between moral imperatives. Civil servants hold public positions and utilize resources to deliver public services. In performing duties, they come across various situations when they have to deal with equally important set of principles. They may face ethical dilemmas due to lack of legal/policy clarity on the issues faced by them. Some examples of ethical dilemmas faced by civil servants are as follows:

- Allocation of limited resources amidst demands by various beneficiaries, especially in case of unclear guidelines i.e. matters which potentially influence a civil servant's ability to work in the public interest and represent all constituents equally and fairly.
- Economic development versus its cost to the environment, for example, construction of a dam in a tribal area, which would protect them from floods and provide electricity but lead to displacement.
- Conflicts between personal life and professional life. For example, maintaining balance between catering to family needs and working beyond office hours.
- Maintaining balance between secrecy and transparency. While protecting sensitive information is necessary for security reasons, but at the same time, transparency is essential to uphold the public servants accountable.
- Dilemmas involving the faithful execution of official duties. For example, the decision to participate/be a part of say an appointment committee, interview board etc, when a civil servant has a conflict of interest which prohibits his/her participation.
- Dilemmas involving acting with integrity, for example, in cases where a civil servant is offered a legally acceptable gift for doing his/her duty diligently, where there may be a quid pro quo involved.

In these situations, public servants should follow certain fundamental principles such as democratic accountability, respect for the rule of law and the principle of legality, professional integrity and responsiveness to civil society. Adopting these principles can integrate the process of dealing with ethical dilemmas in public administration.

**3. *What is the difference between an acceptable business gift and a bribe? What kind of norms and structures should an organization have in place to help its employees avoid ethical dilemmas on such issues and make the right decision?***

**Answer:**

Gift is something of value given without the expectation of return while bribe is something of value given with the hope of a future influence or benefit. In the context of contracting with the government, a 'bribe' is the offering, giving, receiving or soliciting something of value for the purpose of influencing the actions of an official in the discharge of his or her public or legal duties. In general, a 'gift' is something given as a sign of friendship or appreciation. While it is generally accepted that gift giving may enhance the prospect and image of a company, businesses must tread carefully as corporate gift giving has several legal, ethical and practical questions attached to it.

Standard management tools are used to control bribery - internal monitoring, monitoring suppliers, reports to Boards of Directors, use of compliance manuals, whistle-blowing facilities, signatures of directors, training, periodic compliance, reviews by managers, employee signatures, internal auditing, disciplinary action and active communication. But there is a very fine line between business gift giving and bribing, and it is seldom clear when the line is crossed. This fine line between a gift and a bribe could be determined by using a 'test of disclosure with comfort'. If the business manager or the public official can unhesitatingly acknowledge and justify the giving and receiving of a gift and its size and nature in a public forum without any adverse impact on the company's work and reputation then and only then it is a gift.

It is recognised that the giving and receiving of business gifts is an integral part of the way in which some businesses operate. To steer clear of bribery but to maintain a healthy gift-giving culture which is beneficial to business, companies must have clear policies related to gift giving and receiving to steer clear of potential problems arising out of gift-giving.

There are some suggestions for policy-making in this context:

- Workplace gift giving should ideally be prohibited or restricted.
- A clear guideline should be set for type and value of gifts the employees can accept from outside entities and a policy to return should be there for any gift that falls outside the set parameters.
- For giving gifts to suppliers and other outside entities, it would be important to define who can receive a gift, along with 'how these gifts are selected and presented' and also to cognizance of the gift policies of any company that is being included in the list.
- The receipt or giving of modest gifts may be expensed in the normal way if paid for by a group company.
- The giving or receipt of more lavish gifts must be approved by the person's manager.
- The manager should ensure that an appropriate record is maintained.
- In cultures where the refusal of an expensive gift would give offence, such gifts may be accepted on the basis that they will become the local company's property, unless the managing director of the local company otherwise determines.

These kinds of norms and structures can help employees to avoid ethical dilemmas on such issues.

**4. *Explaining what an ethical dilemma is, discuss how it reflects not merely a choice between competing interests and values but also a test of strength of one's character.***

**Approach:**

- Explain briefly the meaning of ethical dilemma.
- Discuss how ethical dilemma tests one's character.
- Conclude by suggesting ways to resolve an ethical conflict.

**Answer:**

It is easy to make a choice amongst actions where consequences are unambiguously right or wrong. However, an ethical dilemma arises when there is ambiguity about goodness or badness of an act. A situation where one has to take a decision between moral imperatives, none of which is unambiguously acceptable or preferable is called an ethical dilemma. It requires a choice between competing sets of principles in a given, usually undesirable or perplexing situation. A person may find herself/himself in ethical dilemmas in personal and professional life due to conflict of interest or conflict between personal values and professional ethics; blurred or competing accountabilities etc.

Ethical dilemma reflects not merely a choice between competing interests and values but also a test of strength of one's character as:

- Resolving ethical dilemmas requires a robust framework of integrity. Often people are required to act in public interest at the expense of personal interest, which requires dedication and honesty and an ability to resist temptation for personal gains.
- Similarly courage, humility, prudence, optimism and determination are necessary character traits as regards resolving ethical dilemmas.
- A strong personal character provides for the ability to identify important issues, determine priorities and sort out competing values.
- Ethical standards do not by themselves ensure ethical behavior. Personal integrity is required to ensure ethically compliant behavior. For instance corruption is a direct manifestation of failure of one's ethics.
- Laws, rules and ethical standards, while guiding an individual in resolving ethical dilemmas, are inherently incomplete to enable one to resolve the myriad conflicts that arise in real life situations.

Ethical dilemmas can be resolved by adopting a justice approach, which holds that decisions must be based on standards of equity, fairness, and impartiality. A personal moral compass, fortitude and ability to take responsibility for actions are therefore necessary to help one when faced with ethical dilemmas.

**5. *Income inequality, resource mismanagement and health hazards are some of the negative consequences of globalization. In this context, what are some of the ethical dilemmas that civil servants face today? How has the approach to handling these undergone a change?***

**Approach:**

- Explain the key ethical dilemmas that civil servants face due to the changes brought by globalization.
- Then, talk about the difference in approach to handle the challenges and resolve the ethical dilemmas.

**Answer:****Student Notes:**

The process of Globalization is associated with both benefits with increasing pace of poverty reduction and high growth rates as well as drawbacks such as increasing inequality and resource mismanagement. Globalization has impacted not just economies but also politics, societies and cultures across the world. This has brought new challenges for the civil services in the form of following ethical dilemmas.

**Ethical dilemmas in era of Globalization**

- In the era of globalisation, the role of the State has changed. Economic liberalisation has led to – on one hand, the diminishing role of state and on the other, increasing role of private sector. The basic objective of private enterprises—maximizing profits—does not always coincide with broader social concerns. Therein lies the ethical dilemma of civil servants of balancing these two priorities, profits – for sustaining economic activities and addressing social concerns - as part of the welfare state.
- Globalization has resulted in the marginalisation of a section of society who have not been able to take advantage of the economic opportunities provided by globalization. The ethical dilemma here is the need for showing empathy and compassion in helping them while at the same time following the rule of law.
- Fast pace of globalisation is mainly driven by the rapid advancement of communication technology. Civil servants too have had to adopt technology in public administration even if they personally do not like it. The ethical dilemma here is between the personal choice of status quo and professional demands for infusing technology in day-to-day operations.
- Globalization era is also associated with increasing demands for transparency and accountability. The ethical dilemma which civil servants face is judicious use of discretionary power while at the same time upholding the principles of transparency and accountability.

Handling these challenges and ethical dilemmas require a multi-pronged approach for upholding the foundational values of civil services. Therefore, there has been change in the approach in the following manner:

- Civil servants are shifting their orientation from being controllers to facilitators and from being providers to enablers. This way the State can focus more on the social sector while economic activities are left to the private sector.
- Values such as non-partisanship, empathy and compassion are now considered as foundational values along with the traditional values of integrity, objectivity and public service dedication.
- Civil servants are being equipped with the necessary skills and capabilities to master new technologies and new styles of functioning. This will bring about an attitudinal change required to adopt technology.
- Along with the code of conduct which may not be able to cover every possible scenario, code of ethics is also being focused upon so as to guide the actions of civil servants while acting under discretion.

**6. *Examine how the moral order of any society is based on the norms like honesty, truthfulness, discipline, fairness, tolerance and justice, and therefore the code of ethics has to be based on them.***

**Approach:**

- Firstly, examine how the foundation of morality in a society is based on certain norms

- Then discuss why the code of conduct and ethics has to be rooted in moral order of the society and thus ultimately based on the norms established.

Student Notes:

**Answer:**

- Norms are largely social in their origin, sanctions and functions and are an instrument of society as a whole for the guidance of individuals and groups.
- While the origin of social norms may lie in small, close knit groups, they often spread well beyond the narrow boundaries of the original group to large populations.
- Further, norms are not just a discovery or invention of the individual for his own guidance. They are a social enterprise and seen as constraining behaviour.
- Though they make demands on the individuals, usually individuals themselves become spokesmen of these demands, through what is called "internalization".
- Once they are internalized, norms come to be seen gradually as central to the production of social order and social coordination.
- Though they cannot be explained solely on the basis of functions that they perform, it is indeed a fact that they fulfill important social functions, such as welfare maximization.
- The common values and moral order of societies have come to be based on such norms and they have guaranteed the orderly functioning and reproduction of the social system of societies across the world.
- They have helped ensure that citizens are aware of not only their roles in society, but also customs, common practices, power relations, economic exchanges, rules for interpersonal interaction etc. This has helped people to function successfully in society and maintain the moral order by making people learn and accept the shared values of society, thus learning how to act in society.
- While certain norms like honesty, truthfulness, discipline, fairness, tolerance and justice are universal to the extent that they shape the moral order of societies; the interpretation of these can differ across societies, depending upon the type of socio-cultural-economic-political system that the society has. This difference in interpretation according to the desired goals of societies is one of the reasons for difference in moral codes across societies. For instance, while equality and justice are acceptable social norms across most societies, there may have different notions of what they mean. In communist societies, achieving equality of outcome may be desired, while in societies with different socio-political systems ensuring equality of opportunity may be the desired goal.
- Social norms have also been the basis of the code of ethics for various professions.
- Code of ethics represents values collectively imposed on individuals by organizations, professional associations, or political jurisdictions.
- Though discretions exercised in organizations, like the bureaucracy, are necessarily broad, but it must be generally consistent with the wishes of the citizenry. The range of possible decision options should be constrained by the will of the people as expressed through the moral order of the society and various acceptable norms.
- Code of ethics and ethics legislation provides these broad constraints within which the ethical conflicts and dilemmas that one faces are to be resolved. Such codes and laws are however, only the formal statements of the moral minimum for a political community.
- They also provide sanctions for professionals, including public servants, caught stepping beyond the limits established by the citizenry through the moral order and norms of the society. Fines, prison sentences, and administrative penalties for misconduct are ways of establishing the right of the people to require that their norms be respected and enforced.

- Legal sanctions confront the whims, greed and self assertion of an irresponsible professional with a reminder that he is employment is in a social context and that the limits imposed by the society may not be transgressed.
- Hence a code of ethics should be based upon the norms, like the ones mentioned above and confirm to the moral order of the society as these core values support good governance and ensure the achievement of the highest possible standards.

**7. Examine the contemporary relevance of Gandhiji's talisman as a means of resolving ethical dilemmas in day to day life.**

**Approach:**

- Highlight the key message of talisman (in brief) – 'sarvodaya through antyodaya'.
- Explain how it can promote emotional intelligence in citizens and help them resolve ethical dilemmas.
- Discuss its contemporary relevance for citizens, businesses and the Government.

**Answer:**

Gandhiji's talisman– "whenever in doubt, think if the decision would empower or marginalize the poorest?" provides an ethical test to judge everyday actions. It champions the cause of **'sarvodaya through antyodaya' implying the welfare of all through the weakest of the society** which lies at the core of Indian Constitution.

It is a clarion call to the citizens to develop emotional intelligence so that they are in a better position to assess the needs of fellow (vulnerable) citizens, and work towards their upliftment through individual actions.

India of the 21st century is witnessing sectoral violence, socio-economic inequality, low tolerance threshold and increasing consumerism. Global politics is witnessing xenophobia, armed conflicts and multiple refugee crises. The talisman can hence be an effective tool to evaluate the relevance of government policies, business priorities and our daily actions on the society. All these entities can assess their actions in public as well as private life against the talisman to ameliorate ethical dilemmas.

Applying the talisman to our daily lives invariably suggest the following:

- Government policies must necessarily focus on the vulnerable and marginalized sections of the society even if it requires making special provision for such classes.
- At personal level, self-serving acts like tax evasion, littering in public places etc. must be shunned. Derogatory practices in society like manual scavenging, caste-based discrimination, exploitation of women and the poor, dowry, nepotism etc. must be condemned in practice.
- At societal level, it encourages altruism, compassion and communal harmony towards fellow human beings when encountered with negative vibes of hatred and violence.
- Businesses and Industries should strive to reduce polluting activities, ensure optimal working conditions and must honestly comply with social security legislations. Further, it encourages business houses to go for Corporate Social Responsibility for achieving greater inclusiveness in the society.
- Public servants should ensure transparency and integrity in implementation of welfare provisions like PDS, MGNREGA, Old Age Pension Scheme etc. so that their steps lead to swaraj in true sense.

Thus, Gandhiji's talisman empowers us to judge our actions and is a timeless beacon of inspiration for generations to come.

8. *Consider the case of a religiously orthodox couple in Wonderland. Their son is dying of cancer and needs a bone marrow transplant. While the doctor is devoted to reducing pain and preserving life, the parents refuse permission to let the doctor give the necessary bone-marrow transplant. In their view faith alone does the healing and moreover, permitting the treatment would endanger the child's life because it would issue from lack of faith. The doctor is dismissal of these ideas and puts off all treatment until the parents agree for the transplant. While the clashes between these two worldviews continue, the child dies. Should the parents now be tried by the law for criminal neglect? Was the doctor also being stubborn and betraying weakness, or is he just being a doctor? Has he violated his code of ethics too?*

Student Notes:

**Answer:**

### 1st Approach

The principle of autonomy is one of the four guiding principles of medical ethics, the others being beneficence, non-maleficence, and justice. It means that patients have the right to decide what is done to their own bodies. For minors, it is the parents decide for them. What happens when parents refuse a treatment that their child's doctor recommends?

While the faith of the parents should be respected, any possibility of a miraculous cure based on their religious faith should be entirely left out of account. In the given case, it was a near medical certainty that the child would die without treatment; and the only effective treatment was probably a bone marrow transplant.

If the doctor believed that the parents were not acting in the child's best interest, he should have gone to the court and tried to convince the judge that the court should take temporary custody of the child and allow the treatment. Another way for the doctor was to try persuading the parents to accept medical care. He could have even discussed passages from the holy books of various religions (and probably even theirs), which talk about healing and even prayed with them, as a sign that he also respected their faith. He could have made them believe that he was not opposed to their beliefs per se, and was not negating the power of their God, and in fact was a part of it. In the process he could have tried to balance their view on faith and science and told them to keep praying for their child, while he gives him the requisite treatment. It was important that he tried to appreciate their point of view, rather than dismissing it altogether.

In such a situation it was important to balance the practical obligations of providing medical care while adhering to doctors' ethical obligations to report such cases to the police and the courts. To this limited extent the doctor violated his code of ethics and abdicated his responsibilities. He was also being stubborn and betraying weakness.

The doctor's decision on bone marrow transplant decision was made on the basis of medical knowledge and experience, evidence and reason. Though by definition, a faith based miracle defies medical science and all known experience and reason, it was important that the parents be made to realize that they were simply engaging in child neglect. Assuming that there are adequate laws on child neglect, the parents should be tried and penalized in some way under the same.

However, it must also be kept in mind that even parents, who are blinded by religious faith and miracles, love their children. They would have loved to have their child survive, but they believed in healing with prayer. It is unlikely that they were harming the interests of their child intentionally; it's just that they had a strong faith that others don't share.

The doctor should not have made a rash decision when faced with a family refusing medical care, despite how he felt about the family's religious beliefs. If he would have

approached them in a more humanistic way and with compassion, compromise was much more likely. Finding common ground with parents about religious views would have helped in developing a compatible care plan and maybe saved the child. It was important for the doctor to guard against his frustrations, which held him from working with the family in saving the child.

Thus both the doctor as well as the parents has to share the blame for the child's death. While the doctor violated his code of ethics and was being irresponsible, the parents are guilty of child neglect. Both could be tried and probably penalized in different ways.

## 2nd Approach

*In this case we need to see the rights of child and parents to apply the principle of autonomy because these rights vary with different cultural settings. So we need to analyze above situation under different aspect of trusteeship and ownership. Under ownership situation, it is observed that parents are best well-wisher of child and own every decision on behalf of child. But trusteeship does not grants ownership to parents. Here child is a responsibility of state and parents are care taker. Thus whether to initiate any criminal proceedings against parents or not depends on law of that country.*

*But in case of doctor he surely has violated ethics of medical profession by putting of all the treatment. He as a doctor needed to continue with the appropriate treatment of child. To do nothing is a disservice both to the profession and to patient.*

9. ***In spite of the existence of a Code of Conduct for public servants, its implementation has been tardy and of limited success. Discuss. Further, suggest steps which could be taken to improve the efficacy of the Code of Conduct. What role can Code of Ethics play in reinforcing the Code of Conduct in public life?***

### Approach:

- Describe briefly code of conduct.
- Bring out the reasons for the limited impact the code of conduct.
- Suggest steps which could be taken to improve the efficacy of the Code of Conduct.
- Explain how code of ethics will help in improving efficiency of Code of conduct.

### Answer:

Code of Conduct is a set of rules, standards, principles and values outlining the expected behavior for the members of an organization. The purpose is to regulate the conduct of members on various decisions and processes. Most of the public organizations follow some code of conduct. These have been designed to comprehensively cover almost all the situations in which public servants find themselves. Yet, widespread corruption occurring is indicative that it has proved to be ineffective. Following reasons can be attributed towards the minimal impact of code of conduct in dealing with corruption in public life:

- **Legally not binding:** Not all the provisions of code of conduct are legally binding. For example, only provisions of Central Civil Services (Conduct) Rules which are violated under the Prevention of Corruption Act invite punishment. Else, their enforcement boils down to departmental discretion. Similarly, Model Code of Conduct by ECI is not legally enforceable and only its provisions violated under the RPA attract punishment..
- Code of conduct has to be supported by strong accountability and transparency mechanisms. This is still to be achieved.
- Poor awareness about the code of conduct among the public officials and public.
- Lack of proper training about dealing with situations amounting to conflict of interest. As a result officials often fail to follow code of conduct.

- Legal rules alone cannot ensure transparent and fair governance. What is needed is self-regulation but there has been rapid erosion of values in public servants.

Following steps can be taken to enhance the effectiveness of Code of Conduct:

- The Code should be legally binding. Arbitrariness is against the Rule of Law and hence, it should be eliminated. Every provision should unambiguously describe the course of action that has to be taken in case of violation of the code.
- A comparative evaluation of effectiveness of code of conduct in public and business organizations indicates that there has been considerable impact of the Code of Conduct in business organizations. Hence, the methodology for implementation of the code of conduct can be adopted and modified to suit public organizations.
- Certain practices in business organizations have resulted in employees identifying themselves with the organization and its objectives. These best practices should be adopted by public sector.
- Inculcation and rejuvenation of public service values at an early age and throughout the career of employees should be done through activities and training.
- Code of conduct should be supported by service delivery standards and strong accountability and transparency mechanisms to reign in corruption.

Code of ethics provides for the value system that public servants can look up to in times of crisis and dilemma. A Code of Ethics creates a framework upon which all decisions are made. This helps create a cohesive understanding of the boundaries within an organization and the standards set for interacting with stakeholders. The ARC II fervently pitched for Code of ethics and related reporting systems. Thus, it will be complementary to Code of Conduct. However, values need institutional support to be sustained. Hence, it's important that Code of Conduct be made legally binding, with penalty provisions. If both the codes are followed in letter and spirit, corruption and misuse of public office will be curbed to great extent.

- 10. *It is at the interface of public action and private interest that the need arises for establishing not just a code of ethics but a code of conduct. In this context, highlight the need for drafting a code of ethics as well as a code of conduct.***

**Approach:**

- Discuss the need for regulating the conduct/behaviour of public servants.
- Explain the rationale behind having a separate code of conduct & code of ethics.
- Highlight the important differences between the two.
- Conclude by mention how both can be supplemented owing to similarity in their objectives.

**Answer:**

It is imperative for a public service organization to conduct itself in ways that preserve and enhance public trust and confidence in the integrity of government and its institutions. In the case of public servants, the standards of behaviour must be more stringent, because any person/organization that is privileged to guide the destiny of the people must not only be ethical but must be seen to practice these ethical values.

However, any elaborate *system of laws and rules* cannot exhaustively account for all situations especially when the ambit of discretion at the disposal of a public servant widens. It is at this interface of public action and private interest that the need arises for establishing not just a code of ethics but also a code of conduct.

A *code of ethics* covers broad guiding principles of good behavior and governance. They act as a reminder for the members of an organization regarding broad moral standards

e.g. maintaining integrity, ensuring transparency in functioning etc. They provide ethical guidance in difficult or unclear situations.

However, it is not sufficient to have only a Code of ethics. *Code of conduct* is also required, as code of conduct provides a list of acceptable and unacceptable behaviour and action in a precise and unambiguous manner. The specific do's and don'ts such as not accepting bribes, not giving out details on internal working of the organization to the media etc. promote adherence. It makes public servants well aware of acts that are wrong, recognize wrongdoing and actively prevent it. Hence, it introduces a mental barrier into the minds of corrupt or potential miscreants against wrongdoing.

The need for having clear cut codes arises from the fact that civil servants as individuals have their own principles to guide them. This may lead to discrepancies in actions from individual to individual. Also, having a clearly formulated code leaves less scope for interpretation and thus act as an objective tool to guide behaviour of civil servants. Both the code of ethics and of conduct are interrelated. While CoE provides higher principles to follow in performance of duty, a CoC provides specific set of guidelines, derived from the higher principles. Codes of ethics can be used to *revise the code of conduct* to cover behaviour or situation that is not already covered while code of conduct helps in indirectly adhering to the code of ethics by setting standards against which public servants can test their actions and eventually inculcate the habit of doing the right thing for the right reasons. Thus, both serve to meet the same objectives and supplement each other.

- 11. Ensuring that civil service values are recognised during the recruitment process and ensured through a code of ethics after appointment is a necessary condition of making the civil services an effective instrument of citizen centric governance. Comment.**

**Approach:**

- Briefly define code of ethics and civil service values.
- State the importance of recognizing civil services values during the recruitment process of civil servants and its continuance thereafter through code of ethics.
- Assess whether it is an effective instrument of citizen-centric governance.

**Answer:**

Civil servants play a key role in nation building as they advise on and implement the policies and programmes that have far reaching consequences. Since they are the decision makers, it is pertinent that the power they exercise is fair and just. This has to be ensured from within and externally. The internal value system of a person is largely formed by the mid-twenties. As such, it is important that this be tested and recognised during the recruitment process. Efforts must be made to ensure that not only the most intelligent and hard-working but also the most ethical aspirants join civil services.

However, in order to take decisions that have far reaching consequences, merely internal system of ethics is not sufficient. The institution of bureaucracy requires that there also be an externally enforced code of conduct as well as general code of ethics to ensure good governance.

Code of ethics is a set of guidelines issued by an organization to its workers and management to help them conduct their actions in accordance with the primary values and ethical standards of the organization. The fundamental tenets of a code of ethics and values in civil services include integrity, empathy, objectivity, transparency, professional competency, among others.

Student Notes:

Further issues such as red tapism, corruption, rigid attitude, pulls and pressures of decision making involving discretion etc plague the efficiency of a Civil Servant during his employment and hence the role of an ethical code of conduct becomes significant.

Attaining Citizen Centric Governance which includes grievance redressal mechanisms, active citizens' participation, accountability and maximization of citizen's welfare, is an important goal of civil services. Additionally, services should be provided effectively, efficiently and equitably to all citizens. Certainly, this cannot be achieved without adherence to civil service values.

In this context, it should be noted that there is no single code of ethics for Civil Servants in India. However, there are several conduct rules such as the Central Civil Services (Conduct) Rules, All India Services (Conduct) Rules etc., which prescribe allegiance to the Constitution, apolitical functioning and objective decision-making. Several committees like the Santhanam Committee, Hota Committee, 2<sup>nd</sup> ARC etc. have recommended a code of ethics for Civil Services in India.

- 12. *It is at the interface of public action and private interest that the need arises for establishing not just a code of ethics but a code of conduct. In this context, highlight the need for drafting a code of ethics as well as a code of conduct.***

**Approach:**

- Discuss the need for regulating the conduct/behaviour of public servants.
- Explain the rationale behind having a separate code of conduct & code of ethics.
- Highlight the important differences between the two.
- Conclude by mention how both can be supplemented owing to similarity in their objectives.

**Answer:**

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## 11. Previous Years Vision IAS GS Mains Questions: Case Studies

1. *A junior member of staff has just returned to work after taking special leave to care for her elderly mother. For financial reasons she needs to work full-time. She has been having difficulties arranging proper care for her mother, which has led her to miss important team meetings (usually taking place at the beginning of each day) and to leave the office early. She is very competent in her work but her absence is putting pressure on her as well as her overworked colleagues. You being her manager are aware that the flow of work is coming under pressure due to this. One of her male colleagues is beginning to make comments such as "a woman's place is in the home", and is undermining her at every opportunity, putting her under even greater stress. How will you deal with the situation?*

**Answer:**

### Fundamental Principles

1. **Integrity:** You need to be fair to all those involved and act in a straightforward manner.
2. **Confidentiality:** You have a duty of maintaining confidentiality to the staff involved.
3. **Professional behaviour:** How should you proceed so as not to discredit yourself, your profession or the practice for which you work?

### Identify Relevant Facts

Consider the firm's policies and, with legal assistance if required, applicable laws and regulations.

### Identify affected parties

1. The Junior staff
2. You
3. The member staffs
4. The Male colleague and the HR

### Who should be involved in the resolution?

Consider not just who you should involve but also why and when. Do you have access to appropriate staff in HR? Can you consult someone in the office in whom you can confide?

### Possible Action

1. Check the relevant facts: Clarify staff procedures with the senior HR manager. Take legal advice if required.

2. Discuss the matter with the staff member: Suggest a more flexible approach to team meetings – do these always have to be in the morning? Working from home may be an option for the junior staff member, if possible.
3. Remind the male member of staff about proper conduct and how such behaviour may amount to harassment and he might have to face legal problems along with the chance of spoiling company's reputation.
4. Throughout, you must be seen to be acting fairly: both towards the junior member of staff, who is responsible for her mother's care, and towards other members of staff.

2. ***"The challenge of climate change presents the world with several fundamental ethical dilemmas. From a global perspective, it presents the world with a collective action problem: all countries have a collective interest in controlling global carbon emissions. But each individual country also has incentives to over-consume in response to societal demands for economic growth and prosperity. Developing nations faced with these costs may encounter further challenges as the impact of climate change will most likely fall disproportionately on the poor, thus also raising issues of fairness and inequality. As an intergenerational problem, the consequences of actions taken by the current generation will have the greatest impact on future generations. While it is intuitive that the current generation has some ethical responsibility to leave an inhabitable world to future generations, the extent of this obligation is less clear. Answer the following questions in this regard:***
- (a) To what extent do humans have a moral responsibility to future generations that are yet to be born?***
- (b) Do developed countries have a greater responsibility to take action and bear more costs of controlling climate change than developing countries?"***

**Approach:**

- Briefly introduce about the moral problem of climate change.
- With reasoning explain the extent of moral obligations of current generation to future generation.
- Discuss about CBDR and explain the reasons why CBDR should be the way forward in climate negotiations.
- Write a conclusion highlighting the future course of action.

**Answer:**

The fight against climate change is political, economic, socio-cultural and technological but most importantly ethical/moral where humans as individuals and societies need to limit their greed and selfishness and think about the future generations and their survival.

**a) We don't inherit the earth from our ancestors; we borrow it from our children.**

The extent of moral responsibility of the present generation towards future generations can be understood from following:

- We have to understand that once emitted a substantial proportion of climate emissions typically remain in the atmosphere for hundreds of years. This means that while the current generation benefits, the costs of its actions will be borne by the future generations.
- Also, the benefits are comparatively modest for e.g., powerful vehicles, but many of the projected costs are severe for e.g., severe flooding and famine.

- If we don't tackle the issue of climate change as an issue of intergenerational ethics, future generations will follow suit. They may feel entitled to emit more, which can make matters even worse for their successors.
- Happiness of future generations can be maximized by a reasonable investment in the present.

Therefore, the Paris Summit, 2015 and SDGs highlighted the moral responsibility of the present generation towards the future generations. Each country came up with its INDCs (Intended Nationally Determined Contributions) to owe such responsibility and leave the world a better place than they inherited.

- b) It is by and large accepted that developed countries ought to be held responsible more for the current predicament of our world and therefore need to do more to improve it. The United Nations recognises the CBDR (Common but Differentiated Responsibilities) principle in the climate change negotiations. It forms a key component of the Paris agreement as well.**

Arguments supporting CBDR are as follows:

- Increase in CO<sub>2</sub> and other GHGs in the Earth's atmosphere are a result of fossil fuel based industrial activity in the industrialized countries of the world. Those least responsible for past emissions are likely to suffer the most serious impacts of climate change.
- While developing countries like India and China are major GHG emitters, the per capita consumption in these countries is very low compared to developed countries.
- If developed countries do not make reductions in their emissions, there will be a progressively smaller carbon space available to accommodate the development needs of developing countries.
- Developing countries currently cannot sustain themselves without relying heavily on fossil fuels. These countries face the challenge of food security, housing, and employment along with global warming.
- Developing countries lack the finances or the technology to develop alternative green technologies to sustain their economies. So, it is the moral responsibility of the developed countries to provide financial and technological support to developing nations.

The only way forward is a path of shared responsibilities where all stakeholders are ready to fulfill their obligations, grow sustainably and provide a healthy and habitable world to our future generations.

- 3. "You are representing India in an international bidding for oil exploration in a country. Other, richer countries are also bidding for the project. You are sure that your bid of exploration is better as well as cheaper than that of others, and that you will definitely win the bid. A day before the auction, you come to know that other countries are employing every means, including bribing the authorities for being successful. Some of the officials of the home country have also contacted you and made some demands in exchange for assurance of India winning the bid. You are aware of the criticality of this bid in terms of domestic economic and strategic implications. Based on above information, answer the following questions. (a) Specify the ethical dilemma(s) that you face in this situation. (b) Do ethical concerns really matter in international transactions or are they secondary to domestic interests? (c) What will be your course of action in the above situation? Justify with merits and demerits."**

**Approach:**

- Identify the ethical dilemmas that you face.
- Highlight the importance of ethical concerns in international transactions vis a vis domestic interests.
- Then mention the course of action that you would follow. Justify it by taking into account the merits and demerits of the decision.

**Answer:**

a) The situation in this case study presents the following ethical dilemma:

The dilemma is whether to pay the bribe vs being upright and avoid the temptation to pay.

The former action may help India win the bid, but it will be an unethical course of action and may spoil the image of the country in the long run when the truth comes out in the public. It will also have adverse consequences for India's relations with the countries involved in bidding process. Moreover, this is inimical to a healthy competition, level playing field and innovation. This action will also set a wrong example to others. The action is not only unethical but also illegal as regards to Indian laws. It may not bring in me a sense of accomplishment or content.

The latter course of action may lead to a possible defeat in the bidding process, setback for my career and economic and strategic implications for the country. But it is the right path to follow.

b) Advocates of national interest in international relations argue that national interests are paramount. As Henry Kissinger has said- "there are no permanent ally or permanent enemies, only interests are permanent". These arguments are based on the fact that the government of a country primarily works on the behalf of its citizens and thus it is bound to uphold their interests. The political party in power has to face general elections regularly and its report card of performance evaluates not only domestic but international actions as well. Hence, national interest alone should be paramount in international relations.

However, these arguments suffer from certain inconsistencies. If the national interest alone is taken into account then wrong doings like colonization, regime change, arm twisting of weaker nations etc. will be justified. Further, there exists a wide inequality internationally and if strong nations justify their actions solely based on the national interests than this gap will further widen. Moreover, the global commons will not survive and sustainable development will remain a distant dream.

Thus, fairness, justice, apathy, sustainable development of whole world, equity etc. are ethical principles which are as important as national interests and really matter in international relations.

c) In such situation, I will pursue the following **course of action**:

- a. Verifying, at my own level, the correctness of information related to bribery activities in the auctioning process.
- b. Informing my seniors, seeking their advice as they might have faced similar situation earlier.
- c. Approach the head of the authorities handling the whole process of auction and inform them about inconsistencies which has come to notice and demand a fair and transparent bidding process.
- d. If grievances are not addressed at that level then, after taking my seniors into confidence, we can approach other higher authorities of home country like judiciary for intervention.

Student Notes:

I will also demand that the officials involved in bribe-seeking activities must be punished which will deter such malpractices in future. Those nations who are involved in unfair practices must also be punished (by way of fines, blacklisting them or cancelling their bids).

#### **Justification of such course of action**

In international transactions, sometimes unethical actions like bribery are also sought to be justified in the name of national interest. However, on a closer look, such actions are clearly against the national interests in reality. The revelation about involvement in bribery would jeopardize the international relations of future generations of our country.

Further, a single contract cannot be so important to our country that we sacrifice our moral standards and higher values maintained for so long. Moreover, corruption can never be the true foundation of prosperity. The gains obtained from it corrupt the whole society.

By following the stated course of action, I will display faith in the governance of home country, uphold our moral values and there will be higher chances of fair bidding process. As India's bid is better and cheaper, it will ensure India's success. It will generate the good will for our nation among the people of that country; set a right example against corruption in international transaction. Overall, it will be a right step towards the righteousness which we expect in international relations.

4. ***The steady decline in sex ratio suggests that marked improvement in the economy and literacy rates do not seem to have had any impact on this index. In fact, the availability of new technology and its easy access for the urban, wealthy and educated have worsened the trend and harmed the status of women in Indian society. (a) Explain why the phenomenon should not be simply viewed as a medical or legal issue and more attention should be given to the ethical issues involved. (b) Give some suggestions to tackle the problem of declining sex ratio. (c) Discuss the ethical dilemma involved in Right to abortion vs. Prevention of female foeticide. How can this be resolved?***

#### **Approach:**

- Give a brief introduction of the case study
- Provide moral values and stakeholders involved in the given case study.
- Explain why the phenomenon must not be seen as medical or legal issue.
- Explain how declining sex ratio involves ethical issues.
- Provide some suggestions to tackle the problem.
- Discuss the ethical dilemma involved in right to abortion vs prevention of female foeticide.

#### **Answer:**

In a large sample of population, biological probability suggests that distribution of male and female children should be fairly equal. However, a continuously declining sex ratio suggests human interference to keep the sex-ratio adverse towards female. Use of technology has only aided in this effort. Female foeticide is indeed a blot on the society who prays goddesses. The given case study highlights how the wealthy, educated, urban people are misusing technology for selective sex abortion and have contributed to declining sex ratio and have harmed status of women in the society.

The situation reflects patriarchal mindset and involves the unborn girl child, parents, the government and the society at large, as stakeholders.

(a) The phenomenon should not be simply viewed as medical or legal issue as it is not only about the falling Maternal Mortality Rate (that increases due to such procedures carried out by quacks) or about the lapses in the government to implement the laws such as Pre-Natal Diagnostic Technique Act effectively. It is an issue of ethical concern given the following reasons:

- Majority of the affected women are actually forced to go for such abortions hampering their right to life and right to choose.
- Mother of a female child is blamed for her birth and miseries of the family. She is cursed and ill-treated. Even prosperity of the family does not bring attitudinal change towards the girl child reflecting gender bias in society
- The skewed sex ratio in the society gives birth to anti social behaviour and violence such as rapes in case of but not limited to lack of marriageability and family prospects. Thereby, decreasing values of respect towards women.
- The demand for sex workers may increase which may further give rise to human trafficking as well as objectifying or commodifying women in terms of sexual desires of men
- Technology which is for the betterment of humanity is being used to deprive the right to life of an unborn being.
- It is also symbolic of the non-recognition of women's contribution to society mostly because of the non-monistic nature of their work.

(b) Suggestions to tackle the problem of declining sex ratio:

- Strict implementation of laws banning female foeticide and dowry, including fast track courts to deliver on these cases
- Sensitisation of the public by mass awareness campaigns as well as Free and compulsory education for girls
- National helpline number to rescue the would-be mothers
- Reservation for women in specific occupations as a temporary means to achieve an attitudinal change.
- Moral education in schools and colleges to ensure inculcation of a sense of gender equality among people.

Female foeticide should become a political, economic and reformist issue instead of being just a social issue. The schemes such as Beti Bachao, Beti Padhao is a good start in this direction

(c) In India, legally, abortion of a fetus not older than twelve weeks is allowed. This can be extended up to 20 weeks if two medical practitioners authenticate that either mother's life is in danger or the fetus is seriously handicapped. Ethical dilemma revolving around this are:

- If mother's life is in danger, there should be no time limit on termination of pregnancy (Supreme Court judgement). But then, it widens the scope for sex determination and consequent sex selective abortions.
- In the garb of finding out disabilities in the fetus, sex of the child can be examined.
- The right to safe and legal abortion is an essential right of self-determination. Not providing that right is to turn women into birth-machines, but how can it be determined that the woman's choice is not forced.
- Right to abortion is 'Pro-Choice', while prevention of female foeticide is 'Pro-Life'.
- Right to abortion comes within realm of Right to Privacy but looking at the sexist and patriarchal set up of Indian society, decisions about pregnancy are sometimes out of the control of women.

Since high number of women die due to unsafe abortions, so it must be legal, but the Pre-Conception Pre-Natal Diagnostic Techniques Act should be implemented strictly. There should be mandatory registration of pregnancies and all abortions should be monitored. Reasonable criteria for abortion should be set and more stress should be given upon contraception. Complicated abortions should be handled on case-to-case to basis, monitored by the Medical Boards in government medical centres.

There is no ethical dilemma as far as choice between female feticide and right to abortion is concerned. Former is criminal and unethical, while the latter is still a matter of debate. The only dilemma arises whether one considers killing an embryo (irrespective of sex) as an exercise of right to choose or an act of murder. Going forward, this debate has to be resolved by societal discussion and evolving ethical standards. But a right to choose cannot become a means for selective sex abortion.

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# EMOTIONAL INTELLIGENCE - CONCEPTS, AND THEIR UTILITIES AND APPLICATION IN ADMINISTRATION AND GOVERNANCE

Student Notes:

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# 1. Emotions: The Essential Constituent of Human Psyche

Emotions are complex reactions that involve

- Intense subjective feelings such as joy, anger, sorrow etc.,
- Emotional expressions
- The ability (or abilities) to understand emotional information i.e. the ability to “read” the emotional reactions of others.
- Discrete and consistent responses to internal or external events which have a particular significance for the organism

In other words, **emotions are generally understood as intense feelings, favorable or unfavorable, that are directed at someone or something.**

They are biologically given and a result of evolution because they provided good solutions to ancient and recurring problems that faced our ancestors. Therefore, they are the essential constituent of human mind. It is a well-established fact that it is almost impossible for humans to live without emotions.

## 1.1. Structure of Emotions

Though, there is no unanimity, but it is generally believed that emotions, as complex reactions, consist of three major components. These are:

- **Physiological changes within our bodies**- like shifts in heartbeat, blood pressure etc.
- **Subjective cognitive states**- the personal experiences we label as emotions
- **Expressive behavior**- outward signs of these internal reactions.

## 1.2. Classification of Emotions

### 1.2.1. Primary emotion and Secondary emotion

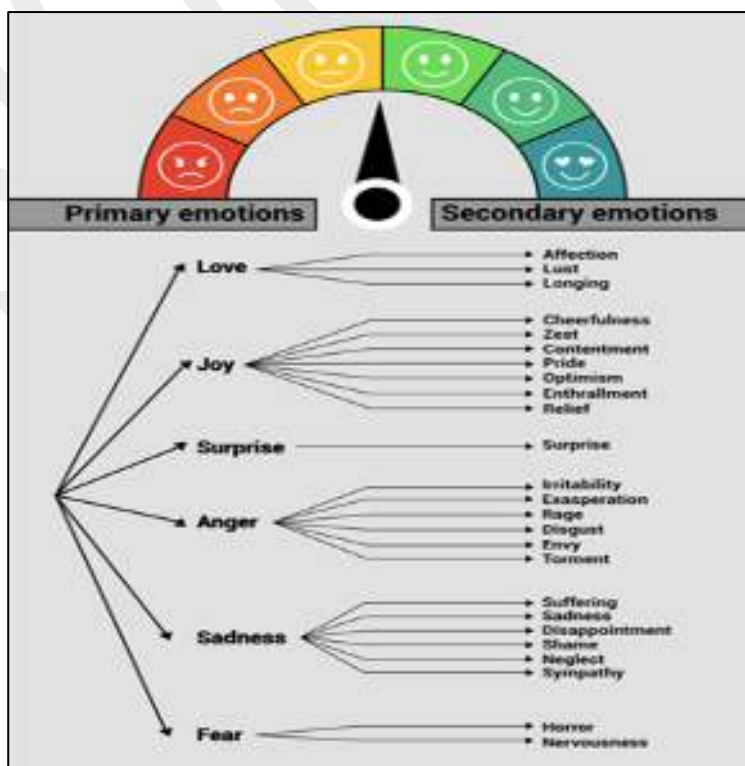
#### Primary emotion

Primary emotions are direct emotional reactions to a situation, and they are called primary because they come first. It is your very first reaction to a situation or event, and they alert you about your needs.

A typical example is if you get angry as a result of someone being ruthless to you or someone you love, and you feel a need to protect or set boundaries. Then the feeling of anger is a primary emotion and it helps you to protect what is important to you by making it more likely you assert yourself.

#### Secondary emotion

A secondary emotion is an emotional response to a primary emotion, thus an emotion about what you feel. For example, if someone who is important to you says something hurtful to you,



you may become sad. That would be a primary sadness. If experiencing sadness for some reason might be difficult to you, you may also notice that you get angry. The anger then is a secondary reaction, since it is a reaction to your sadness.

### 1.2.2 Positive and Negative Emotion

#### Positive Emotion-

Certain emotions like joy, interest, contentment, love, and similar that are pleasant and rewarding, are called positive emotions.

They open up new possibilities and build up our personal resources.

#### Negative Emotion

On the other hand, negative emotions are associated with actions that probably helped our ancestors save their skins: escaping, attacking, expelling poison.

Negative emotions can also be valuable and constructive. For example, persistent distress may motivate a person to seek help, mend a relationship, or find a new direction in life.

There is a natural tendency that people enjoy positive emotions while treating negative emotions as misery.

## 2. Concept of Intelligence

Intelligence is defined as the capacity of an individual to think rationally, act purposefully and deal effectively with his environment. In other words, it is the mental quality that consists of the abilities to learn from experience, adapt to new situations, understand and handle abstract concepts, and use knowledge to manipulate one's environment.

"The true sign of intelligence is not knowledge but imagination" – **Albert Einstein**.

"I know that I am intelligent, because I know that I know nothing" – **Socrates**.

It can be more generally described as the ability to perceive or infer information, and to retain it as knowledge to be applied towards adaptive behaviors within an environment or context.

Although, different investigators have emphasized different aspects of intelligence in their definitions, they **all emphasized upon some sort of cognitive energy as the ultimate ground of intelligence**. It is this cognitive ground which enables a person to effectively use his abilities. However, their emphasis on the rational component as the most important constituent of intelligence, was discarded by some later thinkers.

### 2.1. The Social Aspect of Intelligence

**Social Intelligence (SI)** is the ability to get along well with others, and to get them to cooperate with you. These are sometimes simplistically also referred to as "people skills."

The original definition was given by **Edward Thorndike** in 1920 as "**the ability to understand and manage men and women and girls, to act wisely in human relations**".

Social intelligence is a person's competence to understand his or her environment optimally and react appropriately for socially successful conduct. Thus, SI includes an awareness of situations; the social dynamics that govern these situations, and knowledge of interaction styles and strategies that can help a person achieve his or her objectives in dealing with others.

It also involves a certain amount of self-insight and a consciousness of one's own perceptions and reaction patterns. Thus, SI is the ability to connect with people and influence them effectively.

It is equivalent to **interpersonal intelligence**, one of the types of intelligence identified in Howard Gardner's theory of multiple intelligences. Some authors have restricted the definition of social intelligence primarily to deal only with the knowledge of social situations, perhaps

more properly called social cognition or social marketing intelligence, as it pertains to trending socio-psychological advertising and marketing strategies and tactics.

Since, Social Intelligence is a combination of skills expressed through **learned behaviour**, it can be developed by assessing the impact of one's behaviour on others. This can be measured as the degree to which one is successful in dealing with others.

One can experiment with new behaviours and new interaction strategies. In **the simplest terms, this is the ability to "get along with people,"** which - it is assumed - people learn as they grow up, mature, and gain experience in dealing with others. Some examples of the people high on SI include Mahatma Gandhi, Dalai Lama, and Nelson Mandela etc.

## 2.2. From Social Intelligence towards Emotional Intelligence

While some practitioners have included "people skills," or Social Intelligence in EI theory, but in practical terms it makes more sense to think of **EI and SI as two distinct dimensions** of competence.

Social intelligence (Gardner's "interpersonal intelligence") is separate from, but complimentary to emotional intelligence (Gardner's "intrapersonal intelligence"). But we need both models in order to understand ourselves and the way we interact with others. Some deficits in SI arise from inadequate development of EI; conversely, some deficits in SI may lead to unsuccessful social experiences which may undermine a person's sense of self-worth which is part of EI.

## 3. Relation Between Emotions and Intelligence

The traditional notion of intelligence as logical or mathematical ability invariably reduces it to **cognitive ability**. Cognition refers to processes such as memory, attention, language, problem solving, and planning. Many cognitive processes often involve so-called controlled processes, such as when the pursuit of a goal (e.g., maintaining information in mind like retaining some facts) needs to be protected from interference (e.g., a distracting stimulus like a nagging noise).

Traditionally, it was believed that emotion, being non-cognitive, can't facilitate the cognitive processes. In fact, it was believed that emotions, were counter to cognitive task, because they are intense feelings.

Thus, the earlier notion was either of **no relation** between emotion and intelligence **or negative relation**. For example, when we are experiencing negative emotions, like anger or depression, then it becomes very difficult to perform a constructive task, like solving a puzzle, or making good decisions.

However, Mayer and Salovey, in their concept of Emotional Intelligence (EI), discarded this necessarily negative relation between Emotions & Intelligence. It was realized that emotions aren't necessarily bottlenecks in our thinking or decision making. This leads us to the topic of Emotional Intelligence.



# EMOTIONAL INTELLIGENCE

### Evolution of EI concept

**Step 1** Until the last century, the understanding of intelligence was strictly related to cognitive functions such as:  
-memory -learning -problem-solving

**Step 2** In 1985 Howard Gardner published a groundbreaking work 'Frames of mind: The theory of multiple intelligences'

**Step 3** Peter Salovey and John D. Mayer coined the term 'Emotional Intelligence' in 1990 describing it as "a form of social intelligence that involves the ability to monitor one's own and other's feelings & emotions, to discriminate among them, & to use this information to guide one's thinking and action".

**Step 4** In 1995 Daniel Goleman published his book 'Emotional Intelligence' & was the first to apply this concept to business

### EI components according to Goleman:

- Self-awareness** Knowing how we are feeling and using our gut feeling to help drive decision making
- Self-regulation** handling our own emotions so that they don't interfere but facilitate our growth
- Motivation** passion for achievement and zero tolerance for status quo
- Empathy** considering feelings of other, understanding why other people feel and behave the way they do
- Social skill** means of interacting with others that help boost productivity, improve relationships, resolve disputes

Model described by Daniel Goleman is today the most widely accepted & used model for EI

### COMPETENCIES

**Self-Awareness**  
Self-Awareness is understanding one's own emotions and their effect on others. Self aware leaders are confident and candid. They can realistically assess and talk about their strengths & weaknesses, often with a self-deprecating sense of humor.

**Self-Regulation**  
Self-Regulation is the ability to control or redirect disruptive impulses. Essentially, to think before acting. Effective self regulators tend to be trustworthy, comfortable with ambiguity, able to suspend judgement, and are open to change.

**Motivation**  
Motivation is a passion to work with energy and persistence for reasons beyond money or status. It means being driven, goal-oriented, optimistic, and committed to the organization.

**Empathy**  
Empathy is the ability to understand the emotional needs of others and to treat them accordingly. Empathetic leaders are good at developing and retaining talent, serving clients and customers, & managing cross cultural sensitivities

**Social Skill**  
Social skill is proficiency, managing relationships, developing networks, building rapport, and finding common ground. It makes leaders more persuasive and helps them create change

### In 2020

1. Complex Problem Solving
2. Critical Thinking
3. Creativity
4. People Management
5. Coordinating with Others
6. Emotional Intelligence
7. Judgment and Decision Making
8. Service Orientation
9. Negotiation
10. Cognitive Flexibility

### In 2015

1. Complex Problem Solving
2. Coordinating with Others
3. People Management
4. Critical Thinking
5. Negotiation
6. Quality Control
7. Service Orientation
8. Judgment and Decision Making
9. Active Listening
10. Creativity

## 4. Emotional Intelligence: Integration of Emotions and Intelligence

The term **Emotional Intelligence** was introduced in 1990 by **Mayer and Salovey**. It is described as a set of skills that involve the ability to monitor one's own and other's feelings/emotions, to discriminate among them, so as to use that information to guide one's thinking and action. Thus, it integrates emotions and intelligence.

Simplistically speaking, **it is the ability to channelize emotions for constructive purposes**. It must be known that emotional intelligence is not the opposite of intelligence. It is not the triumph of heart over head, rather, the unique intersection of both.

Mayer and Salovey introduced this concept as a challenge to the traditional notion of intelligence as monolithic ability i.e. only focused on cognitive ability, and to the thinkers who held emotions as obstructive to cognitive activity. EI includes **the intra- and inter-personal intelligence**, i.e. the ability to know oneself and others, in terms of abilities, current emotional state.

### 4.1. Model of Emotional Intelligence by Mayer and Salovey

Mayer and Salovey described EI more specifically in 1997 by outlining the competencies it encompasses. They organized those competencies along the four branches:

#### Four Branch Model

- **Perceiving emotions:** It refers to the ability to perceive i.e. recognize emotions and also the ability to specifically categorize the current emotional state, in oneself and in others. For example, it enables the person to understand the kind of feeling he/she or other person is going through.
- **Understanding emotions:** It is the ability of a person to comprehend the emotions in the given messages better. It also enables one to understand the relationship between emotions, thought, and behavior. For example, with this ability one can accurately understand as to how a particular emotion can affect the thinking or action of oneself and that of others.
- **Using emotions to facilitate thought:** This model is a logical corollary of the aforementioned models, i.e. from the above two it can be deduced that emotions can act as facilitators of thinking by channelizing emotions for constructive purpose, like making appropriate decision or solving some problem.
- **Managing emotion:** It refers to the ability to take responsibility for one's emotions, and converting the negative emotions into positive ones. Its utility lies in generating the desirable emotions in one or in others, which are conducive to the task at hand. It is because emotions are energy for motions; therefore, if desired emotions are created then efforts in the direction of task can be made easily. For example, motivating oneself and others to perform some task, like focusing on studies when otherwise it is difficult to focus; or managing the stressful situation without losing temper etc.

### 4.2. Model of Emotional Intelligence by Daniel Goleman

Goleman further refined the concept of emotional intelligence in 1999.

#### Five Component Model

- **Self-awareness:** It is the ability to recognize and understand personal moods and emotions and drives, as well as their effect on others. Hallmarks of self-awareness include self-confidence, realistic self-assessment, and a self-deprecating sense of humor. Self-awareness depends upon one's ability to monitor one's own emotion state and to correctly identify and name one's emotions.
- **Self-regulation:** It is the ability to control or redirect disruptive impulses and moods, and the tendency to suspend judgment and to think before acting. Some of its hallmarks include trustworthiness and integrity; comfort with ambiguity; and openness to change.
- **Internal motivation:** This refers to a passion to work for internal reasons that go beyond external rewards like money and status. This can be driven by an inner vision of what is important in life, a joy in doing something, curiosity in learning, a flow that comes with being immersed in an activity. Its hallmarks include a strong drive to achieve, optimism even in the face of failure, and organizational commitment.
- **Empathy:** It is the ability to understand the emotional makeup of other people. It involves imaginatively stepping in someone's shoes and emoting as per the context. It is a skill that

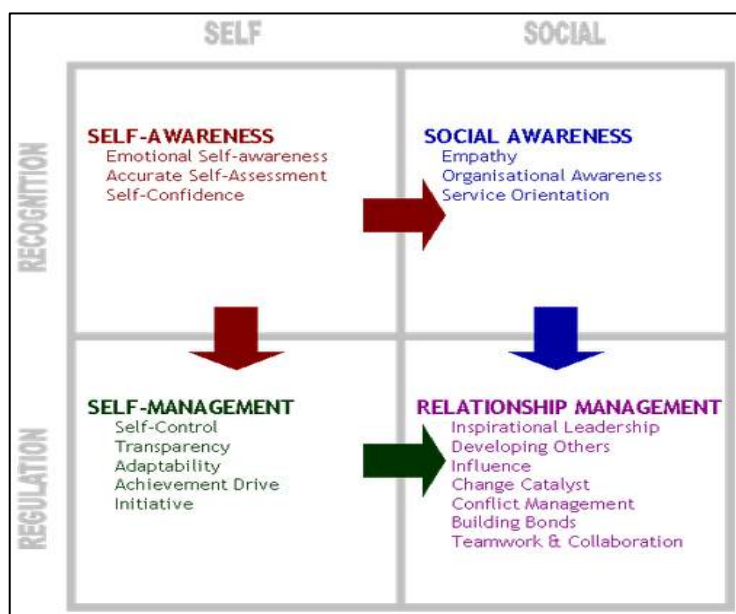
helps one treat people according to their emotional reactions. Its hallmarks include expertise in building and retaining talent, cross-cultural sensitivity

Three kinds of empathy are important to emotional intelligence:

1. **Cognitive empathy** – the ability to understand another person's point of view;
2. **Emotional empathy** – the ability to feel what someone else feels;
3. **Empathic concern** – the ability to sense what another person needs from you.

Cultivating all three kinds of empathy, which originate in different parts of the brain, is important for building social relationships.

- **Social skills:** It includes proficiency in managing relationships and building networks, and the ability to find common ground and to build rapport. Hallmarks of social skills include effectiveness in leading change, persuasiveness, and expertise building and leading teams.



Thus, Goleman's model is more comprehensive and is most suited for effective functioning in a social system, especially in governance and administration.

### An Example of Emotional Intelligence

- Some of the greatest moments in human history were fueled by emotional intelligence. When Martin Luther King, Jr. presented his dream, he chose language that would stir the hearts of his audience. He promised that a land "sweltering with the heat of oppression" could be "transformed into an oasis of freedom and justice."
- Delivering this electrifying message required emotional intelligence—the ability to recognize, understand, and manage emotions. Martin Luther King demonstrated remarkable skill in managing his own emotions and in sparking emotions that moved his audience to action. King delivered "a perfectly balanced outcry of reason and emotion, of anger and hope. His tone of pained indignation matched that note for note."

### Emotional Intelligence and the Bhagavad-Gita

1. Attachment is the root of all misery, says the 'Gita'. Attachment leads to desire; desire when not fulfilled leads to anger; anger to delusion; delusion to indiscriminate action which in turn leads a man to his ruin. Attachment is the web that ensnares a person in this materialistic world
2. The way to emotional stability is to remain unattached to the fruits of action
3. One must follow and fulfill his '**swadharma**', his obligatory duties. When he does that without expecting anything in return, he becomes a 'karma yogi' which is the first step towards becoming a '**sthithapragnya**' – the emotionally stable person.
4. It is the duty of a person says 'Gita', to act according to his dharma. Upholding this dharma of his without getting attached to the fruits of his action is the best way to tackle any conflicting situation.
5. One should not claim the fruits of his actions because the moment he does that, he is bound. This bondage will cloud his sense of right and wrong and thus lead him to misery.
6. One should focus on one's duty alone. When a person firmly anchors himself to this principle he is not swayed by any confusion or dilemma. His mind is clear; his judgment is not muddled; he takes the right decisions; he succeeds in life.

How does One choose between conflict Obligation Actions which result in societal well being – **Lokasangraha me vapi sampasya n kartumarhasi** – is the answer. That which denounces selfishness and results in the well being of the society at large is the best choice.

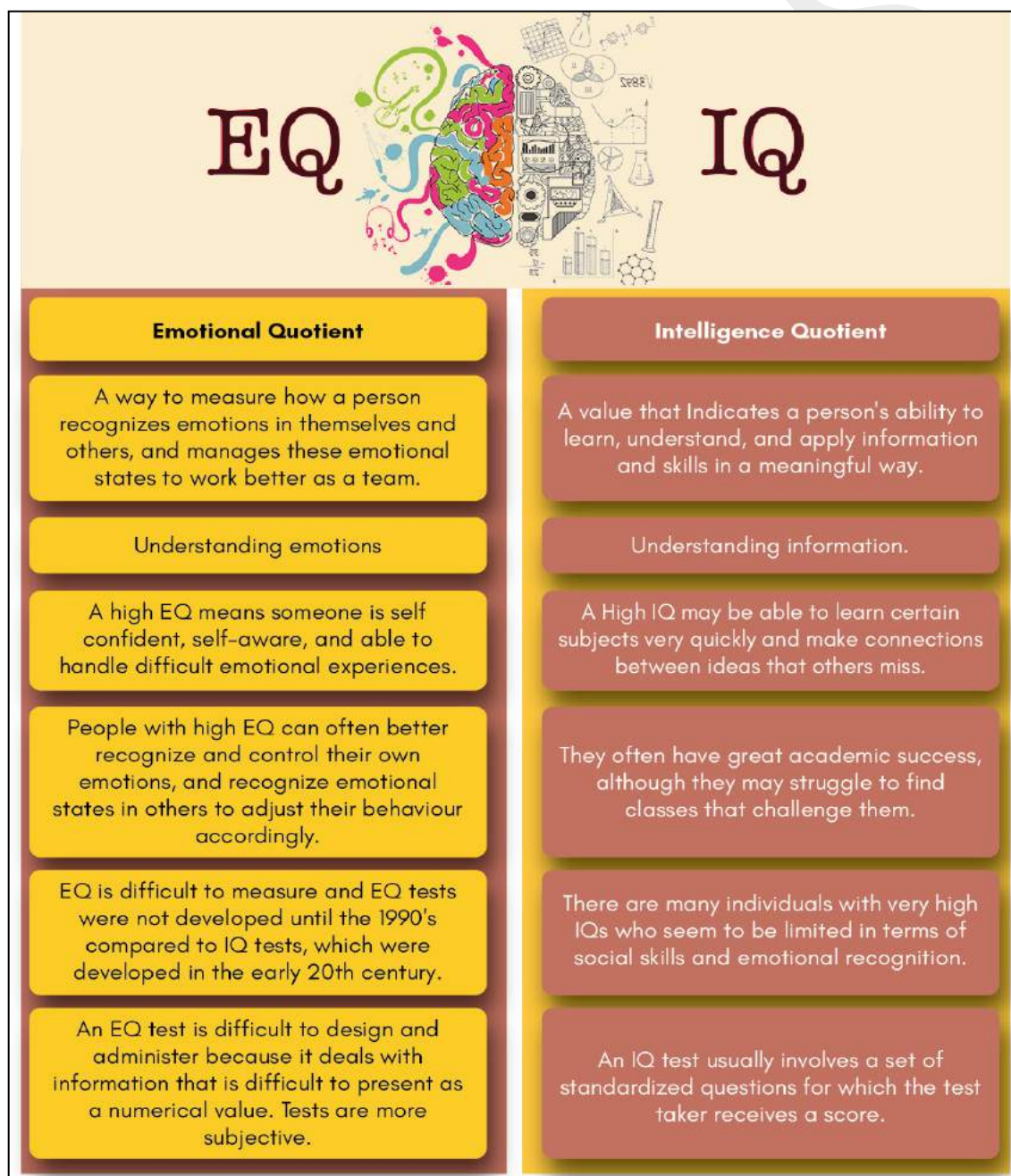
Student Notes:

## 5. A Perspective on Intelligence Quotient (IQ) versus Emotional Quotient (EQ)

### Which is Better-EQ or IQ?

EQ is believed to be a better indicator of success at the workplace. People with high EQ usually make great leaders and team players because of their ability to understand, empathize, and connect with the people around them.

According to Goleman, success at workplace is about 80% or more dependent on EQ and about 20% or less dependent upon IQ. As a result, many persons, high on IQ, may not be successful in life, while contrary to this, most successful people are high on EQ.



The success of most professions today depends on our ability to read other people's signals and react appropriately to them.

It's not the smartest people that are the most successful or the most fulfilled in life. **There are people who are academically brilliant and yet are socially inept and unsuccessful at work or in their personal relationships.**

Intellectual intelligence (IQ) isn't enough on its own to be successful in life. One's IQ can get him into college, but it's **the Emotional Intelligence that manages the stress and emotions** when facing final exams or during an interview.

EQ, on the other hand, is the ability to effectively use IQ and all other potentialities that an individual possesses to the greatest advantage. Thus, in a way, IQ is like a vehicle, but it is EQ which determines the destination. As a result, EQ is more important than IQ in reaching the highest potential development.

## CASE STUDY ON EMOTIONAL INTELLIGENCE

The tale of 2 civil servants will elaborate the point. Ravi and Sunil having same credentials, superb grade point averages from leading schools and universities, going for identical professional training as probationers, moment they join their respective postings as fresh magistrates, all similarity disappear. Though academically brilliant, Ravi believed that it was his administrative and technical proficiency that counted most on the job. Though not brilliant academically than Ravi, Sunil was adept interpersonally. On the job, few years later, Ravi was seen as a better administrator ending up being transferred every 6 months and Sunil, was recognized as a person who could work well in a team and take initiatives, devoting adequate time to his work, know his co-officers, projects and concerns and believed that one of the most effective ways for him to be accepted into the team was by helping out. Ravi failed to realize that building bonds was a crucial competence for his job. His co-officers knew that he was administratively adept, but they had little faith in his ability to work in a team. Sunil showed excellence in several emotional intelligence competencies which Ravi despite having an impressive curriculum vitae needed to master.



## 6. Importance of Emotional Intelligence

The chances of succeeding are skewed towards people who are better able to manage themselves and others emotionally; one's who are likeable and trustworthy. Research shows that more than 80% percent of success is due to skills in "human engineering," personality and ability to communicate, negotiates, and leads. Only 15 percent is due to technical knowledge.

Additionally, Nobel Prize winning psychologist, **Daniel Kahneman**, found that people would rather do business with a person they like and trust rather than someone they don't, even if the likeable person is offering a lower quality product or service at a higher price.

Hence, instead of exclusively focusing on conventional intelligence quotient, one should make an investment in strengthening his/her EQ (Emotional Intelligence). The concepts of EQ may be difficult to measure, but their significance is far greater than IQ.

Simply put, emotional intelligence is that "something" within us that help us to sense how we feel and enables us to truly connect with others and form a bond. It gives us the ability to be present and listen to someone when they most need it.

It is that sense of internal balance within us that enables us to keep our composure, make good decisions, communicate successfully, and maintain effective leadership even when under stress. To be specific,

- **Profession:** Proficiency in EI is becoming a vital prerequisite in prolonged or intense areas of 'emotional work' such as nursing, social work, the service industry, and management roles.

Student Notes:

- **Relationship:** Emotional intelligence is an integral part of forming and developing meaningful human relationships.
- **Health:** The ability to manage emotions and stress – and the ability to solve personal, as well as interpersonal problems, are also significantly related to physical health. As accumulated and persistent stress leads to the various cardiovascular diseases.
- **Decision making** - Whether we like it or not, our emotions do influence our decisions. Positive and negative emotions can both lead to bad decision-making. **People who are emotionally intelligent don't remove all emotions from their decision-making. They remove emotions that have nothing to do with the decision.**
- **Social Harmony:** Emotional intelligent people can understand other outrage or outburst thus avoid violent conflict and preventing communal issue. Emotional intelligence can help eradicate many social evils. For example-Impact of emotional intelligence on Racism- Emotional Intelligence (E.I.) is vital to having all parties be heard and increases the chance of a mutually beneficial understanding and resolution. **The Black Lives Matter movement** is asking for change and action. It is diving into having a deeper conversation. It is requiring society to **listen** to find the most effective way to ensure **what black voices are saying is being received.**
- **Differentiate between Needs and wants:** The emotionally intelligent mind is able to discern between things that they need versus things that would be "nice to have" that classify more aptly as wants. A need, particularly in the context of Abraham Maslow's "Hierarchy of Needs" is the basic level stuff like safety, survival and sustenance. Once those things are met, then we can progress to other needs and of course, wants. A "want" is a big house, nice car, a Smartphone, etc. We do not need those things to survive, but rather we want them based on our own personal desires or what we



#### An Illustration

An accountant, Julie, working on a long-term and complex project needed to learn new skills that no-one else in the organization had. For a time she was becoming disheartened and not getting the support she needed because her manager did not sufficiently understand the complexity of the task.

After being left on her own for several weeks she was making slow, steady progress.

Unexpectedly, she got an email from her manager which was very positive about her progress and her approach to the project. The email was a total surprise as it was atypical of that manager to send anything like that. The result was a burst of enthusiasm from Julie and a greater willingness to battle on, learn more and put "the slog" in to meet the unrealistic deadline.

The manager was showing his ability to manage the emotions of others which is the sixth dimension of emotional intelligence.

From this example, it is illustrated that how generating appropriate emotions in the colleagues or subordinates can do wonders in accomplishing difficult goals. The idea is emotions are the energiser of our behaviour, therefore emotional intelligence enables us to manage emotions and sustaining them.

## 7. Qualities of people with Emotional Intelligence

Student Notes:

There are some general qualities which are found in the people with high EI.



- **Acting with integrity.** Because integrity means consistency in what we think and what we do. Therefore, if one is emotionally intelligent then he would be aware of his inner self and the surrounding environment. Therefore, there would be minimum chances of mismatch.
- **EI leads to reduced stress levels.** It is because the emotionally intelligent people are good at managing and regulating their emotions. Authenticity and legitimacy in action and behavior
- **Improved career prospects.** It is because, every organization is a social system where people form an inter-related and inter-dependent organic whole. People with higher EI are better at social relationships.
- **Improved communication** with others is the very basic attribute of EI.
- **Feeling confident and positive,** because of self-awareness and self-regulation.
- **Respect from others:** It is because EI brings in tactfulness, sensitivity, cooperativeness, and good listening qualities etc. which are necessary for favorable rapport.

- People with high EI are **more empathetic**, because understanding others' emotions and their perspective is also essential for EI. Improved inter-personal relationships and therefore better satisfaction of social and esteem needs.
- Learning from mistakes, because EI makes a **person assertive, bold, and responsible** for their deeds. Therefore, EI reduces the tendency of individuals to repeat mistakes.
- **Benefit from criticism**: Nobody enjoys negative feedback. But you know that criticism is a chance to learn, even if it's not delivered in the best way. And even when it's unfounded, it gives you a window into how others think. When you receive negative feedback, you keep your emotions in check and ask yourself: How can this make me better?
- **Increased creativity**, because it is believed that creativity is facilitated by the positive emotions. On the other hand, EI enables one to manage their stress levels, and be optimistic in the face of adversities.
- **Managing change more confidently**. It is because change is, generally, resisted by the stakeholders and a person high on EI is able to bring the stakeholders on board through persuasion and conviction.
- **Fewer power games** at work, because of **increased cooperation and coordination** induced by emotionally intelligent people at work.
- **Protecting oneself from emotional sabotage**: Emotional intelligence also has a dark side--such as when individuals attempt to manipulate others' emotions to promote a personal agenda or for some other selfish cause. And that's why one should continue to sharpen his/her own emotional intelligence--to protect oneself.

## 8. Can Emotional Intelligence be developed?

There are differing perspectives on the ability of people to develop EI. Some researchers suggest that emotional intelligence can be learned and strengthened, while others claim it is an inborn characteristic. In this context, some thinkers make distinction between emotional intelligence (EI) and emotional quotient (EQ).

EI refers to **innate potentiality**, such that each individual is born with some innate potential for emotional literacy and emotional learning ability, and this potential is realized only when he gets favorable environment.

The core of this **favourable environment** constitutes emotional lessons. These emotional lessons are given to us through **socialization** by our parents, teachers, peers etc., during our childhood or adolescence. The result of which is what is called as EQ.

EQ is hence the **relative measure of one's healthy or unhealthy development of innate EI**. It is possible that two children with the same EI may have different EQ or vice-versa, depending upon the socialization experiences. However, it must be clarified that either of them is not a numerical entity, like IQ.

Emotional quotient is best inculcated from an early age by encouraging qualities like sharing, thinking about others, putting oneself in another person's shoes, giving individual space and the general principles of cooperation. There are tools like toys and games available to **increase** emotional quotient, and children who do not do well in social settings are known to perform significantly better after taking SEL (Social and Emotional Learning) classes. **Adult EQ can also be enhanced, although to a limited extent through effective coaching.**

There are some medical conditions like high functioning autism (HFA) or Asperger's where one of the symptoms may be low-empathy. While some studies found that adults with Asperger's have low-empathy, there have been studies with control groups that indicate EQ can be changed in individuals with HFA or Aspergers.

## 9. Role of Emotional Intelligence in Administration and Governance

Student Notes:

Many civil servants despite being extraordinarily talented, conceptually brilliant and having a very high IQ., are not particularly likeable people. Many of them are aggressive and brutal in their response to the outside world. They have little or no feeling for people around them. They feel physiologically awkward in their relationships; have no social graces or even a social personal life. Being uncomfortable with themselves and making people uncomfortable becomes a routine response in their life.

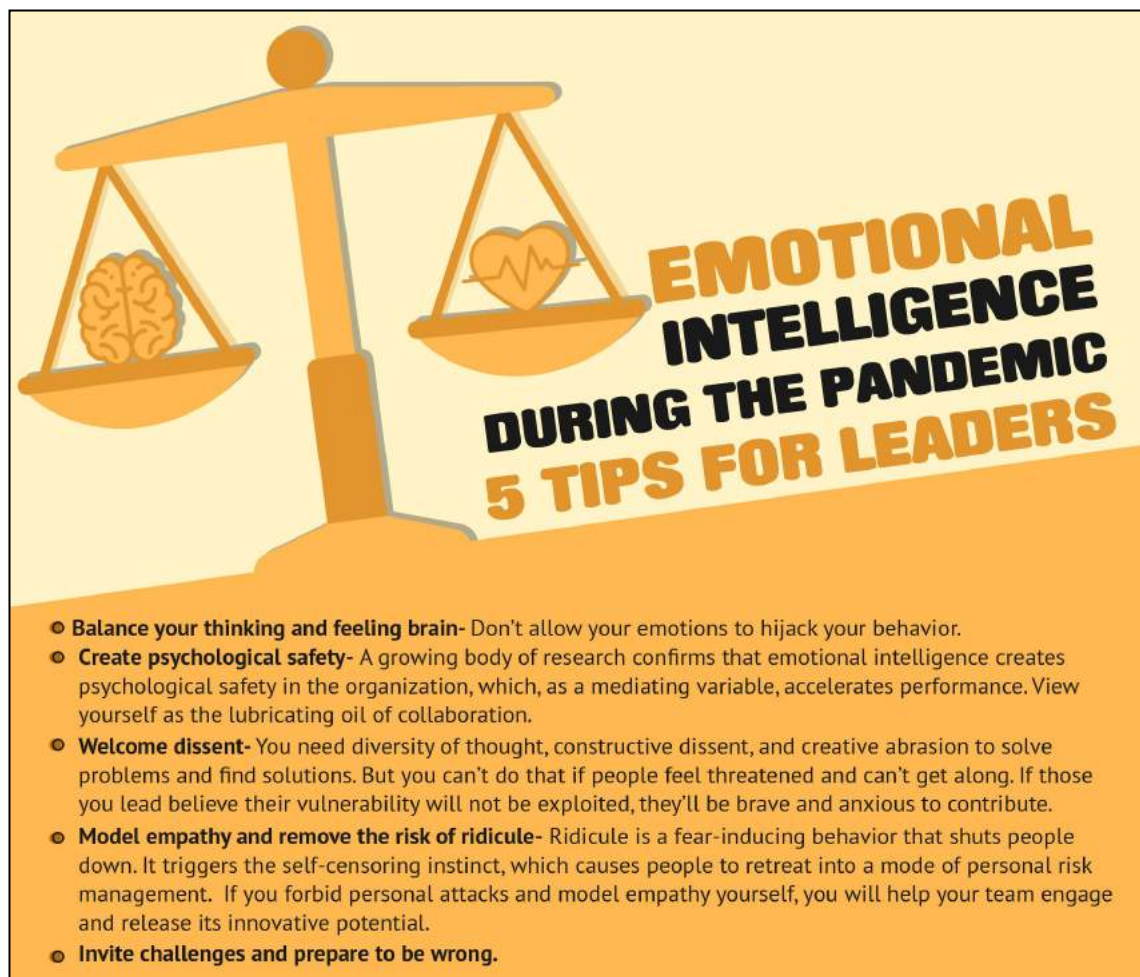
Apart from this, it has also been noticed that risk taking behavior, and bold decisions are needed in discharging the responsibility of public services, especially in a developing country like India.

Civil servants need to be adept at handling people effectively since it forms a major part of their responsibilities. Further, the **civil servants are the trustees of public interest and are entrusted to make policies**. Therefore, they need to be high on EI, **because without EI it would be difficult to be empathetic to different sections of the society**, to be firm in their approach, and to be good change agents.

### 9.1. Traits of an Emotionally Intelligent Administrator

Emotionally intelligent leaders are centered and grounded. Such leaders display a stable mood, aren't erratic or extremely unpredictable in their behaviour, and they tend to possess these traits:

- **High self-regard:** Good leaders have high self-regard. Leaders who claim to know it all tend to be poor leaders. Good leaders know their strengths and capitalize on those strengths, as well as know their weaknesses and fill the gaps with people who have strong skills in these areas.
  - During the seventeen years he was the Prime Minister, Nehru strode the Indian political stage like a colossus. But he never imposed his political will and always had an ear for what others had to say. Though not in favour of linguistic states, he adhered to popular wishes. He did not choose chief ministers but allowed the party organisation at the state-levels to elect their leaders. When courts challenged his land reform programmes, instead of being critical of the judges, he chose to undertake constitutional amendments.
- **Maintain balance in life:** Good leaders also seem to know how to balance their personal and work lives. They tend to avoid burning out by managing their time well. If a person can manage his own life well — including stress, home life, fitness, and diet — then he has a better chance of managing the workplace well.
- **Model the way:** Successful leaders say what they want to accomplish and get it done. The leader needs to walk the talk if he wants others to follow. In emotional intelligence terms, this practice involves assertiveness and independence.
  - People who are assertive and articulate have no difficulty expressing their thoughts, feelings, and beliefs. Also, people, who are independent, listen are to and take in the advice of others, but in the end, make their own informed decisions. Independence implies acting in order to carry things out.
  - **For Example,** Pankaj Jain, the district Collector of Katni district in Madhya Pradesh has set an example for others to emulate. Pankaj Jain could afford to send her daughter to a high profile and costly play school in the city. But he instead chose to send her daughter to a rural childcare centre or Anganwadi for pre-schooling.



- **Inspire a shared vision:** As a leader, one must convince others that he/she understands others needs and have their best interests at heart. Inspiring a shared vision requires a good deal of empathy and optimism for it gives our vision a positive and desirable flavour so that others want to share in it.
  - Our empathy ensures that we hit the right chord in terms of what others want to see and hear from us. One can connect the Various slogan Given by our Leaders for example Mrs Indira Gandhi slogan of "**Garibi Hatao ,Desh Bachao**" and Recently Our Prime minster Stated the slogan of "**Sabka Sath,Sabka Vikas**" is modeled on the line of Inspiring shared vision.
- **Challenge the process:** An emotionally intelligent leader strives for change. He looks for opportunities to improve and grow and also to experiment and take risks. One of the key emotional intelligence skills that are needed in order to challenge the status quo is flexibility.
  - Flexible people are more likely to try new things, take risks, and face new challenges without fear. For example, Abraham Lincoln challenged the existing system of slavery in USA. He was instrumental in Bringing the 13 amendment which abolished slavery.
  - Raja Rammohan Roy, a 19th century moderate leader from Bengal advocated against the cruel practice of the burning of the widow as a way to guarantee that both the widow and the deceased husband would reside in heaven. Thus created a Movement which eventually abolished the cruel practice.
- **Enable others to act:** Success requires a team and leaders, by definition, require followers. Leaders can empower others in a variety of ways. They enable others by fostering collaboration and building trust.

- Successful leaders share power, delegate well, and do what's necessary to help others perform. In terms of emotional intelligence, there is a need of self-regard and interpersonal skills to enable others to act. In order to build successful relationships, you need the skills to engage and relate to others in a meaningful way.
- **Stay composed under pressure:** Good leaders don't flare up or lose control under difficult circumstances.
- **Encourage others:** A key component of this practice involves recognizing the contributions of others. Rewarding people for their participation goes a long way in motivating them to be part of our team. Leaders who encourage others not only need to know how those people feel but need to be capable of building relationships with them, as well.

## 10. Dark Side of Emotional Intelligence

- **Manipulating others-** Emotional intelligence is important, but the unbridled enthusiasm has a dark side as well. New evidence shows that when people hone their emotional skills, they become better at manipulating others.
  - When you're good at controlling your own emotions, you can disguise your true feelings. When you know what others are feeling, you can tug at their heartstrings and motivate them to act against their own best interests. Especially when they have self-serving interests, **EI becomes a weapon for manipulating others.**
- **Inciting Emotion – Robbing of our capacity to Reason-** When a leader gave an inspiring speech filled with emotion, the audience was less likely to scrutinize the message and remembered less of the content. Ironically, audience members were so moved by the speech that they claimed to recall more of it.
  - Hitler's persuasive impact came from his ability to strategically express emotions—he would “tear open his heart”—and these emotions affected his followers to the point that they would “stop thinking critically and just emote.” **Leaders who master emotions can rob us of our capacities to reason.** If their values are out of step with our own, the results can be devastating.
- **Personal Gain-** Emotional intelligence helps people disguise one set of emotions while expressing another for personal gain. Emotionally intelligent people “intentionally shape their emotions to fabricate favorable impressions of themselves,”
- **Hidden Cost-** In settings where emotions aren't running high, emotional intelligence may have hidden costs. In jobs that involved fewer emotional demands, the results reversed. The more emotionally intelligent employees were, the lower their job performance.

For mechanics, scientists, and accountants, emotional intelligence was a liability rather than an asset. Although more research is needed to unpack these results, one promising explanation is that these employees were paying attention to emotions when they should have been focusing on their tasks.

## 11. Way Forward

Succeeding in life largely depends on succeeding socially, and a large part of social success depends on EQ. But as a growing body of research shows, EQ can be used to orchestrate 'win-lose' as well as 'win-win' outcomes. Of course, people aren't always using emotional intelligence for nefarious ends. More often than not, emotional skills are simply instrumental tools for goal accomplishment.

Appropriate level of EI demands capacity for appreciation of 'interconnections' of matters which are seemingly unrelated but together influence the outcome of a public policy or project. Emotional Intelligence, thus, has to be factored in administrative justice, and it may even be called 'constructive emotional intelligence'.

## 12. Previous Years Questions of UPSC

- What is 'emotional intelligence' and how can it be developed in people? How does it help an individual in taking ethical decisions? **(2013)**
- Anger is a harmful negative emotion. It is injurious to both personal life and work life. (a) Discuss how it leads to negative emotions and undesirable behaviours. (b) How can it be managed and controlled? **(2016)**
- How will you apply emotional intelligence in administrative practices? **(2017)**
- "Anger and intolerance are the enemies of correct understanding. "Mahatma Gandhi **(2018)**
- Emotional Intelligence is the ability to make your emotions work for you instead of against you". Do you agree with this view? Discuss. **(2019)**

## 13. Previous Years case studies of UPSC

1. ABC Ltd. is a large transnational company having diversified business activities with a huge shareholder base. The company is continuously expanding and generating employment. The company, in its expansion and diversification programme, decides to establish a new plant at Vikaspuri, an area which is underdeveloped. The new plant is designed to use energy efficient technology that will help the company to save production cost by 20%. The company's decision goes well with the Government policy of attracting investment to develop such underdeveloped regions. The Government has also announced tax holiday for five years for the companies that invest in underdeveloped areas. However, the new plant may bring chaos for the inhabitants of Vikaspuri region, which is otherwise tranquil. The new plant may result in increased cost of living, aliens migrating to the region, disturbing the social and economic order. The company sensing the possible protest tried to educate the people of Vikaspuri region and public in general that how its Corporate Social Responsibility (CSR) policy would help overcome the likely difficulties of the residents of Vikaspuri region. In spite of this the protests begin and some of the residents decided to approach the judiciary as their plea before the Government did not yield any result.
  - (a) Identify the issues involved in the case.
  - (b) What can be suggested to satisfy the company's goal and to address the residents' concerns?
2. A private company is known for its efficiency, transparency and employee welfare. The company though owned by a private individual has a cooperative character where employees feel a sense of ownership. The company employs nearly 700 personnel and they have voluntarily decided not to form union. One day suddenly in the morning, about 40 men belonging to political party gate crashed into the factory demanding jobs in the factory. They threatened the management and employees, and also used foul language. The employees feel demoralized. It was clear that those people who gate crashed wanted to be on the payroll of the company as well as continue as the volunteers/members of the party. The company maintains high standards in integrity and does not extend favours to civil administration that also includes law enforcement agency. Such incident occur in public sector also. (20 Marks) (250 Words)
  - (a) Assume you are the CEO of the company. What would you do to diffuse the volatile situation on the date of gate crashing with the violent mob sitting inside the company premises?
  - (b) What can be the long term solution to the issue discussed in the case?
  - (c) Every solution/action that you suggest will have a negative and a positive impact on you as (CEO), the employees and the performance of the employees. Analyse the consequences of each of your suggested actions.

## 14. Previous Year Questions from Vision IAS Test Series

Student Notes:

1. *"Emotion can lead to our worst decisions or our best ones: The difference is emotional intelligence." In light of the given statement, illustrate how emotional intelligence is critical in decision making. How can it help a civil servant in taking prudent decisions?*

### Approach:

The basic theme of the question is "criticality of emotional intelligence in decision making". Accordingly, the answer can be framed in following manner:

- In the introduction, discuss how emotions influence the decisions of an individual and how emotions lead to good or bad decisions.
- Thereafter, introduce the concept of emotional intelligence. Demonstrate how EI makes the difference in decision-making.
- Conclude by citing relevance of emotional intelligence in decision-making activity of a civil servant.

### Answer:

Almost from the beginning, the decision-making experts encouraged to think that making decisions is a rational process involving facts and analysis. However, in reality decisions are acts of judgment made by people. These judgments are shaped and formed in our brain, through processes that are just now being understood. In fact, in many instances, the real driver of our actions is our emotions.

Many experts and empirical studies warn decision-makers about the perils of making decisions when one is emotionally aroused. The important thing here is not the presence of emotions, but the way in which the individuals interpret and deal with emotions. When an individual appropriately deals with emotions, he/she is able to make better decisions. The more skilled a person is in dealing with his/her emotions, the more likely that person is to make more correct decisions.

Emotional Intelligence is defined as individual abilities that enable an individual to perceive, thoughtfully use, understand, and manage emotions to achieve a productive end. When emotions are elicited in any decision making process, they are processed by abilities included under emotional intelligence. Decisions involve the use of cognitions and emotions in varying amounts.

For example, when faced with a situation eliciting intense anger, a person could make an unethical decision prompted by that anger, rather than going through a rational, multi-step process. Take example of law enforcement agencies. When faced with hostile environment, they may commit revengeful acts.

In the civil services, therefore, emotional intelligence is beneficial to manage the emotions in a manner that will be helpful to achieve productive outcomes. High-EI individuals, therefore, could reduce the effects of negative emotions like anger or rage on their decision-making. Rage and anger are not only removed as hindrances, but also used to enhance the quality of decisions. Therefore, emotionally intelligent civil services could result in better decisions especially when more negative emotions accompany decisions.

2. *Is Emotional Intelligence influenced by cultural moorings? How would you differentiate the applicability of Emotional Intelligence in Indian society from that of Western society?*

Student Notes:

**Approach:**

- Discuss how EI gets affected by cultural values.
- Differentiate the application of Emotional Intelligence in Indian and western context.

**Answer:**

Emotional intelligence is the ability to identify and manage our own emotions and the emotions of others. Studies have shown that a part of emotional intelligence ability is innate while another part can be changed through learning and experience; this later part dominated by culture provides the structures, guidelines, expectations, and rules to interpret behaviors.

Although emotions are known as universal phenomena, most researchers believe that the way in which they are being experienced, expressed, perceived, and regulated can be influenced by cultural norms.

Culture affects emotional functioning by identifying which emotions are negative or positive, when emotions should be expressed and even how emotions should be displayed.

Several ethnographic studies suggest there are cultural differences in social consequences, particularly when it comes to evaluating emotions.

Explicit expression of emotions like anger, love, frustration etc. are considered as uncouth and are restrained in public in collectivistic cultures, but the same is considered essential in individualistic cultures. Thus in America, parents encourage emotional expression while suppression of emotion is often disapproved.

Thus, the way people perceive, regulate and exhibit emotions varies according to their cultural background.

**Applicability of EI in India and the West**

EI is embedded in Indian philosophic tradition, which stresses the powerful nature of emotions. These emotions need to be harnessed for a harmonious life. For example, the Bhagavad-Gita refers to the emotionally intelligent person as a 'Sthithapragnya' (the emotionally stable person). A 'Sthithapragnya', according to Lord Krishna is one who remains unperturbed in the face of calamity, and takes good or evil with equanimity. He has the power to emotionally attach or detach from any situation, at his will.

The following differences may be listed:

- Western approach deals largely with how we conduct ourselves with people around us in different settings. But Indian approach also has stereological purpose, i.e. to achieve self-control for getting Moksha by performing our Dharma. It also teaches us to maintain equanimity of mind by detaching ourselves from the end results.
- In India, individuals see themselves as interdependent with their groups (collectivist culture), whereas in West, people are independent and give more importance to personal goals and personal needs (individualistic culture).
- Indian employees usually prefer a more directive, task-oriented style of leadership, compared to the participative style advocated by western managers.

3. *Emotions, earlier considered as an irrational factor in decision-making, is now recognized as a critical factor of judgment. In this regard, answer the following questions: (a) how can Emotional Intelligence help in coping with the intense pressure and occupational stress faced by police officers and armed forces in discharge of their duties? (b) What are the some of the concerns in incorporating and assessment of emotional intelligence skills in public service?*

**Approach:**

- Give a brief explanation of Emotional Intelligence (EI).
- Explain how it can help police and armed forces in dealing with occupational stress and pressure.
- List some of the concerns that arise while incorporating and assessing EI skills in public service.

**Answer:**

Emotional intelligence (EI) is the ability to identify, use, understand, and manage one's emotions as well as emotions of others in positive ways to relieve stress, communicate effectively, empathize with others, overcome challenges and defuse conflict.

Emotions were earlier treated as an irrational factor that distort reasoning and thus, affects decision-making. However, with emotional intelligence, emotions were recognized as an important part of decision making. In the work of public officials, certain situations involving issues related to vulnerable sections of population require understanding of emotions for optimal decisions. Thus, emotional intelligence is necessary. It can help segregate purely emotional decisions or decisions arising out of anxiety from decisions based on rational factors.

**(a)** Police officers and members of the armed forces face occupational stress due to factors like isolation from family and friends, hostile environment especially in areas where people oppose their posting, adherence to strict rules and occupational hierarchy, intense workload, role ambiguity, abysmal living conditions, danger/threat to their lives especially in combative areas, among others.

In such situations, EI can help them cope with pressure and stress. The cornerstones of EI include:

- **Self-awareness:** knowing one's emotional and mental state in such physically taxing jobs and taking actions to avoid depression as well as extreme steps, such as recent news of officers committing suicide.
- **Self-management:** ability to control oneself even in difficult times such as overstretched working hours, emergency situations etc.
- **Social awareness:** including empathy towards fellow officers especially subordinates as well as citizens while dealing with their grievances.
- **Relationship management:** maintaining a balance between professional and personal relationships and developing the ability to support one's family emotionally even when one can't be there physically.

Moreover, in conflict situations where the public is wary of officers, EI can help in open communication and respect for opposing viewpoints.

However, it should be noted that the duties of police personnel and members of armed forces essentially constitute use of proportionate force to maintain law and order and hierarchical leadership is essential for maintaining the chain of command in these forces. Hence, understanding of EI in these forces should be modeled along these parameters.

(b) Some concerns in incorporating and assessment of EI in public services include:

- **Measurement of EI:** Although, there are tests for measuring EI such as Mayer-Salovey-Caruso EI test (MSCEIT), Wong's EI scale etc., their validity is questioned as the results are not deemed objective and reliable. Hence, lack of validity dilutes the importance of administering these tests among public servants.
- **Appropriate stage:** Even if incorporated, there is no indication on whether the tests will be conducted during hiring stage or promotion stage. The weight age of EI tests in successive stages has not been determined
- **Inflexibility in services:** Public services are characterized by rigid structure and disinclination towards change, right from the hiring process to promotion and retirement. Hence, there is less scope of introduction of new practices in such inflexible organizations.
- **Dynamic environment:** Public servants work in dynamic environment where various kinds of emotions need to be dealt with. Thus, ability to completely incorporate and assess the emotional intelligence in this scenario will be difficult.
- **Balancing with other parameter:** Factors such as competitive exams, educational qualifications, physical fitness etc. are given more importance while hiring personnel in the public services, thus there is a need to strike a balance.

Hence, EI is not yet an important component of public services in India. However, it should be considered as pertinent to public servants as they should be responsive and sensitive to people's needs, especially, in an environment of constant change.

## 15. Previous year case studies from Vision IAS Test Series:

1. *You are officer-in-charge of a very important railway junction, which is an artery of trade and commerce. A peasant disturbance has been brewing in your district for the past few weeks. Their discussions with the political and district leadership has borne no fruit and it has come to the stage that now they are protesting by organizing a sit-in on the railway tracks near the station. They have thereby succeeded in blocking movement of all trains. This disruption is causing significant harassment for the passengers waiting at the platform as well.*

*(a) What will be your course of immediate action?*

*(b) How can emotional intelligence act as a tool in handling this issue?*

*(c) What steps will you take so that such incidents are not repeated in the future?*

**Approach:**

- Mention what your immediate action will be given the situation.
- Explain the importance of emotional intelligence in handling the issue.
- Then highlight the steps that you would take so that such incidents are not repeated in the future.

**Answer:**

**a)** Being an officer in charge of the railway station it is my duty to ensure that the railway operations do not get affected by the ongoing protest. I will make sure that the railway tracks are cleared by using persuasion, warning and all other legal means available. I will also seek help from district administration to ensure that smooth functioning of the critical railway junction is not hampered. Additionally, I will ensure that the passengers face minimum inconvenience by providing timely communication to the passengers about the current situation, ensuring basic amenities like water, medical aid etc. at the station. Safety of the passengers at the station will also be taken care of.

**b)** Emotional intelligence is very crucial to handle the above situation.

- Emotional intelligence is helpful in keeping oneself calm and composed. Coordination at many levels – district administration, angry protesters, passengers and senior officials of railway – in such situation is likely to generate huge mental pressure.
- The officer should empathize with the emotions of the crowd and win the trust of angry peasant protesters who are full of doubt. The officer must base arguments on huge economic loss, inconvenience to general public and the legal consequences to convince them for dropping this method of protest and engage in meaningful talks with the political leaders.
- Some passengers may have urgent reasons to travel and the current situation requires that the emotions of passengers showing regret with the current service needs to be understood. The officer must show emotional maturity in dealing with such passengers.

(c) First, I would ensure that those who are involved in blocking the railway lines get adequately punished. This will dissuade anyone in future to attempt the same. Additionally, I will create public awareness about the legal aspects of such actions which will educate the public and will prevent such incidences.

While protesting for certain issues is not wrong but the mechanism to be adopted should be peaceful and within legal means. In any case, illegal means of protest like blocking railway lines is not acceptable in a democracy where various avenues of staging dissent are available.

2. *You are the CEO of a film production company, which has not been doing well financially for some time. Your company is now relying on its forthcoming movie, which is about to be released shortly. The movie has a cast of reliable actors and even before its release, trade pundits have predicted that the movie will be a hit. However, you face a conundrum as one of the actors in the movie is a citizen of a neighbouring country with which relations have been disturbed and a war like situation exists. While the political atmosphere was different when the movie was being filmed, now there is a widespread public demand, with a local political party at the forefront, for replacing the actor from the movie or a ban on the release of the movie itself, if the actor is not replaced. While you are aware of the mood of the nation and the public repercussions of releasing the movie in its present form, you also know that it is not feasible to replace him at this stage as he has a substantial role in the movie. There is also a section in the film fraternity that does not want you to compromise in the wake of threat by the local party as it compromises freedom of speech and expression as well as artistic creativity.*
- (a) *What are the options available to you?*  
 (b) *Evaluate each of the options and state their merits and demerits.*  
 (c) *What course of action would you take and why?*

#### **Approach:**

- State the options available to you as a CEO of the company.
- Evaluate the merits and demerits of the available options.
- State your course of action, with reasons.

#### **Answer:**

In this case, the issues involved are

- Securing corporate interests as a CEO of the company.

- Stifling of freedom of speech and expression guaranteed by the Constitution under Article 19 (1) (a) and political coercion and intimidation.
- Questioning one's nationality based on one's professional decisions, interference with artistic creativity and hiring practice.
- Widespread public sentiment guided by the changing political atmosphere.

The stakeholders involved are:

- CEO of the production company who is relying financially on the upcoming movie.
- The movie star who belongs to a neighbouring country with which a war like situation exists.
- Rest of the cast and crew who worked hard to complete the film.
- Members of the local party who have threatened to ban the movie due to the presence of the mentioned actor.
- Film fraternity as a whole with the broader issue of freedom of speech under question.
- Audience in general who will be the ultimate judge of the movie and its casting.

Options available in this scenario and their merits and demerits are:

- Agree to the demands of the party and replace the actor.
  - Merit: As a CEO, my ultimate interest is the company's profit. The company is relying financially on the forthcoming film and it is important that the film releases.
  - Demerit: However, doing so leaves avenues for political parties to repeat such threats. Additionally, replacing the actor requires reshooting his scenes, which is not feasible.
- Take a firm stand and release the film as it is.
  - Merit: It is a courageous act of protecting the interests of company, its staff and the whole film fraternity. It will be step towards building free and liberal society by sending a wider message of artistic creativity and freedom of speech and expression.
  - Demerit: However, this can lead to chaos and unanticipated consequences if the party does what it has claimed. Also, since there is a widespread public opinion, I may suffer losses.
- Minimize the number of scenes the said actor is a part of with only the essential scenes.
  - Merit: This will help in neutralizing the widespread public opinion against the movie which will help me financially since it is predicted to be a success.
  - Demerit: However, this implies suppression of freedom of speech and expression guaranteed by the Constitution and artistic creativity. Further, there is no guarantee that such demands won't be repeated in the future.
- Postpone the release of film for some days and wait for the public sentiments to subside
  - Merit: It will protect the film in its original form, provide more time for decision making and protect the interests of the movie star. Since the movie is good, it may get a good response, which may help in generating high revenues for the company.
  - Demerit: A delay in release has certain financial implications and it may demoralise the crew members. Also it may only amount to delaying the inevitable rather than resolving the issue.

### Course of action

Student Notes:

- I will approach the party leader and reason it out with him/her. But, if he/she refuses, I will release the film with the said actor. I will also approach the local police and state leaders to ensure that the film releases without any obstacles.
- Additionally, I will request the support of the film fraternity and associations of various producers, theatre owners etc. as a measure of solidarity. I will also request the audience to give the film a fair chance and separate an actor's work from his/her nationality via social media and other mediums of interaction.
- It is important to take a stand as art transcends national boundaries and hiring actors who belong to other countries is not a yardstick for measuring patriotism and nationalism. Moreover such actions at home may also adversely affect Indian artists working in the neighbouring country.

3. *You and your friend are living together in a metropolitan city and preparing for civil service examinations. While you manage to meet your daily targets, you sense that your friend is unable to cope up with the pressure of the exam. Fear of not passing the exam and meeting the expectations of his family is stressing him further. You realise that with time your friend is losing interest in everything and often talks about committing suicide if he is unable to meet his goal. He is also missing out on meals and prefers to stay indoors when asked to venture out. When you sought professional help, the doctor diagnosed your friend with clinical depression. Being aware that your friend needs professional counselling and psychiatric care, you reach out to his parents who reside in a rural area. They rebuff you for suggesting counselling and instead reiterate that nothing is wrong with him. They sternly mention that your bringing up the matter will only make people engage in loose talk. They also ignore you when you politely inform them that it is not wise to ignore one's mental health. Your friend's parents see his state as a sign of failure and decide to call him home where he can continue with his preparation. You are aware of the gravity of the situation if your friend goes back to his house. You also know that there is very little awareness about mental health and that the solution is not to ignore it but to take necessary measures to tackle it.*
- (a) As a concerned friend and an aspiring civil servant who can frame policies for the public in the future and has a moral duty towards them, what are the options available to you in such a situation?*
- (b) Evaluate each of these options and choose the option you would adopt, giving reasons.2017-13-861*

### Approach:

- State the available options and their impacts in this situation
- List the pros and cons of each of the possible options and state the eventual course of action.

### Answer:

- a) **The options available to me in this scenario are:**
1. Convincing my friends' family to keep my friend in the city and taking responsibility for his treatment.
  2. Not pursuing the matter any further once his parent don't listen to my advice.
  3. Let him go back to the village as his parent desire but helping him in other possible ways.

## b) Evaluating each option

Student Notes:

### 1) **Convincing my friends' family to keep my friend in the city and taking responsibility for his treatment.**

Considering the fact that my friend is suffering from suicidal tendencies, his life is at great risk and as a friend and well-wisher I must ensure that he gets professional help from a psychiatrist. The fact that his family is not aware about the gravity of the situation due to rural background necessitates my intervention even further.

However, this will come at the cost of my precious time which I need to devote to my studies. This may also enrage my friend's family members who are against any medical intervention to the problem due to social fears. Medical cost may also be an issue which may arise.

### 2) **Not pursuing the matter any further once his parents don't listen to my advice.**

As my friend's parents do not consider my advice useful, I may focus back on my studies leaving the matter solely in their hands.

This will be an escapist route and may lead to adverse consequences for my friend, his family and even for me as any harm to my friend will also impact my mental state and my preparation for the upcoming exams. This will amount to selfish and mean behaviour.

### 3) **Let him go back to the village as his parents desire but helping him in other possible ways.**

This may help him as he will be close to his family, which may provide the much needed psychological support. As health is the utmost priority here, a bit of sacrifice of regular studies is not an issue.

But professional advice and intervention is still sought which may not be readily available in a rural area.

## Possible Course of Action

First, I will try to educate my friends' parents about Depression, its implications and will apprise them of the professional advice which was given in this case. Asking the doctor to convince my friends' parents about the treatment may also be useful.

Regarding whether my friend should stay here or go back to his village for studies should be decided on the basis of professional advice, availability of psychiatrist in the village and his convenience.

Taking a break may help especially in reviving his interests which he is losing fast. I will also try to help him in meeting his daily targets which are bothering him and are a cause of stress for him. Additionally, I will also suggest him to break the targets into smaller tasks.

Lastly, I will make my friends' parents aware about the hard work my friend is putting into this exam which should be praised.

As competitive exams are extremely stressful and mentally taxing, an aspirant may at times face anxiety or depression which must be treated like any other health anomaly. As a friend/partner/relative etc. of a person who suffers from depression, we should ensure that we do our best to normalize the situation for the person diagnosed with it and support him/her in every stage of treatment.

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# CONTRIBUTION OF MORAL THINKERS, PHILOSOPHERS, REFORMERS AND ADMINISTRATORS

Student Notes:

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## 1. Introduction

Ethics is the philosophical study of morality. Ethics as branch of philosophy arises from the curiosity about the values involved in the human behavior. This behaviour can be studied from various dimensions in the lives of virtuous people. From the ancient past to the recent decades, we have witnessed various philosophers, moral thinkers, leaders, reformers as well as administrators which can help us develop new knowledge, values and principles to induce moral progress in human society and make it better.

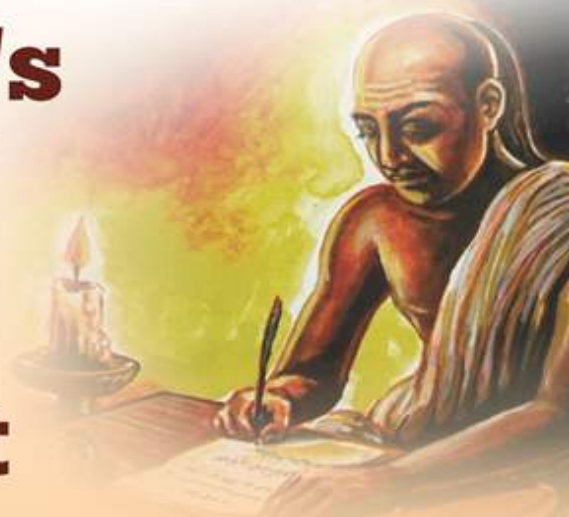
## 2. Contribution of Moral Thinkers and Philosophers

### 2.1. Indian Thinkers

#### 2.1.1. Kautilya

The teachings of Kautilya have been primarily derived from his book on Statecraft i.e. the **Arthashastra**. It was written primarily as a **book of codes for efficient administration**. However, it also includes various learnings with regards to **ethical administration**. He propounds various duties of the king, the ministers, the officials as well as for the common man.

## Kautilya's ideal of Ethical Conduct



Once, a Chinese traveller came to meet Kautilya (Chanakya). It was dusk and darkness had just started to set in. When the traveller entered Chanakya's room, he saw that Chanakya was busy writing some important papers under the lighting of an oil lamp. You know that there were no bulbs or tube lights in those days, since there was no electricity. So, in those days people used to light oil lamps. Chanakya smilingly welcomed his guest and asked him to sit. He then quickly completed the work that he was doing.

But do you know what did he do on completing his writing work? He extinguished the oil lamp under which he was writing and lit another lamp. The Chinese traveller was surprised to see this. He thought that maybe this was a custom followed by Indians when a guest arrives at their home. He asked Chanakya, "Is this a custom in India, when a guest arrives at your house? I mean, extinguishing one lamp and lighting the other?" **Chanakya replied, "No my dear friend. There is no such custom. Actually, when you entered, I was working. It was an official work, pertaining to my empire, my nation. The oil filled in that lamp has been bought from the money from the National treasury. Now, I am talking to you. This is a personal and friendly conversation, not related to my nation; so I cannot use that lamp now, as it will lead to wastage of the money of the national treasury. Hence, I extinguished that lamp and lit this other lamp, since the oil in this lamp has been bought from my personal money."**

#### Key lessons from philosophy of Kautilya-

- **Concept of Welfare State (Yogakshema)-** As per Kautilya, the king is responsible to his subjects. He says, "In the happiness of the subjects lies the happiness of the king; in their

welfare his welfare. The king shall not consider what pleases himself as good; whatever pleases his subjects is only good for him". Accordingly, he highlighted the crucial role of the State/Government for ensuring material well-being of the nation and its people.

- **Concept of Materialism-** He gives the idea of 'Artha', which has a broader meaning beyond the personal possessions. He regarded that the society should be above the individual interest. He regarded money as valuable only to the extent it serves as a means to acquire goods. Thus, he guides individuals to mould their lives for wealth generation in an ethical manner. In modern times, corporate scandals like Enron, Tyco and Satyam have time and again brought forth the importance of ethics in economic and corporate affairs.
- **Ideals of ethical conduct-** He lays down **ideals of ethical conduct** for each individual, to whichever social class he may belong, the duties of ahimsa (refraining from injury), satya (truthfulness), sauca (purity), anasuya (freedom from malice), anrsamsya (compassion) and kshama (forgiveness).
- **Views on corruption-** He highlighted the endemic invisibility of corruption in administration. He compared corrupt administrators with an analogy of like a fish in water who cannot be caught when it drinks water. Hence, he proposed the need for strong penal framework for tackling corruption and ensuring probity in civil administration.
- **Maintenance of social order-** Arthashastra lays down that the ruler is required to safeguard the social order based on the ancient varna and the asrama system. This order is believed to have been prescribed in the Veda and, as such, divinely ordained. Therefore, it is considered immutable. The state had no role in its creation. So, it does not have any role to try to modify it. The duty of the state is only to preserve this order and not to allow it to be disturbed in any way. Even though these ideas are not in consonance with modern constitutional setup, still they hold relevance towards the ethical conduct of individuals as well as the state for the maintenance of social order.

### 2.1.2. Buddha

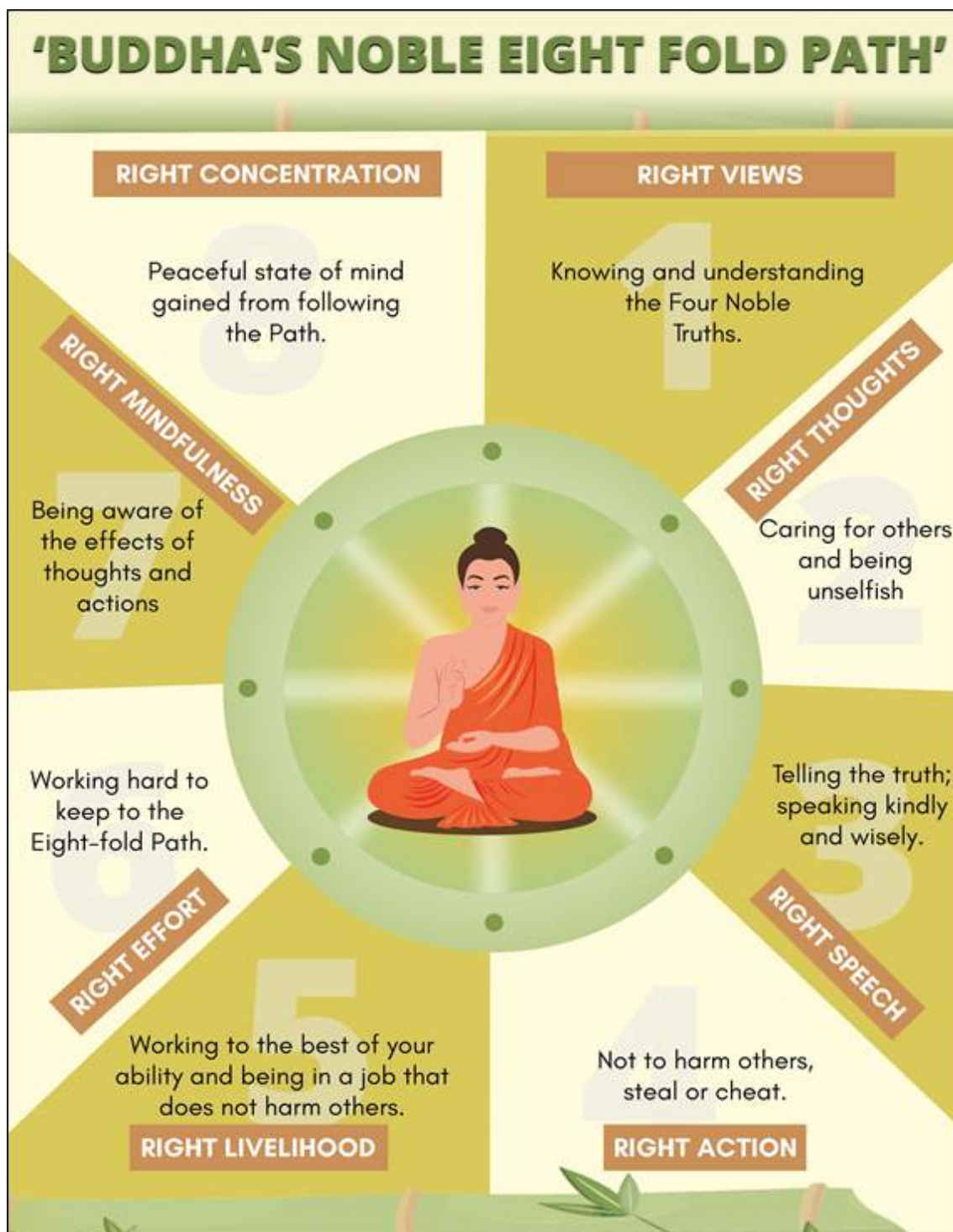
Essentially, according to Buddhist teachings, the ethical and moral principles are governed by **examining whether a certain action**, whether connected to body or speech is likely to be **harmful to one's self or to others** and thereby avoiding any actions which are likely to be harmful.

In Buddhism, there is much talk of a **skilled mind**. A mind that is skillful avoids actions that are likely to cause suffering or remorse. Buddha focuses on **moral discipline** in which he focuses on the **five Precepts**. These apply to all the common people and are similar to basic lists of prohibitions in other great world religions. It seeks to make a commitment to refrain from **killing, stealing, sexual misconduct, lying, and drunkenness**.

All his teachings were derived from his core ideas which he propounded in the form of **four noble truths**, which are-

- **Dukkha-** There is suffering
- **Samudaya-** There is a cause of suffering
- **Nirodha-** There is a solution to every suffering
- **Marga-** There is a path to cessation of suffering.

Buddha teaches us that if one understands these noble truths, one can get freedom from all the sufferings in this world. For this he propounds the **eight-fold path**, which can be seen as follows-



### Key lessons from the philosophy of Buddha-

- **Mindfulness-** Here, Buddha tries to notice present thoughts, feelings and sensations without judgement. The aim is to create a state of "bare awareness". What was once a tool for spiritual exploration has been turned into a panacea for the modern age i.e. a cure-all for common human problems, from stress, anxiety and depression.
- **Momentariness-** In this core aspect, Buddha states that everything that has originated is bound to perish, and there is **temporariness or momentariness** of everything. Thus, world is at every moment distinct from the world in the previous or next moment. By using this, every person can practice **non-attachment and selflessness** as nothing is permanent in this world. This can be of immense help in the modern day, as it can lead to **conflict resolution** in the domains of social conflicts, administration as well as international relations.

- **Linkage between individual action and world-** In his concept of **Karma**, Buddha propounds that if a person has a right mindset, his actions will be beneficial not just to himself but to the whole world, including the environment. As per him, our actions affect the planet in a harmful way because we are selfish and we crave things. These actions will only result in more suffering in the future. The effects of karma will continue to work in a person's rebirth, so by being compassionate, we will improve our own future and that of the Environment.
- **Bhavana-** It means the training of the mind. The word itself etymologically means development - a further development of the mind. The Buddha believed that everything emanates from the man's mind. And that reflects the first line of the first verse of the Dhammapada. A pure mind, a trained mind, a well-developed mind, a mind that can be controlled at will, a mind that does not go on to subjects that are conducive to tension and boredom, but keeps alert, keeps on developing itself, discovering itself and within itself the secret of life, the problems of life and the reality of life, is man's greatest treasure.
- **Karuna-** Compassion is more easily generated. When we see somebody in trouble, our heart moves towards that person and we rush to help him. Last of all comes the fourth aspect of loving kindness and that is total equanimity, Upekkha. We have no friends, no enemies, no one higher, and no one lower. We have absolutely no distinctions between one person and another, and are totally merged in a kind of unity with all beings, all things and all situations. So once you are able to live a life in which all these four characteristics govern your actions, there is no place for hatred, rivalry and competition.

## ANGULIMALA BECAME A MONK

This story begins at the University of Taxshila, which was a great university in ancient India. Ahimsaka was a brilliant student. He excelled in all his subjects. Because of this, the other students became jealous. They made up stories to make the teacher believe Ahimsaka was evil. The teacher believed these lies and decided to get rid of Ahimsaka. The teacher knew that Ahimsaka always listened to his elders, so he decided to give Ahimsaka an impossible task, so that he would never return home. The teacher called Ahimsaka and told him that in order to graduate, he needed to collect one thousand little fingers. Instead of giving up, Ahimsaka set out to collect one thousand little fingers. However, he soon discovered that most people wouldn't easily give up their little fingers. So he hid in the forest and murdered people to get their fingers. He found he had nowhere to store these fingers. So he put them on a string around his neck, to keep count. Because of this gruesome necklace of fingers, he was nicknamed Angulimala, meaning 'finger garland'.



One day, Lord Buddha left his monastery for a walk in the forest. Although Angulimala lived there, Lord Buddha was not afraid. He continued on his way. On this particular day, Angulimala only had one more finger to collect, so when he saw Lord Bhagwan entering the forest, he dashed out to murder him, claim his finger, and complete his task. But no matter how fast he ran behind Bhagwan Buddha, he never seemed to be able to catch up with him. **Eventually, exhausted and angry, Angulimala screamed for him to stop.**

Then the Buddha **turned and with neither anger nor fear, he quietly** told Angulimala that he had already stopped. He had stopped killing and harming and now it was time for him, Angulimala, to do likewise. Angulimala was so touched by these words that he immediately threw away his weapons. He followed Bhagwan Buddha back to his monastery, where he became a monk.

We can see from this example, that **anyone's life can be transformed, even if it may seem impossible. If a murderer can become a monk, think of how much easier it is for us to improve our minds, habits and lives.**

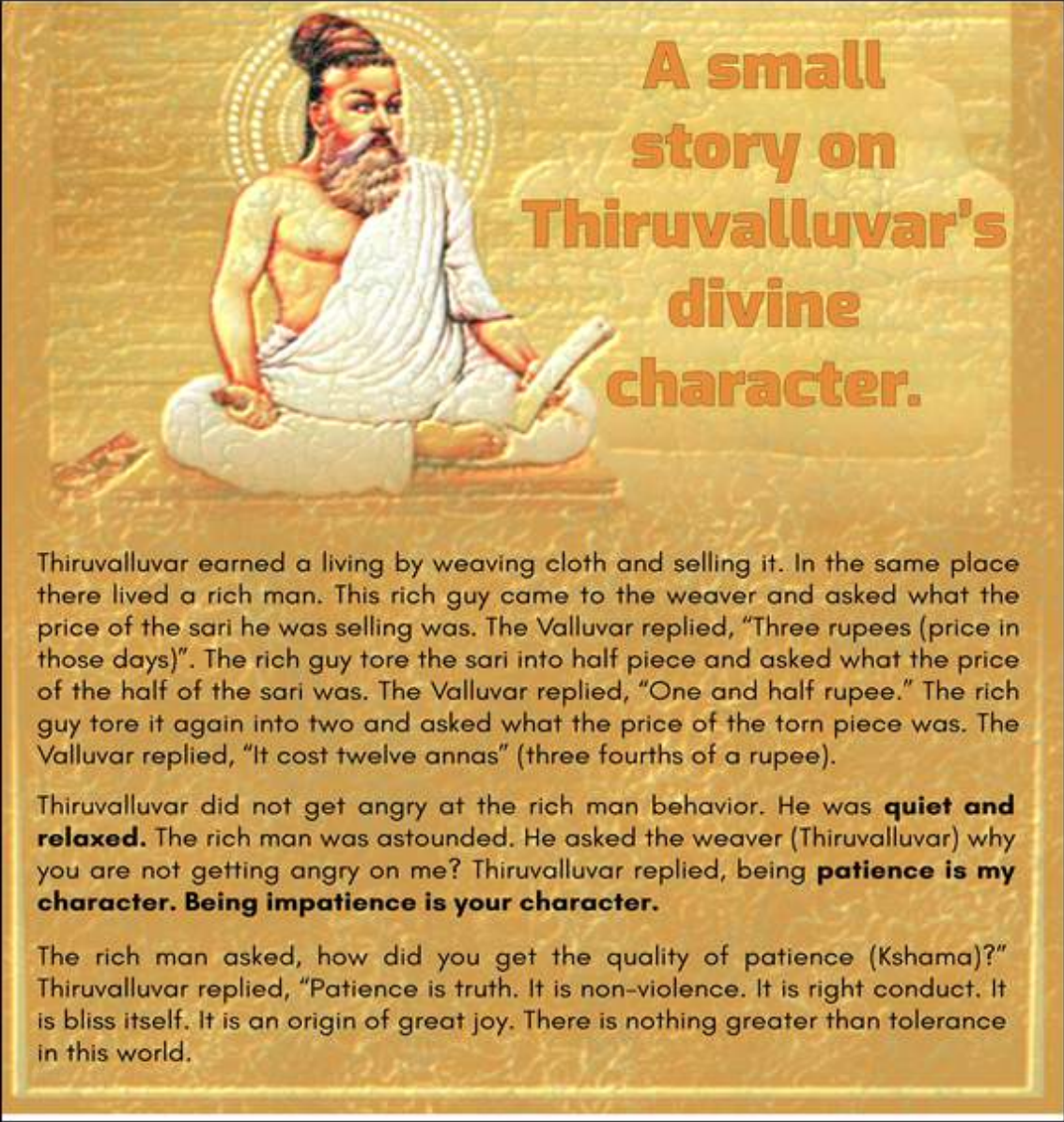
### 2.1.3. Thiruvallur

Thiruvallur was a weaver by profession and belongs to Valluva caste whose profession it was in the ancient days to announce the commands of kings by beating of drums. His book "Thirukurral or Kural" is regarded as the first book on ethics. This book contains the seed of modern ideas which was considered as important for living good life even in contemporary times. To honor his work, Indian Government has decided to install his statue in the banks of Ganges in Haridwar.

### Key lessons from the philosophy of Thiruvallur-

- **Universal Ethics-** He focuses on universal values related to humanity, love, relations and contracts.
- **Codification of Ethics-** Thiruvallavur work touches different aspects of human life and associated moral dilemmas. He prescribed there resolution through pursuit of reasoning and wisdom. He also laid down the principles to be followed in personal life as moral code to avoid degradation of self. He discussed the various dimensions of life in three major heads of **Aram** (Dharma/Virtue), **Porul** (Wealth/Artha) and **Inbam** (Love/Kama).
- **Personal and Public life are intertwined-** According to him, in order to life good personal life, person in public life should have certain fundamentals of conduct and character. This line of thought also underlines the importance of honesty, integrity and consistency in individual's life.

Student Notes:



**A small story on Thiruvalluvar's divine character.**

Thiruvalluvar earned a living by weaving cloth and selling it. In the same place there lived a rich man. This rich guy came to the weaver and asked what the price of the sari he was selling was. The Valluvar replied, "Three rupees (price in those days)". The rich guy tore the sari into half piece and asked what the price of the half of the sari was. The Valluvar replied, "One and half rupee." The rich guy tore it again into two and asked what the price of the torn piece was. The Valluvar replied, "It cost twelve annas" (three fourths of a rupee).

Thiruvalluvar did not get angry at the rich man behavior. He was **quiet and relaxed**. The rich man was astounded. He asked the weaver (Thiruvalluvar) why you are not getting angry on me? Thiruvalluvar replied, being **patience is my character. Being impatience is your character.**

The rich man asked, how did you get the quality of patience (Kshama)?" Thiruvalluvar replied, "Patience is truth. It is non-violence. It is right conduct. It is bliss itself. It is an origin of great joy. There is nothing greater than tolerance in this world.

#### 2.1.4. Swami Vivekanand

Vivekanand was a modern thinker and reformer who attempted to combine Indian spirituality with Western material progress, maintaining that the two supplemented and complemented one another.

# VIVEKANAND'S MESSAGE OF UNITY

*All the powers in the  
universe are already ours.  
It is we who have put our  
hands before our eyes  
and cry that it is **dark**.*



Swami Vivekanand delivered an iconic & eloquent speech at the Chicago Convention of Parliament of Religions. Introducing Hinduism to the world in 1893, Swami Vivekanand spoke about intolerance, religion and the need to end all forms of fanaticism.

Here are extracts from his speech that still continues to play a relevant role in society-

"It fills my heart with joy unspeakable to rise in response to the warm and cordial welcome which you have given us. I thank you in the name of the most ancient order of monks in the world; I thank you in the name of the mother of religions, and I thank you in the name of millions and millions of Hindu people of all classes and sects.

I am proud to belong to a religion which has taught the world both tolerance and universal acceptance. **We believe not only in universal toleration, but we accept all religions as true.** I am proud to belong to a nation which has sheltered the persecuted and the refugees of all religions and all nations of the earth. I am proud to belong to a religion which has taught the world **both tolerance and universal acceptance.** We believe not only in universal toleration, but we accept all religions as true. I am proud to belong to a nation which has sheltered the persecuted and the refugees of all religions and all nations of the earth.

The present convention, which is one of the most august assemblies ever held, is in itself a vindication, a declaration to the world of the wonderful doctrine preached in the Gita: "**Whosoever comes to Me, through whatsoever form, I reach him; all men are struggling through paths which in the end lead to me.**"

Sectarianism, bigotry, and its horrible descendant, fanaticism, have long possessed this beautiful earth. They have filled the earth with violence, drenched it often and often with human blood, destroyed civilization and sent whole nations to despair. Had it not been for these horrible demons, human society would be far more advanced than it is now. But their time is come; and I fervently hope that the bell that tolled this morning in honour of this convention may be the death-knell of all fanaticism, of all persecutions with the sword or with the pen, and of all uncharitable feelings between persons wending their way to the same goal."

## Key lessons from the philosophy of Vivekanand-

- **Intrinsic purity and oneness of the Atman-** As per him, the prevalent morality is mostly based on fear (both for individual and society). This fear could from the police, public ridicule, god's punishment, fear of karma and so on. However, these do not explain why a person should be moral and be good to others. We should be pure because **purity is our real nature and also the true divine Self or Atman.** So, we should love and serve our neighbours because we are all one in the Supreme Spirit. This helps in formation of **attitude of non-individuality**, which can form healthy team spirit and culture.
- **Ethics more than Laws:** He believed that laws which are enacted by parliament does not make a nation good or great, it's the people and their conduct. For him ethics or morality has something more than laws of a country, he believed that laws act as means and ethics as end. Morality for him means renouncement of all temptations.

- **Ethical secularism-** He propounded humanistic approach to religion which holds relevance to the rising communal tendencies in the present context. He declared that "if you are born as a Muslim be a good Muslim if as Hindu be a good Hindu".
- **Compassion for all beings:** He said the basis for ethical conduct is unselfishness - a person should be willing to put other's needs ahead of his own. Unlike other ethical thinkers, he clarified that the basis for such ethical conduct is essential oneness of all humans, not just the need to be ethical. He expanded the scope of ethical behaviour to all living creatures and not just humans.
- **Education as Character Building exercise:** He propounded that education is by which character is formed, strength of mind is increased, the intellect is expanded, thus the manifestation of the perfection already in man.

## 2.2. Western Thinkers

### 2.2.1. Plato

Plato was a great Greek philosopher. He is known as a true disciple of Socrates. He believed in two basic premises-

- **Goodness consists of the natural and proper functioning of human nature.** Besides, man is social by nature; therefore, society is a normal background of moral life of human beings.
- **Good life is the life of virtues.** Like later Greek and mediaeval thinkers<sup>1</sup>, Plato assumes that virtue is necessary for happiness

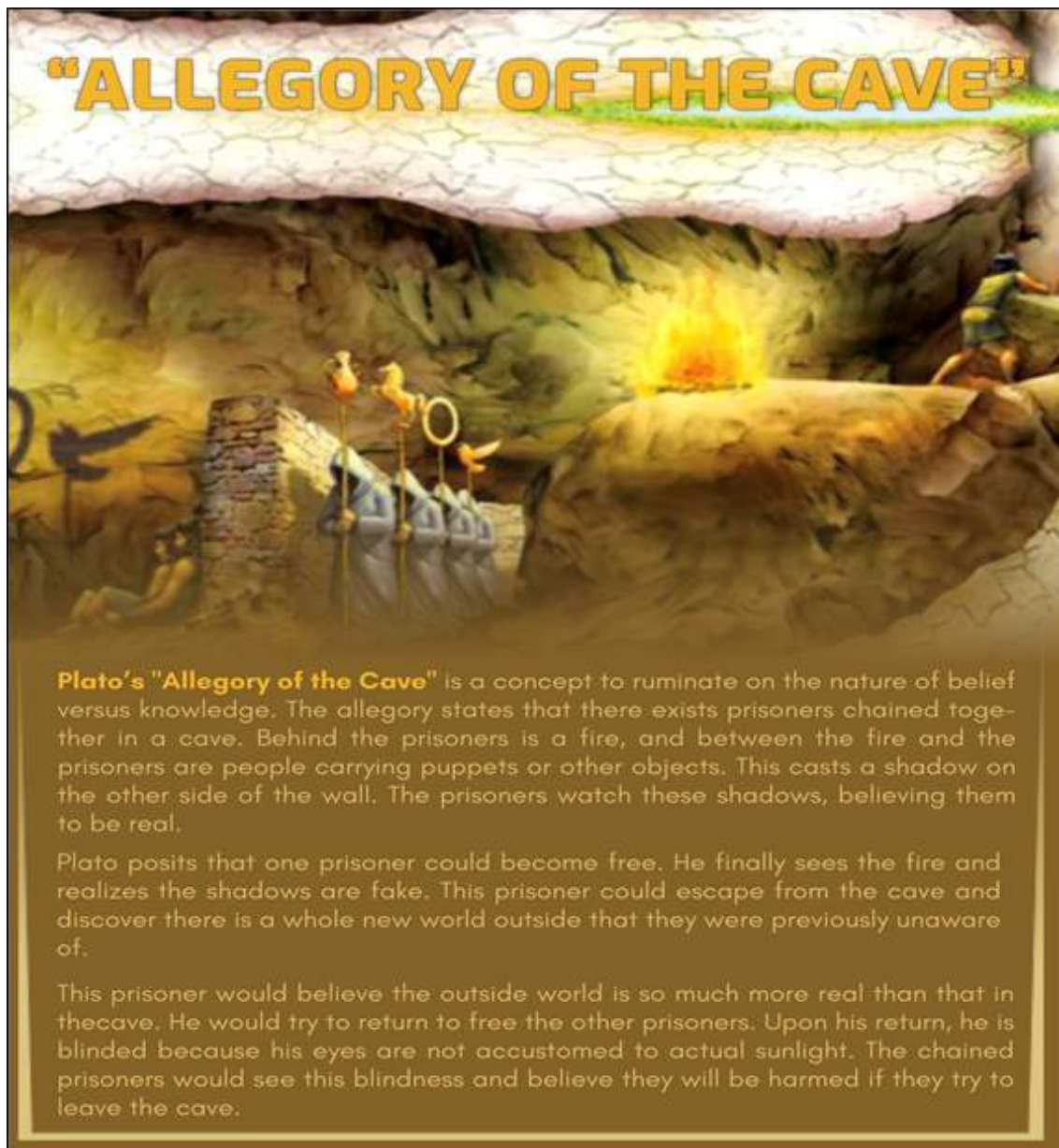
He also propounded the framework of **four cardinal virtues** in his theory of morality, i.e. **wisdom, courage, temperance and justice**, which together constitute a morally good life.

#### Key lessons from Plato's four cardinal virtues-

- **Wisdom-** It includes knowing and mastering the non-rational elements such as spirited element and passions. Thus, a man who is wise, shall always be guided by rational rules rather than his impulses.
- **Courage-** It includes excellence in the activity of will in a person. A courageous man is one who can stay intact to the instructions of his intellect. It is of two types viz. physical courage of a soldier and moral courage of a thinker or a reformer. Thus, one can be courageous in war as well as in intellectual convictions.
- **Temperance-** It includes the **self-control** in keeping bodily satisfactions within limits. But it does not mean complete abstinence, rather it focusses on controlling and ordering the natural instincts, desires and sensuous pleasures.
- **Justice-** It includes proper integration of all rational and non-rational parts of one's self. Justice consists in doing one's own job, being morally perfect and therefore is tantamount to being wise, valiant, temperate and just.

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<sup>1</sup>Medieval philosophy is the philosophy in the era now known as medieval or the Middle Ages, the period roughly extending from the fall of the Western Roman Empire in the 5th century C.E. to the Renaissance in the 16th century.



### 2.2.2. Aristotle

Aristotle was the disciple of Plato. He was the first one to write the book on ethics. He claimed that virtue can be learned only through constant practice implies that there are no set rules we can learn and then obey. Instead, virtue consists of learning through experience.

#### Key lessons from the philosophy of Aristotle

- **Teleology of Nature:** Nature works toward a telos, or end goal. Every human activity aims at a certain telos. This teleological view gives Aristotle's Ethics a clear sense of direction. Our goal in life is to achieve our true nature, and this true nature consists essentially of rationality.
- **The highest human good is happiness**-All human activities aim at some end that we consider good. Most activities are a means to a higher end. **The highest human good, then, is that activity that is an end in itself. That good is happiness. When we aim at happiness, we do so for its own sake, not because happiness helps us realize some other end.** The goal of the Ethics is to determine how best to achieve happiness.
- **Doctrine of mean** - Happiness depends on living in accordance with appropriate virtues. That is, a virtuous person is naturally disposed to behave in the right ways and for the right

reasons, and to feel pleasure in behaving rightly. Virtue is a mean state between the extremes of excess and deficiency. This mean varies from person to person, so there are no hard and fast rules as to how best to avoid vice.

- **Justice-** He has classified it into **general** and **particular** justice. The former deals with virtue expressed towards other people whereas the latter can **distributive as well as rectificatory**.
  - **Distributive justice** deals with the distribution of wealth among the members of a community.
  - **Rectificatory justice** remedies unequal distributions of gain and loss between two people.
- **Life of Contemplation:** Aristotle maintains that contemplation is the highest human activity. In discussing the various intellectual virtues, Aristotle extols wisdom as the highest, since it deals only with unchanging, universal truths and rests on a synthesis of scientific investigation and the intuitive understanding of the first principles of nature. The activity of wisdom is contemplation, so contemplation must be the highest activity of human life.

### 2.2.3. Emanuel Kant

Kant, the Germany philosopher is known for **de-ontological approach**. Under this, he argues for **duty-based ethics** for modern life. His ideas are critical to understand the complex system of ethics that affects our current lives.

#### Key lessons from the philosophy of Kant

- **Duty based ethics:** His work placed special emphasis on the relationship between duty and the morality of human actions. Acts are inherently good or evil regardless of the consequences of act. This theory is also called as Deontological theory. It gives importance to the performance of duties irrespective of the consequences.
- **Role of moral will in ethics:** Kant believed that moral law arises only from the pure will which is self-determined and self-governed. A person is free when he is bound by his own will i.e. moral courage and not by the will of others.
- **Authority behind Morals:** Moral laws are autonomous and the authority behind ethics is the individual's own will. The moral laws do not operate through the influence of external factors. Each person's own reason is the authority, the legislator and the executor of the moral law. Hence ethics is autonomous, universal and unconditional. For example: An autonomous state is one in which the laws are made by the will of the people in that state. The laws have no legitimate authority when they are imposed by another state as it happened during colonization.
- **Categorical Imperative as the moral law imposed by practical reason-** Categorical Imperative is the internal law imposed by conscience upon itself. Kant distinguishes Categorical Imperatives from Hypothetical Imperatives.

### 2.2.4. Karl Marx

Karl Marx inspired the foundation of various communist regimes in the modern world. He turned away from philosophy in his mid-twenties, towards economics and politics.

Marx's **theory of history** is centered around the idea that forms of society rise and fall as they further and then impede the development of human productive power. Marx sees the historical process as proceeding through a necessary series of modes of production, characterized by class struggle, culminating in communism.

#### Key lessons from Marxism

- The issue of morality in Marxism is a complex question. **Marxists believe that end justifies the means**. Many thinkers consider Marxists as immoral because they recommend violence and killing but many others believe that it Marxism possess different kind of morality.

- Marxists believe that “old morality”—the morality of the reigning capitalist class—exploits the working class. According to this view, old religious moral codes must be abandoned. For Karl Marx and Frederick Engels “Thou shalt not steal” establishes a society in which some have property and some do not; such an establishment is the root of the problem.
- When pursuing Marxist ethics, revolution is the most efficient means for creating a society without class distinctions. According to Marxists, revolution is unavoidable and it is the only way to overthrow the bourgeoisie and lift up the proletariat.
- The obligation to work toward the overthrow of the bourgeoisie may very well include the duty to kill.

### 2.2.5. Weber

Weber was a German sociologist. He devised **ideal bureaucratic model**. Some of its characteristics were, bound by rules, sphere of competence, principle of hierarchy, need for specialized training, impersonal detachment, documentation, career service and a non-bureaucratic head.

Weber believed in **political superiority over the bureaucracy**. He asserted that a civil servant should not take interest in politics. He should engage in only impartial administration of his office.

#### Key lessons from the philosophy of Weber

- **Legal Rational Authority-** Weber was in favour that authority should be derived from a system of rules & norms, which are rationally derived. He opposed charismatic and traditional authority for the bureaucracy.
- **Protestant ethic as the source of Capitalism:** The protestants believed that on performing actions with honesty God will bless them with riches. The protestant asceticism holds that the individual needs hard, continuous bodily or mental labour. This served as the foundation of the capitalism.
- **Civil Servants ethics:** Weber said that, If the official receives orders with which he disagrees, he should make his views known to his superior; but if the superior insists, the official must comply to the best of his capability. In other words, a sense of duty should prevail over personal view. This should be an integral part of the civil servant's ethic.
- **Accountability through Principle of hierarchy:** Each lower office is under the control and supervision of a higher one. This ensured every subordinate in the administrative hierarchy is accountable to his superior for his actions.

### 2.2.6. Locke

John Locke was an English philosopher and political theorist, who is also hailed as the father of “**Liberalism**”. His conceptions of the government and natural rights of the human beings laid the foundation of USA constitution.

#### Key lessons from the philosophy of Locke-

- **Three Natural Rights-** To Locke a man has three natural rights: life, liberty and property. Property is the product of a person's labour. This conception of property became the foundation of Karl Marx's Socialism and Adam Smith's capitalism.
- **Accountability of government-** He rejected the divine right of the king. According to him, societies form governments by their mutual consent. Therefore, a society may remove the king when it loses faith in him, i.e. consent of the governed.
- **Importance of education-** He advocated early education, as education shapes the mind and provides an individual with necessary mental faculty to take decisions based on their preferences in a rational and logical manner.
- **Tolerance-** He argued that governments should have non-interfering approach when it comes to freedom of religion. The only exception that he cites was a threat to public order. To him governments were simply not in a position to decide which belief is right.

### 2.2.7. Hobbes

Thomas Hobbes was an advocate of **materialism**. As per him, the human beings strive to fulfill their various desires such as food, shelter, clothing, social acceptance etc. As per him, two situations prevail in the world i.e. the resources **are scarce** and all persons **are equal** in their power.

Based on these basic situations, he propounded two theories-

- **State of nature is state of war-** He believed that human beings will engage in a **fierce struggle for scarce resources** to fulfil **their self-interest**.
- **Right of nature-** Here, he says that every individual is justified in the use of force and fraud to defend his/ her state of nature.

#### Key lessons from the philosophy of Hobbes-

- **Social Contract-** Being innately selfish in nature human beings require some external coercive power to follow the articles of peace. This agreement between individuals to establish laws that make communal living possible and an agency to enforce those laws is called social contract. In Hobbes social contract, tradeoff between liberty for safety is essential, otherwise there will be 'war of every man against every man'.
- **Objective Morality-** As per him, morality is objective such as there are objective reasons we shouldn't kill or lie.
- **Emphasis on Civic Education:** Hobbes believed that state should reform the curriculum and focus on civic education. To him arguing on matters of mind and free will etc is useless instead state should emphasize on instilling the values of obedience amongst the citizens through educating them.

### 2.2.8. John Rawls

He was an American moral and political philosopher, who described a method for moral evaluation of social and political institutions. He propounded his theory of justice using a thought experiment called the "**original position**" and "**Veil of Ignorance**".

#### Key lessons from the philosophy of Rawls-

- **Justice as Fairness:** Rawls recommends equal basic rights, equality of opportunity, and promoting the interests of the least advantaged members of society.
  - **Fairness demands ignorance-** Rawls thought most people's definition of justice reflected what was good for them instead of anything shared or universal. To get to the core of things, Rawls asks us to imagine a situation where society doesn't exist yet and no one knows where they will end up in life.
  - If we each play along with Rawls's hypothetical, we are likely to imagine fairness in a particular way. Rawls thought we would only join a society where everyone, no matter what circumstances we were born in, has their needs met.
- **Principles of social Justice:** Rawls thinks a just society will conform to rules that everyone would agree to in the original position. He developed principles of justice for a liberal society and challenged utilitarian political philosophy.
- **Reflective Equilibrium:** It is the consistency and coherence between various opinions and beliefs. We often form opinions based on gut reaction, instinct, or by focussing on the specifics of a situation. Each of these approaches can at times be unreasonable and inconsistent. By forcing us to test how our different beliefs fit together, Rawls encourages us to do make sure our set of beliefs make sense and are consistent.



## FROM BEHIND THE VEIL EXPERIMENT: JOHN RAWLS AND COVID-19

As the pandemic rips through the globe, it is time to rethink how we want to live as **collective political communities**, and what values and norms should govern our socio-economic and political institutions. It is certainly time to ask bigger questions about **how we want to live together and what should be the rationality of fairness**.

As we struggle, Rawls' ideas can serve both during this crisis and in its aftermath as, if not the end point, at least the beginning of a search for a more just and humane society.

**The pertinent questions through Rawls's ideas in the context of COVID-19 would be -**

- So, how would you design social and political institutions or, in other words, the 'basic structure' of your society under such circumstances?
- Would you want a society where only a few rich people can access healthcare or one where everyone can afford it?
- Would you wish to have a political system that protects only the young from this virus and leaves the old to their fate?
- Would you prefer a society that ensures fair wages to those whom economist Guy Standing called "the precariat" (named so owing to the precarious nature of their work and their lives)?
- Or would you rather leave them to scramble for a living, making them vulnerable both to the virus and to destitution?

### 2.2.9. John Stuart Mill

John Stuart Mill carried forward the philosophy of **utilitarianism**, which was initially propounded by Jeremy Bentham. Mill fully accepted Bentham's devotion to **greatest happiness principle** as the basic statement of utilitarian value.

#### Key lessons from the philosophy of Mill-

- **Quantitative utilitarianism/ Ethical hedonism-** As per this, an action is right, if it produces the greatest good for the greatest number. An action is right if it produces pleasure and wrong if it produces pain. Also, every individual will seek pleasure and avoid pain. As per Bentham, since all pleasures are equal, so a suitable arrangement of these pleasures and pains should be achieved where **greatest good of greatest number** can be achieved.

- **Qualitative utilitarianism-** Mill distinguished between quantitative and qualitative pleasures (known as Rule-Utilitarianism) to highlight that Intellectual pleasures are better than sensuous pleasures that we ought to seek satisfaction of higher capacities. He declares that more valuable moral pleasures are those which employ "higher faculties."
- **Idea on liberty-** It highlights that harm principle which propounds that the people should be free to act however they wish unless their actions cause harm to somebody else. Individuals are rational enough to make decisions about their well-being. Government should interfere when it is for the protection of society.

### 3. Lessons from the Lives and Teachings of Great Leaders

#### 3.1. Mahatma Gandhi

'*My Experiments with Truth*', the biography of Gandhi is well known, however from ethics point of view his ideas are very crucial. His ethical values were guided by the leanings in ancient text of **Bhagvad Gita** and for him, **dharma** is everything. As the Dharma in the Indian tradition, commands morality in the sense of righteous conduct. Mahatma Gandhi has raised dharma to a higher pedestal, signifying a quality through which we know "**our duty in human life and our relation with other selves**".

In his life, Gandhi set an example of self-sacrifice, demonstrated the highest standards of personal integrity, honesty, pristine purity, transparent public and private life, fairness and justice which are the basic ingredients of Gandhi's ethics.

##### Key Gandhian lessons at individual level-

- **Concept of Truth and God-** According to his ideas, Truth is divine hence it should be an **ideal of human conduct**. As per him, truth is a **relative truthfulness** in word and deed and the **absolute truth** i.e. absolute reality is god and morality. Devotion to Truth is the sole justification for our existence. All our activities should be directed towards finding the Truth. In his words, "Truth should be the very breath of our life".
- **Relationship between Means and Ends-** Gandhi highlighted indivisibility of means and ends i.e. means (method/techniques) and ends (goals/outcome) both should mutually justify each other, and no one should give preference over another. This moral sentiment is reflected when he said, "be the change you wish to see in the world". No wonder, he called off non-cooperation movement in 1922 when it was on peak, considering the means (use of violence) is not matching the ends.
- **Non-violence-** According to Gandhi, Ahimsa is infinite love/ infinite capacity of suffering. He used non-violence to realise truth. He was of the opinion that Non-violence is strongest force and attribute of very strong character.
- **Seven deadly sins-** He explained the seven unethical practices in his idea of Seven Deadly Sins i.e.
  - Wealth without work
  - Pleasure without conscience
  - Science without humanity
  - Knowledge without character
  - Politics without principle
  - Commerce without morality
  - Worship without sacrifice.
- **Importance of sanitation-** Gandhi's views on cleanliness. Mahatma Gandhi said "Sanitation is more important than independence". He made cleanliness and sanitation an integral part of the Gandhian way of living. His dream was total sanitation for all. Cleanliness is most important for physical well-being and a healthy environment. It has bearing on public and personal hygiene. Mahatma Gandhi said, "I will not let anyone walk through my mind with their dirty feet." He dwelt on cleanliness and good habits and pointed out its close relationship to good health.



## WHAT HAPPENED AT CHAURI CHAURA?

- In February 1922, the non-cooperation movement was at its peak. Galvanised by Gandhi and the Khilafat movement, many signed up as volunteers in Chauri Chaura
- A few days earlier, volunteers picketing foreign cloth, meat, fish and liquor, were thrashed by the police. On February 4, large numbers gathered in protest and marched to the station. After a confrontation, the police fired, killing three people and injuring many more. The furious mob burnt the station, with the 23 men trapped inside
- A disappointed Gandhi called off the non-co-operation movement
- The event tested and clarified Gandhi's principles of non-violent satyagraha. Gandhi held himself accountable, fasted in penance, asked for the highest penalty at his trial. For him, no future goal justified violence in the present; it could not be the means to any political end. **Self-discipline was crucial to self-sovereignty and swaraj.**

### Key Gandhian lessons at community level-

- **Sarvodaya-** It is based on concept of unity of existence. It teaches universal love as the only love of life. Sarvodaya means universal welfare of all living being. Gandhi advocates that Sarvodaya is the true panacea for all types of social or political problems experienced by Indian society.
- **Concept of Trusteeship-** According to the **theory of trusteeship** all material property of the society should be seen as a common wealth belonging to the society. The property owners are trustees of this wealth therefore was not required to take more than what was needed for a moderately comfortable life. The other members of society who were associated with the property were jointly responsible with the owner for its management and were to provide welfare schemes for all for the ethical wellbeing of society.
- **Idea of Sarva-dharma-sambhav-** To prevent conflicts caused by religious bigotry, Gandhi suggested "Sarva Dharma Sambhav". According to it all religions are true and man cannot live without religion so he recommends attitude of respect and tolerance towards all religions.

- **Satyagraha**- It is characterized by adherence to truth, non-violence, and self-suffering, by operating within a conflict situation, aims at a fundamental social and political change.
- **Concept of Gram Swaraj**- The fundamental concept of Gram swaraj or village self-rule is that every village should be its own republic, independent of its neighbours for its own vital wants and yet interdependent for many others in which dependence is necessary. Each village should be basically self-reliant, making provision for all necessities of life - food, clothing, clean water, sanitation, housing, education and so on, including government and self-defence, and all socially useful amenities required by a community.
- **Women empowerment**- Gandhi ji was of the opinion that women were capable of infinite strength, which they only needed to realize and channel. Women had a key role to play in the family, in Gandhi's opinion. The family was the crucible of society where future citizens, leaders and lawgivers were nurtured. Gandhi strongly favored the emancipation of women and opposed ills such as Purdah, child marriage, sati among others.
- **Untouchability**- According to Gandhi, practice of untouchability is moral crime. All human beings are equal and harijans to have right for social life. He was of the opinion to bring basic change in caste structure by uplifting untouchability and not by abolishing caste.

### 3.2. Amartya Sen

Amartya Sen is an Indian Economics Nobel Laureate. He has contributed to the cause of human development and poverty alleviation. Sen through his seminal work, **Poverty and famine** argued that deprivation largely occurs due to the absence of entitlement to food, rather than the absence of food itself. He recognises that the market can provide entitlement provided all people can get work and a reasonable wage.

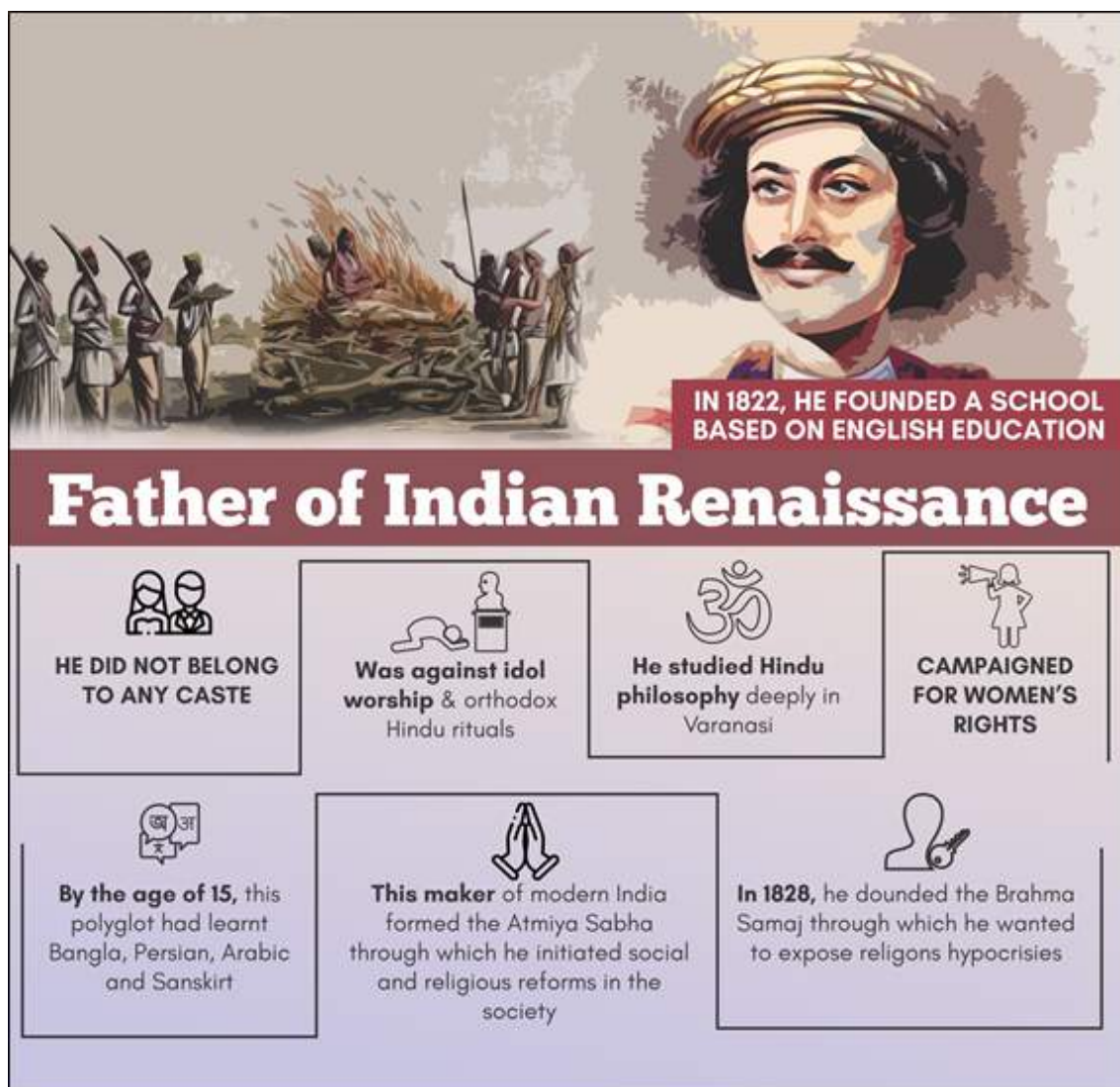
#### Key lessons from the life and works of Sen-

- **Capability development approach**- He has broadened the sphere of human development by bringing people at the centre of development. He argues that the purpose of development is to **enlarge all human choices** and not income. Thus, state should invest in people and enable them to use those capacities appropriately.
- **Idea of Justice**- Sen argues that objective of justice should be more concerned with the elimination of removable injustices rather than defining a perfectly just society. He links this with capability approach and states that a state is more just, if its people **enjoy more freedoms** to live a life they have a reason to value.
- **Tolerance**- He also tried to establish that societies where a healthy culture of debate and dissent is cultivated and people exercise tolerance to each other's point of view, they flourish economically as well.

## 4. Lessons from the Lives and Teachings of Great Reformers

### 4.1. Raja Ram Mohan Roy

He was famously termed as **Father of Indian Renaissance**. He had a broad social vision and a striking modernity of his thought. He was a tireless social reformer and fought for various social evils in the eighteenth century, the most prominent one being the **practice of sati**. He also revived interest in ethical principles of Vedanta school as a counterpoise to increasing Western influence on Indian culture.



### Key lessons from his life and teachings-

- **Humanism**- He preached love for human beings, stop animal sacrifice and offerings. It came forward for the promotion of charity, morality, piety, benevolence, virtue and the strengthening of the bonds of union between men of all religions and creeds.
- **Cosmopolitanism**- He was a truly cosmopolitan figure, a global citizen, who argued for political liberty, civic freedom and social justice for all humanity using the Enlightenment tool of universal reason.
- **Scientific temper**- He always raised a view that every social practice must fulfil the principles of science and rationality.
- **Universal spirit of religion**- He attacked the various ceremonies, practices and ills which crept in Hinduism and alleged that they alienated Hinduism from the poor masses. He reaffirmed that every religion's **spirit should be towards service all its believers**, rather than a few dominant ones.

### 4.2. Baba Amte

A noted social worker, activist and Gandhian, he was known particularly for his work for the rehabilitation and empowerment of the marginalized and the ostracized. He devoted his life to many other social causes, most notably the Quit India movement, raising public awareness on fighting corruption and the importance of ecological balance, wildlife preservation. He also used Gandhi's principles to fight against corruption, mismanagement, and poor, shortsighted planning in the government.

### Key lesson from his life and teachings

- **Compassion-** He founded the **Anandwan Ashram**, which was a rehabilitation centre for leprosy patients where they were taught to become self-sufficient through hard work.
- **National Integration-** He organized **Bharat Jodo Abhiyan** to re-infuse the spirit of national integration, when there was cynicism due to communal strife in the country.
- **Environmentalism-** He worked in **Narmada Bachao Andolan**, which fought against unjust displacement of local inhabitants as well as damage to the environment due to construction of Sardar Sarovar Dam.

## 5. Lessons from the Lives and Teachings of Great Reformers

### 5.1. E. Shreedharan

Commonly known as **Metro man**, who by the virtue of his hardwork and dedication brought comfort to the lives of masses. His work and vision have redefined the **public transport** be it **Delhi Metro** or **Konkan Railways**. He was known for his **clear thinking** and **adherence to deadlines**.



*Sreedharan's expertise and foresight-on behalf of those not as richly blessed as he was- ensured that political will was converted into a multipurpose railway project. The [Chithoni railway link] bridge was completed eleven weeks ahead of schedule and proved to be helpful to one and all.*

## INDIA'S RAILWAY MAN

Two key railway projects changed the way India travels by train-the 760-km stretch of Konkan Railway and the Delhi Metro. Both the projects were up and running in seven years flat and the man incharge was Dr Elattuvalapil Sreedharan, popularly known as the Railway man. He has been hailed as the messiah of new-age infrastructure projects and his success stories have become railway engineering benchmark

### Key lesson from his life and work-

- **Diligence and Perseverance-** Despite working with government organization, Shreedharan had to face many challenges in the form of political interference and resource paucity in the process of completion of project, he was about to quit the project due to disagreement with Railway ministry over choice of gauge. However, he persevered and deliver the project not only on scheduled time but completed it with transparent integrity.

Student Notes:

- **Equal access to public utility-** As a firm believer in the democratic ethos of public utility, he believed that every citizen should have equal access to it. These values are clearly seen in operation of various projects he had undertaken like Delhi Metro.
- **Ethical work culture-** He described punctuality, integrity, professional competence and social accountability as the four cardinal pillars of work culture and attributed his success in life to scrupulous adherence to these values. He believed that **ethics must be a compulsion, not an option.**

## 5.2. TN Sheshan

An IAS officer of 1955 batch from Tamil Nadu cadre, managed to stamp his authority on the country's electoral system during his term as the country's 10th Chief Election Commissioner from 1990 to 1996. He was awarded the Ramon Magsaysay award in 1996 for "his resolute actions to bring order, fairness, and integrity to elections in India, the world's largest democracy.

### Key lesson from his life and work

- **Leadership-** He changed the face of elections in the country. He identified over 100 common electoral malpractices, including the preparation of inaccurate election rolls, mistakes in setting up polling stations, coercive electioneering, spending more than the legal limit, using goons to snatch polling booths and general abuse of authority.
  - He enforced the Model Code of Conduct, strictly monitored limits on poll expenses, and cracked down on several malpractices like wall graffiti. The issuance of Voter IDs for all eligible voters came into being under his strict watch.
- **Disciplinarian-** He was ruthless and unforgiving when it came to electoral rules and practices. He enforced strictness on his electoral staff as well as on politicians for any kind of electoral malpractice or indiscipline. In 1994, he advised then Prime Minister to remove two sitting cabinet ministers from the cabinet for reportedly influencing voters.
- **Resoluteness-** He believed in two principles i.e. **zero delay** and **zero deficiency**. He faced various challenges, but he responded to them in the following way- **"I am like a ball. The more you kick me, the more I will bounce back."**

## 6. Way Forward

The actual transformation of ethical values from **an option to compulsion** takes place when these values are **internalized** and practiced with integrity. It is crucial that apart from remembering ethics, one should ensure that ethics should become his/her way of life. Also, there should not be any compromise in the domain of ethics.

## 7. Previous Years UPSC GS Mains Questions

1. Discuss Mahatma Gandhi's concept of seven sins.
2. Analyse John Rawls's concept of social justice in Indian Context.
3. "Great ambition is the passion of a great character. Those endowed with it may perform very good or very bad acts. All depends on the principles which direct them." – Napoleon Bonaparte. Stating examples mention the rulers
  - a. who have harmed society and country,
  - b. who worked for the development of society and country.
4. "If a country is to be corruption free and become a nation of beautiful minds, I strongly feel there are three key societal members who can make a difference. They are father, the mother and the teacher." – A. P. J. Abdul Kalam. Analyse.
5. What do each of the following quotations mean to you in the present context?
  - (a) "The true rule, in determining to embrace, or reject any thing, is not whether it has any evil in it; but whether it has more evil than good. There are few things wholly evil or wholly good. Almost every thing, especially of government policy, is an inseparable

compound of the two; so that our best judgment of the preponderance between them is continually demanded.” – Abraham Lincoln.

(b) “Falsehood takes the place of truth when it results in unblemished common good.” – Tirukkural

6. “An unexamined life is not worth living.” – Socrates

7. “A man is but the product of his thoughts. What he thinks, he becomes.” – M.K.Gandhi

8. “Where there is righteousness in the heart, there is beauty in the character. When there is beauty in the character, there is harmony in the home. When there is harmony in the home, there is order in the nation. When there is order in the nation, there is peace in the world.” – A.P.J. Abdul Kalam

9. Given are two quotations of moral thinkers/philosophers. For each of these bring out what it means to you in the present context.

(a) “The weak can never forgive; forgiveness is the attribute of strong.

(b) “We can easily forgive a child who is afraid of the dark; the real tragedy of life is when men are afraid of the light”

10. Given below are three quotations of great moral thinkers/philosophers. For each of these quotations, bring out what it means to you in the present context:

(a) “There is enough on this earth for every one’s need but for no one’s greed.” -Mahatma Gandhi

(b) “Nearly all men can withstand adversity, but if you want to test a man’s character, give him power.” - Abraham Lincoln

(c) “I count him braver who overcomes his desires than him who overcomes his enemies.” – Aristotle

## 8. Previous Years Vision IAS GS Mains Questions

1. *Bring out Gandhiji's philosophy of Means and Ends.*

**Approach:**

- Briefly define Means and Ends.
- Explain Gandhian perspective on the relative importance of Means and Ends.
- Conclude with the relevance of his philosophy in the modern world.

**Answer:**

In simple terms, **ends are the goals or results. Means** are the methods used to achieve goals. There are differing schools of thought with some justifying any means for achieving the goals while others uphold the need for right means to achieve the objectives in true sense.

For Gandhiji, there is some **inviolable connection** between means and ends similar to the one between **a seed and a tree**. Gandhiji, stated **that it is means, rather than ends, that provide the standard of morality**. As per him, **the only thing that is completely within control is the means to achieve the goal**. For Gandhi ji, violence and non-violence cannot be different means to serve the same end, since they are **morally different in quality and essence**, they must necessarily **achieve different results**.

**Gandhiji, in his moral and political thought, gave truth and non-violence** the highest importance and said that ‘ahimsa’ is the means to reach ‘satya’, which is the end. His view was that impure means can never lead to a pure end. Gandhiji also said that choosing the rightful means to achieve a goal may appear to **be too long, but he was convinced that it is the shortest route**. According to Gandhiji, means are after all everything. He said, **‘as the means, so the ends.’**

Gandhiji’s views on ends and means hold ground in view of the fact that India, after gaining independence through his **methods of satyagraha**, adopted his **principle of**

**Sarvodaya** (progress of all) and became the **largest democracy** in the world. It is constantly growing towards **becoming a better nation in terms of economy as well human values**. Adoption of his view on ends and means will help morality and ethics prevail in the society, which is largely seen missing in personal as well as public life.

2. **Highlight the important teachings of Swami Vivekananda, relevant to the youth of today.**

**Approach:**

- Introduce the answer by highlighting the need to remember teachings of Swami Vivekananda.
- Discuss the teachings of Swami Vivekananda relevant to the youth in the current context.
- Conclude the answer on the basis of the above points.

**Answer:**

The philosophy of Swami Vivekananda and the ideals for which he lived and worked are a great source of inspiration for the youth today. He wanted the countrymen including the youth to have '**muscles of iron**', '**nerves of steel**' and '**minds like thunderbolt**'. Owing to this, his birth anniversary i.e. January 12<sup>th</sup> is commemorated and celebrated as **National Youth Day**.

**Certain teachings relevant to the current youth are as under:**

- **Character building:** He believed that the nation's youth held the key for solving various problems facing India. According to him, each human being with his/her own potential could guide himself/herself (Atma-Nirmana) and at the same time play an active role in the society. This emphasis on individual potential is relevant to the youngsters to develop their skills and carve an identity for themselves.
- **Education and society:** Vivekananda had attached great significance to the role of education in society building. He believed that the Indian society had its own fundamental characteristics like guru-shishya parampara etc. since the beginning, which should be maintained at any cost.
- **Philanthropy & service to mankind:** Vivekananda once said, "**so as long as the millions live in hunger and ignorance, I hold each man a traitor.**" Such a call inspired the youngsters to serve the suffering humanity. This is relevant to the youth, as it will encourage the spirit of social service, philanthropy, and humanitarianism.
- **Spirit of national awakening:** He wanted youth who would eventually be leaders, contribute to national awakening, preach and teach the eternal spiritual truths of our forefathers. With his messages of "**Arise, Awake and Stop not till the goal is achieved**", he inspired youngsters to invoke the spirit of nationalism.
- **Universal tolerance:** His famous speech at the World Parliament of Religions, emphasized **universal tolerance**. This teaching is significant for the youth in a highly polarised global world order.
- **Meaningful life:** He wanted the youth to live a meaningful life through different quests like **physical quest** (for ensuring physical fitness), **social quest** (for undertaking social activities aimed not only for the betterment of society but also the individuals), **intellectual quest** (for building intellectual strength) and **spiritual quest** (for achieving spiritual and psychological well-being).

**Cultural capital and Vedanta:** His interpretation of the Vedanta, not only brought him closer to the masses but also established several milestones in the cultural

development of India. His teachings centre around the themes of Vedas and Upanishads, which are relevant for the young population. Swami Vivekananda believed that the young generation, which he called as the modern generation, is very powerful. It can do anything and everything and has the eternal power to even revive the whole country and realize his dream of making Bharat a Vishwa Guru once again.

Student Notes:

**3. *Courage is the most important of all the virtues because without courage, you can't practice any other virtue consistently***

**Approach:**

- Explain what you understand by courage.
- State its importance as a virtue that is important to practice other virtues.
- Conclude on the basis of above points.

**Answer:**

Courage means strength, whether moral or physical, to confront adversities such as danger, dilemma or opposition. It also means conviction to do what one believes in and take decisions based on those beliefs. Aristotle recognized that courage is the first of human virtues because it is the one that guarantees other virtues. Without courage, one cannot practice any other virtue consistently, such as:

- **Assertiveness:** It refers to achieving goals by setting appropriate boundaries. Prime Minister Nehru was courageous when he decided that India would remain non-aligned and maintain equi-distance from the US and the Soviet Union during the Cold War era despite enormous pressure.
- **Integrity:** Integrity is the practice of being consistent, honest and moral. Sanjeev Chaturvedi displayed integrity while working as Chief Vigilance Officer of All India Institute of Medical Sciences (AIIMS), even though he had to wage a legal battle to face the consequences.
- **Perseverance:** It means continued effort and determination in order to achieve something despite difficulties or delays. Courage was displayed by citizens who persistently mobilized for the rights of the community as a whole in the face of odds. For e.g. the Chipko movement, Appiko movement, Narmada Bachao Andolan, India Against Corruption movement etc.
- **Fortitude:** It means display of strength during times of adversity. There are various examples in the form of Holocaust survivors who fought against the oppression of Nazis.
- **Selflessness:** It refers to the quality of caring more about what other people need and want than about one's own needs and wants. Dr. Arunoday Mondal, who set up Sujan Sundarban, travels to remote Sundarban villages and has treated numerous poor people.
- **Truthfulness:** Courage of conviction and truthfulness go hand-in-hand as a person should be courageous to tell the truth even in times of distress. This what drives the admirable efforts of RTI and Human Rights activists.

Thus, courage as a virtue enables other virtues and empowers a person to be honest and unbiased. Further, it gives a person the strength to rise above considerations of caste, community and religious identities.

4. *There is a higher court than courts of justice and that is the court of conscience. It supersedes all other courts.*

Student Notes:

**Approach:**

- Briefly explain conscience and how it works
- Discuss the constraints of court of justice and how conscience can fill in those gaps.
- Discuss conscience as a positive tool to make moral decisions.
- Conclude with some ways to strengthen the voice of conscience.

**Answer:**

**Conscience** is an inner sense of right and wrong based on an individuals' moral values. In case of any wrongdoing, conscience creates internal dissonance leading to a feeling of guilt, loss of self-respect and peace of mind. **Court of justice**, on the other hand is external, it is a post-mortem exercise. It is constrained in its functioning in several ways- Immanuel Kant aptly observed that, "In law a man is guilty when he violates the rights of others. In ethics he is guilty if he only thinks of doing so." The courts of law have limited scope of activities. Conscience, on the other hand, is one's constant companion.

The meaning of the given quote can be further illustrated by the following:

- Courts of law are based on procedures - they require **establishment of guilt beyond doubt** for a person to be punished. A powerful person can evade court of justice by exploiting loopholes or for want of evidence. For example, perpetrators of communal riots are seldom convicted in court of justice but before the court of conscience, they are guilty of murdering people.
- Courts of law alone might not bring a transformation of criminal's mind by imposing punishment. However, conscience directs a person towards reformation by seeking to change the behaviour at deeper levels i.e. emotional and psychological.
- Further, conscience acts as a **positive tool** in many cases. It acts as the source for a sense **of duty** in a person to act morally. For e.g. health workers despite being at risk of covid-19 disease themselves, are conscientiously doing their duty.
- Conscience also **helps in solving issues** like conflict of interest, corruption, nepotism, crony-capitalism. For e.g. conscience may nudge a judge to recuse himself from cases in which they have an interest.

In this context, conscience assumes importance as one can evade the courts of law but the inner voice will hold the person to account. Thus though the court of conscience has wider scope than the court of justice, still conscience needs to be educated to make it work as an effective ethical decision making tool.

As, conscience may mean different things to different people, thus, it often fails in preventing wrongdoing such as honour killing, dowry, cruelty towards animals, extravagance, etc. Therefore, the court of conscience needs to be strengthened through building one's ethical competence. And court of law must ensure justice to maintain public order.

5. *Discuss Vivekananda's views on nationalism. Do you think nationalism has become more a divisive force in the world today than one that integrates?*

**Approach:**

- Briefly, define Nationalism.
- Highlight Vivekananda's views on nationalism.
- Provide arguments and examples to support the statement.
- Give an appropriate conclusion.

**Answer:****Student Notes:**

Nationalism is defined as loyalty to a nation or sense of national consciousness, elevating one nation above all others. It primarily emphasizes on promotion of one's own national culture and interests as opposed to those of other nations or supranational groups.

**Vivekananda's views on nationalism**

Vivekanand's views on nationalism were not based on geographical or political or emotional unity or a feeling that 'we are Indians'. His views on nationalism were deeply spiritual. It was spiritual integration of the people, a spiritual awakening of the soul. He recognised the prevailing diversity on so many basis and suggested that nationalism in India cannot be sectarian like the west.

For him, Indian people were deeply religious and from it can be derived the unifying strength. A unity in purpose and action can be achieved through a cultivation of national ideals. He recognized compassion, service and renunciation as the national ideals. Hence, nationalism for Vivekananda was based on universalism and humanism.

- He believed that there is one all dominating principle manifesting itself in the life of each nation and India's theme was religion. Swami Vivekananda's nationalism is deeply rooted in religion, Indian spirituality and morality, contrary to western nationalism based on secularism.. Here, the spirituality is viewed as point of convergence for all religious forces of India capable of unifying into a national current.
- He also considered ideals of Humanism and Universalism as a basis of nationalism. These ideals guided people to first get rid of self-inflicted bondages and resultant miseries.

During the last two centuries, nationalism has passed through many phases and emerged as one of the most compelling forces, which both united people and divided them. In the nineteenth century, it led to the Europe's unification and the breakup of colonies in Asia and Africa.

However, contemporary world is witnessing significant rise of hardline nationalism. The swaying away of USA from established conventions of international politics, BREXIT, demand for second referendum for Scottish independence are some examples of the same. As such, a parochial view of nationalism has taken stronghold in many groups, who want to ascertain their rights and privileges on others. Nationalism in this form divides nations, isolates them and leads to economies which heighten inequality, drive away people who can contribute to the nation.

In contrast to the divisive forces of modern nationalism, Swami Vivekananda articulates a vision that is universal in its reach and the focuses on oneness of spiritual identity. It is time to imbibe his understanding of "enlightened nationalism" which stresses that there could be no spiritual or ethical justification for one nation occupying another.

6. ***The golden rule of conduct is mutual toleration, seeing that we will never all think alike and we shall always see Truth in fragment and from different points of vision. Mahatma Gandhi.***

**Approach:**

- Briefly discuss the meaning of the quotation.
- Bring out the relevance of given statement in the present time.
- Conclude the answer.

**Answer:****Student Notes:**

Our behavior is based on our own reasoning. Our reasoning is based on our values, beliefs, experiences, etc. Every individual is subjected to a variety of values, beliefs and experiences during his/her lifetime. As such, in their own way, people act correctly, but differently. It is because people think that they act correctly, there is always a scope of difference of opinion and action with others, who in their own stead also act correctly. It is in this recognition of basic human behavior and the limitation of human mind to know everything that Gandhiji made this statement- because we cannot always think alike, the best way to conduct is by tolerating the divergent or different opinion.

In a society with diverse values, culture and social norms, it is natural to have differing viewpoints on the same issue. For such a diverse society to be in peace, tolerance is essential. An individual's conduct should be guided by tolerance and empathy for diverse opinions, ideologies and cultures while valuing the basic universal values of love, non-violence and basic human rights. Rigid and negative attitude towards diversity ignores the fact that truth is fragmented, and misses the larger vision.

Although conscience is a good guide to moral conduct, it is not the same for all, and therefore, imposing one's own conduct on others amounts to insufferable interference with their freedom of conscience. This vision is also emphasized in Jain concept of 'Syadavad'- relativity of Truth. It implies that there can be many truths rather than adopting one rigid approach.

In contemporary times, the statement serves as a guiding light for the world witnessing divisions across multiple lines- region, religion, wealth, color, and many more. An attitude of intolerance leads to restriction of space for expression of ideas. Divergent views enrich the discussion and are the source of innovation, progress and inclusive growth.

The intellectual basis for tolerance comes from respect, curiosity and skepticism and rationality. Also, it is necessary to differentiate between tolerance and acceptance. Divergent views must be encouraged, but their acceptance should not depend merely because they are divergent. Acceptance should be based on debates and discussions in which everyone gets to know the 'truth' of the other and hence, become more aware and rational. But for debate to take place, tolerance again becomes the necessary aspect of conduct, and hence it is the golden rule.

**7. *The mind of the superior man is conversant with righteousness; the mind of the mean man is conversant with gain. Confucius.***

**Approach:**

- Briefly, elaborate the quote.
- Provide arguments /examples to highlight the present-day relevance of the quote.
- Conclude the answer.

**Answer:**

'What is the right thing to do?' may be different for different people. In the given quote, Confucius is trying to argue that superior amongst people are those who are concerned with what is right, and not merely what is right for them alone. As an example, a person who takes a long term view or whose thoughts, speech and action are aligned with the collective good of society, would be a superior man as compared to a person who remains selfish, greedy and follows self-centred tendencies and unethical means, who would be a mean man.

Generally, it is easier and more profitable to pursue greedy self-interest when a person has to choose between it and the collective societal good. Preferring immediate gratification and short-term gains over long-term collective gains to the society is often clearly visible, and hence becomes the chosen course. Such “mean man” tendencies are often seen in daily acts like tax evasion, littering public places, paying no regard to traffic rules, un-mindful use of water/electricity, displaying no compassion towards animals or making electoral choices purely out of religion/caste considerations etc. Worst form of “mean tendency” is seen when people indulge in abhorrent acts like human trafficking, drug abuse, terrorism and adulteration which have long term negative consequences for the society. On the other hand, a superior man, with simple acts such as saving and segregating waste to be disposed-off properly undertakes more effort with lesser immediate benefits to himself.

It also raises the important issue of the limited understanding of what is the right thing to do. Broadly, the scope of righteousness constitutes: (i) Correct personal conduct, (ii) Not indulging in personal aggrandizement, (iii) Doesn't cause harm or violate other citizens rights or cause social trouble. The goals that we desire and the principles that we use in their pursuit are the primary parameters to judge what is righteous or not. People like Swami Vivekananda, Mahatma Gandhi and Dr Abdul Kalam rose above self-interest and devoted one's life and energy towards humanity are role models for modern society. However, it is imperative that everyone cannot be a mass leader and sacrifice most self-interest for others. Still, everyone can be a leader in one's own right and have a longer vision for oneself and the society. This way, everyone can aspire to not be a mean man and progress towards being a superior man. Even by doing simple tasks such as following the taxation laws in letter and spirit makes one a superior man. In this case, the task of deciding what is the righteous thing has been left to the State-which decides the laws; the task of man is not to be the mean man by selfishly seeking short-term gains.

**8. *"I learned that courage was not the absence of fear, but the triumph over it. The brave man is not he who does not feel afraid, but he who conquers that fear"- Nelson Mandela***

**Approach:**

- Elaborate and explain the given statement.
- Mention the significance of courage in personal and public life.
- Give a suitable conclusion.

**Answer:**

Courage is not simply absence of fear. It is the virtue of taking righteous decision or action in the face of fear. It is rightly said that courage is 'being terrified but going ahead and doing what must be done'.

Fear is something that we all have struggled with at some point in our lives - fear of expressing your honest opinion on something, fear of pursuing your dreams etc. The one who feels no fear is a fool and the one who lets fear rule him is a coward.

In the recent Me Too movement, ordinary citizens (victims) raised their voice against high and mighty individuals. It takes immense courage to challenge persons occupying powerful positions and seek justice.

The life of Nelson Mandela is testimony to such courageous acts. He stood for a justified cause of ending apartheid. He remained undeterred even in the face of discrimination and threat to his own life.

- **Thriving in adversity:** Courage is to stand for a justified cause, even in the face of adversity. It is *sine qua non* for good governance and efficient public administration. A civil servant should not yield to unreasonable demands by public officials, elected members of legislatures, other representatives of people etc. They also need to exercise courage while providing frank, independent and unbiased advice to the executive.
- **Self-belief and commitment to social cause or cause that the state stands for:** Only courageous mind can truly stay committed to the cause of oppressed and deprived. Such state of mind can be attained when a person has eternal belief in his cause and purpose for life. This instills sentiments of compassion and empathy for a bureaucrat. But one of the most important elements of courage is to continue doing what one believes in. To persevere for justified cause is important for individual self, society and nation at large.

Mandela's 27-year long struggle in prison and his tenure as the first-ever black President symbolize the importance of self-belief and courage of conviction. This is a lesson civil servants of today can take while working for vulnerable and oppressed sections of the society.

9. ***"Not everybody can be famous, but everybody can be great because greatness is determined by service"- Martin Luther King.***

**Approach:**

- Briefly discuss the significance of service in this context.
- Mention your own understanding of the quote.
- Highlight the relevance of quote in the present context.
- Give a suitable conclusion.

**Answer:**

Service in this context means '**Service to others or the mankind**'. Serving other makes a person look beyond self. Service to other leads to selflessness. It means doing something for someone else without expecting any reward or gain. Making a difference in their lives.

However, it is possible only when a person's heart and soul is full of grace and love. Otherwise, it will be merely acting for the purpose of gain. The life of Martin Luther King was dedicated for the well-being and upliftment of others. He was dedicated to serving others and end racial inequality in the USA.

However not everyone involved in the service of others are recognized by others. They remain unsung hero. It is the spirit to serve humanity and alleviate the sufferings of others without any expectation from society makes them great.

We have multiple examples of individuals who have tirelessly toiled for years without yearning for acknowledgement and recognition.

- **Mr. Karimul Haq**, popularly known as '**Bike-Ambulance Dada**', turned his two-wheeler into an "ambulance" to hospitalize patients in remote areas of West Bengal. He has saved more 3500 lives of road accident victims and emergency patients.
- **Saalumarada Thimmakka**, a 106 years old environmentalist, has planted and nurtured more than 8000 plants in last 80 years.

Recently both of them were awarded **Padma Shri**. They acted without desire for recognition or publicity. They had an inherent urge to remove sufferings from others life which encouraged them to work relentlessly. On the other hand, there are instances of certain activists and NGOs, which **became famous** for reasons **other than service** to others.

Keeping this in mind, a civil servant should always yearn to serve others in best of their capabilities, without longing for fame. This also assumes importance given that anonymity is a foundational value for civil servants. In case they are tempted to gain individual publicity, they should remind themselves of Mahatma Gandhi who rightly quoted that “the best way to find yourself is to lose yourself in the service of others.

**10. A nation should not be judged by how it treats its highest citizens, but its lowest ones.  
Nelson Mandela**

**Approach:**

- Briefly explain what you understand by the given quote.
- State the issues faced by the disadvantaged groups in India that need to be addressed.
- Conclude suitably.

**Answer:**

The quote captures the essence of inclusivity in a society. A nation may grow economically but it truly progresses when the fruits of growth are not merely appropriated by those who contribute the most to it, but equitably by those who need them the most. As a corollary, it also means that rule of law is supreme and that it cannot be different for the ‘highest’ and the ‘lowest’ citizens - it should be equal for all citizens. This is essentially what the framers of the Constitution also envisioned for an independent India i.e. a just and equitable society.

In the present context, it applies even more as increasing inequality has created large gaps in the opportunities - those at the bottom are finding it more difficult to reach the social, economical and political level that they aspire for. In order to achieve the above, India needs to reduce the gap between the haves and the have-nots across these domains. The concerns of the deprived and disadvantaged members of the society need to be addressed. These include:

- Pulling out approximately 73 million people out of poverty and providing a basic standard of living for all its citizens.
- Ensuring that no one is subjected to social and occupational discrimination based on ascriptive factors like caste.
- Taking into consideration the relationship of people (such as farmers, tribals) with the land for their rehabilitation in case of acquisition of land.
- The literacy rates of marginalized sections like SCs, STs, minorities remain below the national average. The proportion of children suffering from under-nutrition and malnutrition is high, access to health, education and jobs is poor amongst such groups.
- Ensuring that rule of law is there not merely on paper but in practice as well. The over-representation of marginalised communities in prisons reflects that those with means are able to navigate their way out of the clutches of law more easily as compared to others.
- There should be increased opportunities for employment for women and conducive work environment in order to reduce gender gap in employment. Further, they need adequate representation in politics.

These issues reveal entrenched discrimination in society. The measure of India's progress will not be judged merely by the number of Indian billionaires, strides it makes in the field of space science, lavish urban communities it creates, its roads & highways etc. But it will be measured by how much of that development percolates to the bottom most sections of the society. The paradoxical state of India where affluence co-exists with abject poverty and privilege coexists with lack of rights needs to be resolved. The focus of the policy-makers should be to resolve them through development schemes, affirmative action, policies based on inclusive growth, etc. After all, equality is a pre-condition for meeting the challenge of reducing poverty, promoting sustainable development and building good governance.

**11. *The highest education is that which does not merely give us information but makes our life in harmony with all existence. Rabindranath Tagore***

**Approach:**

- Start with the significance of education.
- Explain the quote and bring out its various dimensions.
- Discuss the present day relevance.
- Conclude suitably.

**Answer:**

Education is the basic foundation of human character. It gives information about the world around us and helps build opinions and viewpoints. However, this should not be the ultimate purpose of education. Tagore suggested that through information people may become powerful, but they attain fullness of being through sympathy. The purpose of true education should be to assist humans in gaining that sense of completeness.

Education should create **healthy and wholesome personalities**, which are capable of **rising above differences** and have a broader outlook towards life and diversity. It should inculcate the spirit of **empathy, service and self-sacrifice**, which can help in improving the conditions of marginalized people. Further, it should also generate a **sense of the importance of things around us**, which are important for human life. Therefore, promoting effective and sustainable use of resources for the good of mankind. Ultimately, the need is to **create unity between people without imposing uniformity** that may lead to forcing the individual to blindly imitate the dominant patterns in society. Therefore, it creates a peaceful and harmonious society.

Challenges such as climate change, refugee crisis etc. require collective action. It requires understanding of the issue from different perspectives. Then only one would be able to see the complete picture and act accordingly.

In this scenario, **value-based education** enables citizens to appreciate the differences and live peacefully that would lead to the evolution of society rather than stagnation. **Knowledge about the significance of the things** surrounding human life would lead to sustainable and judicious use of resources and promote practices such as resource conservation, adoption and mitigation. As such the curriculum should revolve organically around nature. The Indian society that is divided along numerous fault lines and faces a resource crunch stands to gain the most from adopting such changes to its education system.

Creation of such an education system requires an active contribution from all the stakeholders of society. It should focus on producing ethically grounded, global citizens rather than profit-makers. Therefore, need is to transform the education system in ways that bring a happy synthesis between the individual and society and help to realize the essential unity of the individual with the rest of humanity.

12. Explain the main elements of integral humanism as propounded by Deen Dayal Upadhyay and highlight its contemporary relevance.

Student Notes:

**Approach:**

- Introduce the concept of integral humanism.
- Highlight its main elements.
- Discuss its contemporary relevance.

**Answer:**

Integral humanism was advocated by Deendayal Upadhyaya in 1965. Tracing its origins to the non-dualistic philosophy of Advaita Vedanta, integral humanism propagated the oneness of various souls, be it of human, animal or plant origin. Rejecting the intrinsic diversity based on race, colour, caste or religion, it identified all human beings as part of this one organic whole, sharing a common consciousness of national thought.

**Main elements of doctrine of integral humanism**

- **Man at the centre of development:** The philosophy considered that it was of utmost important for India to develop an indigenous economic model with the human being at center-stage. It did not reject western philosophies completely rather it evaluates both capitalism and socialism on their respective merits, while being critical of their excesses and alienness.
- **Refutes individualism:** It stresses on the need of an organic relation between an individual and society. There has to be coordination between common goals and individual goals whereby individual goals should be sacrificed for the sake of broader social goals. It encourages the significance of family and humanity to build a complete society.
- **Cultural ethos:** It talks about the integration of indigenous culture with social, economic and political fabric of the nation. It maintains that the essence of Indian culture and its uniqueness should form the background of any political philosophy or development model to be adopted by India.
- **Integrated view:** While accepting various differences, it focuses on the inter-dependency, association and unity rather than divergence, denial and disagreement in various aspects of life. Hence, it works for the **welfare of everyone**.
- **Dharma Rajya:** It represents the ideal duty-oriented state where every individual has power as well as obligations towards its state.
- **Antodaya:** This concept ensures that decision is taken considering that the person who is last in the queue is also taken care of.

**Contemporary relevance**

- It advocates the **holistic idea of human welfare**. The philosophy of integral humanism opposes unbridled consumerism and rapid industrialisation without its benefits trickling down to the poorest of the poor – which is relevant in today's context of **inclusive development for all**.
- The philosophy of integral humanism is also in sync with the modern notions of **democracy, social equality and human rights** since respect and equality of all faiths and castes is an important feature of the Dharma Rajya.
- Integral Humanism aims to provide a **life of dignity to every human being**, thus, promoting policies and principles that can balance the use the labour, natural resources and capital at the same time.
- Adopting this philosophy may **change the approach towards politics** as Pandit Deen Dayal believed that the purpose of politics is to bring about social and

economic changes. This is required in today's context where criminal elements, money power etc. is beginning to dominate politics.

- It may lead to **strengthening of family institution** as this philosophy highlights the role that families and society plays in building a nation

A world where large population lives in poverty this can be an alternative model for development in which social, political and economic needs converge and which is integral and sustainable in nature.

### 13. *Elucidate Swami Vivekananda's ideas on nationalism.*

#### **Approach:**

- Briefly introduce the life of Swami Vivekananda.
- Bring out the various foundations on which his idea of nationalism is based upon.
- Conclude with the relevance of his views in present-day India.

#### **Answer:**

Swami Vivekananda was a major force in the formulation of the concept of nationalism in colonial India. Regarded as the **patriot saint of modern India**, he inspired India's dormant **national consciousness**. Though growth of Nationalism is attributed to the Western influence but Swami Vivekananda's nationalism is deeply rooted in Indian spirituality and morality. He contributed immensely to the concept of nationalism in colonial India and played a special role in steering India into the 20th Century. Basic tenets of his ideas on nationalism include:

- **Spiritualism:** Vivekananda's nationalism is associated with spiritualism. Humanism and Universalism, the two cardinal features of Indian spiritual culture, are prominent in his ideas on nationalism. He called for Indians to understand India's spiritual goal, its place amongst other nations and its role in contributing to the harmony of races.
- **Religious basis:** His nationalism is based on religion which he considered to be the life blood of the Indian people. He taught the **essential oneness of all religions** and condemned any narrowness in religious matters. He condemned the caste system and blind faith in rituals and superstitions, urging evaluation of religious texts based on its conformity to logic, reasons and science. This helped Indians in acquiring a modern, secular and national outlook. He established motherland as the only deity to be worshiped in the mind and heart of countrymen.
- **Roots in Indian Philosophy:** Vivekananda felt that Indian nationalism had to be built on the stable foundation of India's past historical heritage. He revived and advocated the Indian philosophical tradition, particularly **Vedanta** as being a fully rational system. Hence Vivekananda worked for awakening the masses, the development of their physical and moral strength and creating in them a consciousness of the pride in the ancient glory and greatness of India. This helped in fostering greater self-respect, self-confidence, and pride among Indians.
- **Humanism:** For Swami Vivekananda, **humanitarian morality** should favour human progress. He laid emphasis not only on personal salvation but on **social service** as well, that he maintained as the pre-requisite for national awakening. He drew attention to the extent of poverty in India, and stressed upon elimination of poverty.
- **Nationalism vis-à-vis internationalism:** He encouraged people to mingle with the life of other individuals and nations. His love for mankind transcended the geographical limitations. His interests were not confined to India alone but were

extended to international level. He called for the harmony and good relationship with other nations.

- **Ending Cultural Isolation:** Address at the **Parliament of Religions held in Chicago in 1893** started the process of ending India's cultural isolation from all other nations which was leading to her degeneration. He opposed blind imitation of the West and was against colonisation of culture and thought, while welcoming positive elements of modern culture.

Since the onset of 21<sup>st</sup> Century, the world is in turmoil and passing through transition period of a kind. At this hour of human history the message of Swami Vivekananda promoting spiritual integration of the nation and world on the basis of universal brotherhood and goodwill becomes all the more relevant.

**14. *The best way to find yourself is to lose yourself in the service of others. Mahatma Gandhi***

**Approach:**

- Introduce the context of the statement given.
- Explain in brief your understanding of the quotation given in present context.
- Support your argument with suitable examples.
- Conclude on the basis of the above points.

**Answer:**

The quote captures the essence of the life of Mahatma Gandhi who dedicated his life for the upliftment and betterment of others. It highlights that the true core of a person is not inherently selfish, but rather selfless. It means that one can find the true innate nature of self not just by focusing on oneself, but by devoting oneself in the service of other people around them.

The quote is based on the premise that till the time we are self-centered and thinking about personal gains, the true inner identity of the individual won't surface up. It is only when we act out of selflessness and dedicate ourselves to a larger societal cause, that we could realize altruistic qualities of our hidden 'character' – empathy, compassion, compromise, charity, inner strength etc. In this regard, service is a fulfilling activity that can help to see that "we" are not defined by an identity, but by ability, sympathy, connection, and solidarity. Therefore, to lose oneself in the service of others implies nothing but the sacrifice of egoism, self-centeredness, hatred and discrimination based on caste, creed & religion.

Further, by serving others, we not only find more about ourselves but also help others in the process. It helps in achieving the dual objective of self-service and service to the mankind. When we become totally engrossed in the process of helping others, we tend to lose sight of our own petty problems, the things that we think, define us and consequently our true self reveals itself. People like Kailash Satyarthi have found greatness within themselves, only by losing themselves in the service of others.

True fulfillment comes when we are ready to help others. Self-empowerment is when we empower our fellow beings. The moment we dedicate ourself in the service of others, it is that time when we discover our true self. These remarks hold true even in the present age of information and technology, which is exemplified with the life of Bill Gates and Warren Buffet who after achieving all the materialistic gains, have decided to give away their wealth for service of others, thus reflecting that the most essential purpose of human beings is to be virtuous.

15. ***So long as you do not achieve social liberty, whatever freedom is provided by the law is of no avail to you. B.R. Ambedkar***

Student Notes:

**Approach:**

- Introduce the context of the statement given.
- Explain in brief your understanding of the quotation given in present context.
- Support your argument with suitable examples.
- Conclude on the basis of the above points.

**Answer:**

The Indian Constitution guarantees various Fundamental Rights to the citizens, one of which is Right to Freedom. But the freedom guaranteed by the fundamental law of the land does not mean that people enjoy freedom in true sense.

Various social evils existing in the society curtail the individual freedom guaranteed by law. The **hierarchy of caste system and the attached notions of purity and pollution** have curtailed the livelihood opportunities for certain sections of the society. For instance, the practice of manual scavenging limits the mobility of the persons associated with it and in turn hampers their growth potential.

Over a period of time, the society tends to develop its **own mechanisms via norms and cultures** to ensure the oppressive system remain in place irrespective of the freedoms provided by law. The recent agitation for **temple entry movements by women** across the country is an example of how social acceptance of regressive norms (menstruation as pollution) violates the basic fundamental right of women. Further, despite existence of laws, the social liberties of women are curtailed due to prevalence and dominance of patriarchy, thus subverting education and career options for women in a subtle manner.

Social liberty is a state of being free within society where the opportunities are available to all individuals, irrespective of caste, gender, religion, etc. to attain a position in society commensurate with their capabilities. The absence of social liberty **creates inequalities with regard to access to a variety of social 'goods'**, such as education, healthcare, the labour market etc.

In the current context, the **violence related to inter-caste marriages** and the **poor acceptance of homosexuality** in the society also reflects the dissonance between the societal culture and norms and freedom ensured by law. Therefore, a right, which is **guaranteed by law but is opposed by the society, is of no use at all.**

Therefore, it is important to ensure **progressive change in the society in congruence with the progressive legislations.** Bringing social sensitization by awareness building and imparting education can help ensure social liberty for all sections of the society.

16. ***Intolerance is itself a form of violence and an obstacle to the growth of a true democratic spirit. Mahatma Gandhi***

**Approach:**

- Briefly introduce the term 'intolerance' in the introduction.
- Talk about how intolerance breeds violence and threatens democratic spirit.
- One can also talk about how tolerance can help in deepening democracy.
- Conclude appropriately.

**Answer:**

Intolerance is a lack of respect for practices or beliefs other than one's own. It can develop due to differences amongst people on the basis of religion, caste, race, gender,

opinions and affiliations, say to a political ideology/party. When this intolerance creeps over a person, he ceases to grow as he closes himself to other ideas.

This further leads to discrimination, and culminates in violence & persecution. It has the potential to create a polarising impact and a sharply divided polity, which could spell danger, particularly in a multi-layered, multi-religious and multi-ethnic country like ours.

Gandhiji identified 'intolerance' amongst the enemies of correct understanding. This is vital for nurturing democratic spirit, which enables us to make correct decisions ourselves, keeping in mind the overall interests of the society.

Tolerance, on the other hand, strengthens the democratic spirit in people and communities. According to the Socrates, tolerance is about the pursuit of truth. It is about being prepared to see the value of another person's perspective or truth. This is fundamental to democracy, which is about equality and the right of people to believe what they believe. Agreement or consensus may be a desired end, if only to resolve conflict, but it is not a democratic imperative. Tolerance is the tool that helps us democratically manage the dynamics of any plural community or society.

In protecting and cultivating diversity, tolerance also creates the conditions for human flourishing. Disagreement and dissent can be seen as processes of "mutual incitement". When people disagree, they are in fact inciting each other to think anew and differently about established ideas or beliefs. It is through disagreement that we dislodge ourselves from rigid ways of thinking and being – and refine our ideas and positions.

Former Indian President P. Mukherjee once remarked that "Intolerance and violence is a betrayal of the letter and spirit of democracy." India is a nation that prides itself on adhering to values enshrined in its Constitution. As its ardent followers, our aim must be to develop scientific temper and build a tolerant environment.

**17. Try not to become a man of success but rather try to become a man of value. Albert Einstein**

**Approach:**

- In the introduction, give a brief idea of the meaning of the term success.
- Explain why pursuit of success is problematic.
- Conclude while writing in brief about the need to pursue a value-based approach.

**Answer:**

Humans are fascinated with what is possible in life and what they can do or become. They have dreams, hopes and aspirations, passions and thoughts. It is when these dreams, hopes, aspirations turn into reality that they think of themselves as successful. In terms of pure semantics, **success is merely the accomplishment of an aim or purpose**. There is no virtue signaling around the aim or purpose itself i.e. it could be good, bad or indifferent to the society at large.

When Einstein suggests that we must strive to become men of value not of success, his wisdom brings to light the underlying problems around the idea of success. In fact, the fault doesn't lie in the conception of success itself but understanding of the value underlying it. It is what we hold important and how we intend to achieve it that must be regarded.

As much as one might think of success being purely personal, everything around us seems to suggest otherwise. For instance, there is an endless array of advertisements, blogs etc. around ways to become successful and almost all of them measure success in

terms of quantifiable metrics such as wealth, fame, audience etc. This imparts a sense of superficiality to the notion of success. As such, many 'successful' people can be found regretting their life choices, while some even succumb to the pressure of leading a successful life, as witnessed in the CCD case recently.

This often eclipses the need to think about character and morality. Obsession with success alone can cause one to be blinded to morality of both the means and the end. For instance, in pursuit of making windfall profits, corporates often bribe public functionaries.

On the other hand, even as value is a relative concept (i.e. beliefs about right and wrong may or may not be considered moral), chasing values is a harmless pursuit. This is because 'immoral value' is an oxymoron. In a narrow sense, value is that which is good, desirable, or worthwhile. They are the motives behind purposeful actions. While pursuit of success may blind someone, values guide humans by imparting a sense of introspection and assessment of their actions.

Success in itself is not a value. Only when it is qualified by the right set of values, can it hold meaning to both the individual and society at large. More often than not, humans driven by the sense of value also ended up being successful.

### 18. Discuss the contributions of Dr. B.R. Ambedkar to the idea of social justice in India.

#### Approach:

- Give a brief introduction of Dr. B.R. Ambedkar highlighting the influence of his personal experiences on his beliefs and philosophy of social justice.
- Decode his views on social justice in India.
- Conclude on the basis of above points.

#### Answer:

Social justice involves the creation of a just and fair social order to one and all. It aims to tackle the social inequalities and injustices existing in India owing to differences based on caste, community, gender etc. Even after almost seven decades of independence, social justice remains a distant dream for various sections of Indian society.

#### Dr. B.R. Ambedkar's contributions to idea of social justice in India

- His idea of social justice included **all kinds of justice**, namely, legal, economic, political, divine, religious, natural, distributive, administrative as also welfare of children and women.
- His concept of social justice did not merely mean the distribution of social wealth. Instead, it was based on the concept of social democracy consisting of three concepts of justice namely **liberty, equality and fraternity** of all human beings, which draws inspiration from the French Revolution of 1789.
- He ensured that India's Constitution acknowledges the longstanding social injustices of the past and provides for measures of **affirmative action** to facilitate access to opportunities for disadvantaged sections of Indian society. In this regard, various provisions in **Directive Principles and Fundamental Rights** aim towards achieving social justice.
- Being a victim of social inequalities and injustice himself, he had been relentless in his pursuit of a **social system, which is based on right relations between man and man** in all spheres of life.
  - He argued for extensive **economic and social rights** for depressed classes, women and labour.

- He called for **annihilation of caste** as it is highly discriminatory and promotes social immobility, disruptive tendencies, endogamy and anti-social spirit. Article 17 of the Indian Constitution declares untouchability as abolished.
- He put forward the idea of **“Educate – Unite – Agitate”** to access the path to social justice. It means people who have been discriminated against for the past several centuries due to their social origin have to first get ‘Educated’ then ‘United’ and finally they have to ‘Agitate’ for their rights.
- As a rationalist and humanist, he **did not approve of any type of hypocrisy, injustice and exploitation of man by man in the name of religion**. He stood for a religion that is based on universal principles of morality and is applicable to all times, to all countries and to all races. That is why he embraced Buddhism.
- His thoughts on social justice were **progressive** and he considered the **press** to be a powerful tool for social changes for justice and freedom and published Mook Nayak, Janata and Samata magazines.

Hence, Dr. B.R. Ambedkar’s ideas of social justice remain relevant in contemporary Indian society in promoting constitutional and legal methods for upholding the rights and dignity of the vulnerable sections in India.

**19. *If people scrutinize their own faults as they do the faults of others, mankind will be freed of all evil.***

**Approach:**

- Introduce the answer with a brief interpretation
- List the reasons behind people finding faults in others’ actions
- Discuss the positive implications of scrutinizing & owning up to our own faults.
- Conclude

**Answer:**

Thiruvalluvar suggested that if man could scrutinize his own faults instead of finding faults in others, mankind will be freed of all evils. Obsessing over others’ faults, instead of concentrating upon our own mistakes, makes us vulnerable to vices of conceit, blaming & ill will.

The human tendency to find faults in others is commonplace. For example, people blame the government for corruption, while partaking in bribery themselves or avoiding registration of complaints. Similarly, women complain of gender bias while some of them are active perpetrators of the same. It happens partly because of our ego driven nature. Finding faults within ourselves challenges our cherished self-image of a decent person. It may also happen because of complete unawareness of our mistakes that makes owning up to it extremely difficult, while blaming others offers a convenient escape.

In the present context, where information is available at the click of a button, people tend to overlook their own mistakes and devote less time towards a rational thought. The age of making quick decisions leaves little time for self-introspection. This is especially dominant in inter-personal conflict today. Hiding one’s own ills or weaknesses is considered a character of strength, however brushing them aside and being ignorant of them is dangerous. And, since a person himself is the best evaluator of self, ignoring this leads to an overall sub-optimal outcome for the society and leads to generation of societal ills. Even though all ills of the society are not generated by lack of self-evaluation, the conflicts certainly spiral out because of this.

Scrutinising our own faults has numerous advantages, both personal and for the society. Personally, it helps us make better decisions since self-justifications distort

reality, create an alternate universe and decrease our ability to make good choices. It prevents small mistakes from catapulting into bigger mistakes by addressing them in the beginning itself. It engenders the respect of others and strengthens relationships between people.

Such people will inculcate the right habits in their children, and can influence grown ups as well. For instance, great leaders like Gautam Buddha, Ashoka, Mahatma Gandhi could influence the world by their individual actions. Virtues like humility, truthfulness, honesty etc. if practiced at the individual level, will eventually create a better society and peaceful world free of evils. The similar philosophy was reaffirmed by Gandhiji in his remarks-"be the change you want to see in the world."

**20. "Nonviolence is not servile passivity but a powerful moral force which makes for social transformation". Comment.**

**Approach:**

- Mention the context of the statement and briefly explain its meaning.
- By citing examples, elaborate on how non violence can aid the process of social transformation in a positive way.

**Answer:**

The statement was observed by Dr. Martin Luther King in his Nobel Prize acceptance speech in 1964. It recognizes the power of non-violence in social transformation as it provides answer to the crucial political and moral questions raised at times.

Non-violence is the personal practice of being harmless to self and others under every condition. But in no sense, it means passivity or inaction. Rather it is a dynamic living force, a willingness to suffer and sacrifice. It is based on the premise that non violence is meant for the strong character, and not for the weak - that forgiveness is the virtue of the strong, weak cannot forgive.

Non-violence works in a silent, subtle, unseen way and transforms the whole society. It entails pitting one's whole soul against the will of the tyrant. In modern times, it is the greatest moral force at the disposal of mankind and is a powerful tool for revolutionary socio-political change and justice. As Gandhiji held, non-violence works by striking at the heart of the tyrant, rather than doing physical damage. The change brought by it is rather permanent.

Non-violence ensures the requisite changes in the existing social order without sacrificing the cherished values of humanity. This can be understood through various examples such as:

- Martin Luther King's adoption of non violent methods to win civil rights for African Americans.
- Gandhiji's fight against age-old system of untouchability through non-violence by working along with Harijans
- Gandhiji's non-violent struggle against the Rowlatt bill and his Salt Satyagraha moulded the nationalist thinking of that time for betterment.

Non-violence knows no defeat. It has no limits and it is applicable to every aspect of life; even no great expenditure of money is required for equipping an army of non-violent resisters.

On the other hand, violent change does not guarantee success and long term peace either. Violence can only destroy societies and not make or transform it. Several examples ranging from French Revolution to the present-day problems of Vietnam,

Korea and Arab-Israel conflict testify the same fact. Violence never gains the moral authority required to make appropriate social transformation.

A non-violent revolution does not simply seek the liberation of a class or a nation or a race, but it seeks the liberation of mankind. Martin Luther King Jr. rightly remarked - *"Nonviolence is a powerful and just weapon. Indeed, it is a weapon unique in history, which cuts without wounding and ennoble the man who wields it."*

Student Notes:

**21. Income inequality is a matter of grave concern for the Indian society. In this context, examine the relevance of Gandhiji's concepts of 'Sarvodaya' and 'Trusteeship'.**

**Approach:**

- Briefly comment on the extent of income inequality in India.
- Mention the consequences of income inequality.
- Explaining the concepts of Sarvodaya and Trusteeship, examine their relevance in phasing out income inequality from the Indian society.

**Answer:**

According to some estimates, Income inequality has been worsening in India in the past two decades despite a historic progress on reducing poverty. According to the World Inequality Report, 2018 the top 10% of the population accounted for 56% of the national income in 2014. Additionally, the absolute income growth of top 1% since the 1980s exceeds that of the bottom 50% people taken together. Similarly, according to the annual Oxfam survey, India's richest 1% cornered as much as 73% of the wealth generated in 2017.

**Consequences of income inequality include:**

- High level of economic inequality signifies that opportunities for earning are limited and many people remain relatively poor, if not absolutely. This is associated with increased crime and social upheavals.
- Wealthy citizens maintain disproportionate political power compared to poorer citizens, which encourages inefficient tax structures ultimately favouring the wealthy, thus perpetuating further inequality.
- High and sustained levels of inequality of opportunity can undermine an individual's educational and occupational choices.
- Higher inequality lowers growth by depriving the ability of lower-income households to accumulate physical and human capital.
- Extreme inequality may damage trust on the government and can lead to conflict and unrest. Eg, Naxalbari Movement.

In this context, Gandhiji's concepts of 'Sarvodaya' and 'Trusteeship' assume relevance, since they advocate equality and fairness.

**Sarvodaya:** It means 'progress of all'. In the Sarvodaya society, conceptualized by Gandhiji, every member will be free from greed for limitless acquisition of material wealth and will get equal opportunities to earn sufficiently through honest work. As the Sarvodaya society is based on the basic tenets of socio-economic equality and individual liberty, it rules out any form of unhealthy competition, economic exploitation and class-hatred. Rather, it provides enough scope for unhindered development of individual's skill set, thus it helps in the process of equitable redistribution of income across different sections of the Indian society.

**Trusteeship:** It is Gandhiji's socio-political philosophy, which propounded that the wealthy would hold wealth and property, not by virtue of being owners but by virtue of

being trustees who look after the welfare of the people in general. It would help in phasing out income inequality, as the philosophy mandates the wealthy people to part with their wealth to help the poor, thus, eliminating extremities of poverty and affluence.

Though, difficult to implement by a particular country in the wake of competition, but can be implemented if agreed to by all major countries. If implemented, these concepts provide alternate dimensions to alleviate the problem of inequality and introduce new tools to distribute wealth symmetrically to all classes. They will not only help in reducing economic equality, but also foster social equality and political stability in the long run.

**22. Examine the contemporary relevance of Gandhiji's talisman as a means of resolving ethical dilemmas in day to day life.**

**Approach:**

- Highlight the key message of talisman (in brief) – 'sarvodaya through antyodaya'.
- Explain how it can promote emotional intelligence in citizens and help them resolve ethical dilemmas.
- Discuss its contemporary relevance for citizens, businesses and the Government.

**Answer:**

Gandhiji's talisman– "whenever in doubt, think if the decision would empower or marginalize the poorest?" provides an ethical test to judge everyday actions. It champions the cause of **'sarvodaya through antyodaya' implying the welfare of all through the weakest of the society** which lies at the core of Indian Constitution.

It is a clarion call to the citizens to develop emotional intelligence so that they are in a better position to assess the needs of fellow (vulnerable) citizens, and work towards their upliftment through individual actions.

India of the 21st century is witnessing sectoral violence, socio-economic inequality, low tolerance threshold and increasing consumerism. Global politics is witnessing xenophobia, armed conflicts and multiple refugee crises. The talisman can hence be an effective tool to evaluate the relevance of government policies, business priorities and our daily actions on the society. All these entities can assess their actions in public as well as private life against the talisman to ameliorate ethical dilemmas.

Applying the talisman to our daily lives invariably suggest the following:

- Government policies must necessarily focus on the vulnerable and marginalized sections of the society even if it requires making special provision for such classes.
- At personal level, self-serving acts like tax evasion, littering in public places etc. must be shunned. Derogatory practices in society like manual scavenging, caste-based discrimination, exploitation of women and the poor, dowry, nepotism etc. must be condemned in practice.
- At societal level, it encourages altruism, compassion and communal harmony towards fellow human beings when encountered with negative vibes of hatred and violence.
- Businesses and Industries should strive to reduce polluting activities, ensure optimal working conditions and must honestly comply with social security legislations. Further, it encourages business houses to go for Corporate Social Responsibility for achieving greater inclusiveness in the society.

- Public servants should ensure transparency and integrity in implementation of welfare provisions like PDS, MGNREGA, Old Age Pension Scheme etc. so that their steps lead to swaraj in true sense.

Thus, Gandhiji's talisman empowers us to judge our actions and is a timeless beacon of inspiration for generations to come.

**23. "Man by nature is a political animal". Explain with reference to Aristotle's idea of the state in life of the society.**

**Approach:**

- Bring out the different connotation of the statement given.
- Elaborate on why Aristotle regarded human beings as naturally political.
- Discuss the role of state in the society in the context of man as political animal.
- Conclude.

**Answer:**

Aristotle believes that humans are like the animals in many ways, but are above them in one distinctive way - politics. In the given statement there are two components, one is "by nature" which connotes something that is innate and the other one is "political animal" which means the animals who live together in a setting. The entire statement thereby implies that it is the inherent nature of humans to live together and form deliberative and governing bodies that seek to betterment of all those involved- that man is naturally sociable and that they are naturally drawn to various political associations in order to satisfy their social needs. And this process is possible only because humans have the power of speech and moral reasoning.

To elaborate, since we see that every city-state is a sort of community and that every community is established for the sake of some good (for everyone does everything for the sake of what they believe to be good), it is clear that every community aims at some good, and the community which has the most authority of all and includes all the others aims highest, that is, at the good with the most authority. This is what is called the city-state or political community. Aristotle opines that state enjoys highest rank or position in the society or social structure. State is characterized by natural growth. But, during its different stages of progress, man-made laws and conventions have intervened. But these have benefitted man and facilitated functioning of state. The fact that government, tribes, monarchs, other groups, etc which are one or other form of state do exist, are proof that humans operate politically. It has helped state to ensure peace and prosperity for the people associated with it. Together what humans have achieved today would have been impossible to achieve. Be it technological advancements, prosperous and peaceful societies to the development of shared human values of compassion, love, respect, sympathy, tolerance among others.

But the same political nature which has brought humans together has also divided them. Rise of nation-states has led to fragmentation of society as well as forced agglomeration of social groups and rendered many as unwanted population. It has uprooted many from their culture and customs and forced them to accept diktat of a state they don't associate with. It has led to problems of war, secession, insurgency, terrorism and refugees. Globally under the ruse of protecting one's own country, the very groups formed on the premise of good for the society, propagate violence.

It is up to the governments and other groupings to bring the humans closer and make a just society where everyone understands and accepts universal human values of peace, love, compassion towards others. Also the society has to change because "if you change the society and a culture, the politics will follow".

24. *The policy of Dhamma advocated by Ashoka through his edicts remains relevant in the context of issues in public life even today. Elucidate with examples.*

Student Notes:

**Approach:**

- Explain the concept of Dhamma advocated by Ashoka.
- Discuss with examples why his concept of Dhamma is relevant even today.

**Answer:**

After the war in Kalinga, Ashoka advocated a code of social ethics based on pillars of tolerance, liberalism and compassion, termed as 'Ashoka's Dhamma'. It was neither a new religion nor a new political philosophy. It was a way of life, a code of conduct and practically stood for absence of sin, good deeds, charity, donation, truthfulness and purity. It is basically a moral code to guide individual behaviour in society according to universal moral laws

This doctrine becomes essential, especially for public servants in a society mired with challenges such as inequalities, intolerance and various ethical-political dilemmas.

**Present day relevance in the context of public life**

- **Secularism and tolerance:** Ashoka's dhamma explicitly mentions that 'one shouldn't extol one's own sect or disparage those of others, as doing so will harm others'.
- **Duties of Public servant-** Special officials were appointed for distribution of alms to all sects so that all thrive and co-exist. They also taught people about ethics and read out messages for people who could not read.
- **Foreign Policy and Soft Diplomacy:** Internationally, his policy is also relevant in today's approaches to soft diplomacy, as he sent messages to spread ideas about Dhamma to other countries.
- **Sustainable Development Goals:** Invoking these ideas in present day governance and administration, will not only create social capital and harmony, but also enable India to achieve targets in Sustainable Development Goals.
- **Human face to administration:** It advises public servant to be free from jealousy, anger, cruelty, hastiness, laziness and fatigue.
- **Environmental democracy and justice (Environmental Ethics):** The idea planting of trees along the roads to provide shade; building of guest-houses for travelers and construction of several watering places lays the foundation of modern environmental ethics by highlighting the importance of nature for a sustainable life.

Therefore, Ashoka's policy of Dhamma becomes imperative in present times as it always kept people above profits, focuses on moral duties and secular harmony among all.

25. *Given below are two quotations of moral thinkers/ philosophers. For each of these, bring out what it means to you in the present context. (a) "Silence becomes cowardice when occasion demands speaking out the whole truth and acting accordingly" - Mahatma Gandhi. (b) "We must not only tolerate others, but positively embrace them" - Swami Vivekananda.*

**Approach:**

- In the introduction, bring about the intentions of the moral thinkers- both Gandhi and Vivekananda.
- Discuss the values in association with the statements.
- Discuss relevant context in which these values can be applied.
- Conclude by emphasizing the importance of these statements.

- (a) Gandhiji has been the one of the biggest supporters of moral politics, upholding high principles like truth, honesty and courage in public life. As a public figure he believed in walking the talk.

He believed in strong force of the soul and courage to be truthful in all walks of life.

But to be able to speak the truth a person needs to have strength of the soul.

Gandhi ji believed that a seeker of truth has to be silent. Proneness to exaggerate, to suppress or modify the truth, wittingly or unwittingly, is a natural weakness of man and silence is necessary in order to surmount it.

However, Gandhiji also believed that silence becomes cowardice when silence only helps the oppressor and not the oppressed. He held that one need to cultivate courage, it is a virtue worth living for and dying for. A person needs to hold on to the truth and defend it with the force of the purity of soul, also appealing to the soul force of the opponent. He called it "Satyagraha", which he had practiced on various occasions to fight the mighty British Empire as well as social evils such as untouchability.

The given quote is of great significance even in the present context which is evident from the following:

- **Courage to stand against the tide of corruption-** Today, the public life has become corrupt and opaque and when the system itself is corroded, it requires great courage to stand against the wrong tide and to walk on the path of honesty and truth. For example, the act of whistleblowing.
- **Commitment to bring transparency to public system-** Various provisions and policy tools like RTI are being brought into force to ensure transparency, but it cannot happen until the public servants do not commit to transparency completely. Truth has to be vociferously defended if transparency needs to be brought to the system.
- **Raising awareness:** For e.g. the cultural movement #MeToo, encouraged that the whole truth needs to be spoken out by victims of sexual abuse which can give people a sense of the magnitude of the problem

Silence or half-hearted effort is never an option if the principles and values of freedom struggle have to be put into practice to defend the true spirit of democracy. The only answer is speaking the truth and acting courageously.

- (b) Above mentioned words of Swami Vivekananda were spoken at the world parliament of religions where he addressed the American people as his brothers and sisters. This shows his general idea of acceptance towards each and every being irrespective of religion, nationality, race etc.

**The values inherent in the statement:**

1. **Vasudev Kutumbakam:** The concept of 'whole world as a family' is inherent in Indian culture. We have to own the differences amongst people and accept them as part of one humanity.
2. **Multiculturalism- Owning and not tolerating:** Multi culturalism means primarily an interest in other cultures, respect for the " differences of all segments of the population" and ' oneness with the world". Tolerance is a negative word, the positive aspect of living in a diverse society is to assimilate, respect and accept the differences. That is what makes the society truly multicultural.

3. **All religions are different paths to same goal-** The need to hold inter faith dialogue right from the school to societal level on regular basis to bring home the truth about the inherent unity of all faiths that Sri Ramkrishna preached and practiced. India is a 'civilisation state' and not just a 'nation state' in the European sense of the term and founded on dynamic multi culturalism. Vivekananda did not see the goals of different religions as essentially different. The religions are in harmony with each other owing to their goals and principles. The followers of the religion must understand the same and be brethren in the national and social habitation.

In a world divided on race, religion, ethnicity among other factors these propositions expounded by Vivekanand are extremely relevant.

- **Avoiding intermixing of Religion and Politics-** somewhere in the misuse of the religion for political gains, the true goals of the religion that is peace, harmony and higher purposes of life are getting misplaced.
- **Check hatred and Violence in the name of religion-** there are many unsocial elements who try to incite hatred in the name of religion. Many a times it leads to riots and tension among various groups. As a result, weaker sections and the society at large suffers.
- **For the protection of the united and diverse nation-** India as a nation is diverse as well as united. This unity can only be preserved if the society as a whole accepts each other and flourishes together.

In today's context the teachings of Swami Vivekananda on religious acceptance is more than relevant. Not only are his words that of a religious monk preaching true secularism to the society but also his preaching is very revolutionary in providing us an idea of a diverse yet united nation.

26. **What do you understand by Amartya Sen's 'capability approach'? Analyse its significance in understanding social realities and in making a pro poor development strategy.**

**Approach:**

- Explain Amartya Sen's 'capability approach'.
- State the various dimensions covered by it..
- Assess its significance in understanding social realities and in making a pro poor development strategy.

**Answer:**

Giving bicycles to poor girls can be a means to encourage them to go to school. But what good is a bicycle for a person who cannot see? Development economists have debated about how to judge the progress of a nation. Per capita income may be high, but inequality may be pervasive. People may be wealthy but they may not be happy. In this debate, Amartya Sen proposed the 'capability approach' to measure the progress of a country. A capability is defined as the measure of people's freedom to pursue and achieve goals which they would like to. These are the goals that they deeply value, for e.e. education is necessary to be employable, hence people would like to be educated. So whether the society allows them to be educated or not will determine how much progress the society is making. Capability approach was proposed as a practical theory to remove injustices in particular instances against the prevailing theories of universalising justice, such as utilitarianism or resourcism.

In his 'capability' theory, he defines capability as 'the ability to fulfil one's own will' i.e. the 'freedom to choose' must be associated with 'capability to choose'. It particularly

identifies specific incapacities which hinder justice for all. For example, people in remotest regions face incapacity of transportation; women face the incapacity because of social norms etc. The approach is 'capability enhancement of the people' as the main plank of the strategy to bring about inclusive development and hence to reduce inequality.

In this way, the approach focuses on the quality of life of individuals in terms of 'functionings' and 'capability'. 'Functionings' are states of 'being and doing', such as: being well nourished and healthy, having adequate shelter etc. Capability refers to a set of valuable functionings that a person has effective access to. Thus, a person's capability represents his/her effective freedom to choose a life that he/she has reason to value.

This approach addresses various dimensions such as individual physiology, political and economic freedom, social factors, local environment conditions, differences in access to resources etc. therefore it helps us understand the existing social realities, especially in a developing country like India where different sections of population face different issues. Further its significance in understanding social realities and in making a pro poor development strategy lies in:

1. It puts people at the focus of development and aims at expanding their capabilities as per their social reality.
2. It supplements the GDP model of development and simultaneously points out its shortcomings as a sole measure of economic progress.
3. It centres the growth and development debate around 'development of the individual'.
4. Several indices have been created based on the approach such as HDI, Gender Inequality Index, Gender-Related Development Index etc.

The approach is also significant in making a pro-poor development strategy as it explains poverty as a result of capability deprivation and states that government should emphasize on social sector expenditure such education, health etc. to improve the capabilities of poor people.

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# PROBITY IN GOVERNANCE: CONCEPTS, PRINCIPLES AND CHALLENGES

Student Notes:

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**Note-** This document shall cover the following sections from the syllabus-

Student Notes:

- Probity in Governance- Philosophical Basis of Governance and Probity; Information Sharing and Transparency in Government; Accountability and Ethical Governance; Challenges of Corruption

## 1. Probity: Definition and Overview

Probity originates from the latin word 'probitas', meaning good. **Probity is confirmed integrity. It is usually regarded as being incorruptible.** It is the quality of having strong moral principles and strictly following them, such as honesty, uprightness, transparency and incorruptibility.

Probity in Governance is concerned with the propriety and character of various organs of the government as to whether these uphold the **procedural uprightness, regardless of the individuals manning these institutions.**

It involves adopting an ethical and transparent approach, **allowing the process to withstand scrutiny.** Probity goes further than the avoidance of being dishonest because it is determined by intangibles like personal and societal values.

### 1.1. Philosophical Basis of Probity in Governance

The gist of wisdom on administrative ethics is that the public administrators are guardians of the administrative state. Two crucial questions raised in this context are-

**Why should guardians be guarded? and Who guards the guardian?**

**Historical perspective:**

The ethical concerns of governance have been emphasized broadly in Indian scriptures and other treatises such as **Ramayana, Mahabharata, Bhagvad Gita, Buddha Charita, Arthashastra, Panchatantra, Manusmriti, Kural, Shukra Niti, Kadambari, Raja Tarangani, and Hitopadesh.** Chinese philosophers such as **Lao Tse, Confucius and Mencius** also contributed the theoretical dogmas on **ethical governance.**

**Perspective of various other philosophers:**

Western Philosophy identifies 3 eminent school of ethics-

- First, inspired by **Aristotle** holds virtues (such as justice, charity and generosity) are dispositions to act in ways that benefit the possessor of these virtues and the society that he is a part.
- The second by **Immanuel Kant**, makes the **concept of duty central to morality** i.e. human beings are bound, from knowledge of their duty as rational beings, to obey the categorical imperative to respect other rational beings with whom they interact. Kant supposed that a rigorous application of the same methods of reasoning would yield an equal success in dealing with the problems of moral philosophy.
- The third being, **the utilitarian standpoint** that proclaims that the guiding principle of conduct should be the greatest happiness (or benefit) of the greatest number. **Utilitarianism** is a theory in normative ethics maintained that the moral action is the one that maximizes utility. Utilitarianism is a form of consequentialism, which implies that the "end justifies the means".

Another philosopher who developed **ethical theory of governance** was **David Hume**. Hume upholds that moral distinctions are derived from feelings of pleasure and pain of a special sort, and not as held by many Western philosophers since Socrates from reason. Working from the empiricist principle that the mind is essentially passive, Hume claims that reason by itself can never prevent or produce any action or affection. But since morals concerns actions and affections, it cannot be based on reason.

In recent times the movement of good governance initiated by **World Bank in 1992** broadly lays down **stress on ethical and moral conduct of administrators**.

Student Notes:

## 2. Need for Probity in Governance

In a democracy, probity **espouses the principles of equality before law and a respect for the rights and duties of leaders towards their citizens**. Conversely, probity is a societal expectation which citizens demand from decision makers and all those who function as a part of the state's apparatus.

It is a shared belief that the adoption of standards like "accountability", "transparency" and "responsiveness" will lead to clean and efficient governance. However, standards do not, by themselves, ensure ethical behaviour: which requires a robust culture of integrity and probity in public life. **The crux of ethical behaviour does not lie only in standards, but in their adoption in action and in issuing sanctions against their violation.**

**The need for probity in governance can be understood as follows:**

- **Legitimacy of the system:** Foremost, it helps build up the legitimacy of the system, i.e. the state. It builds trusts in the institutions of the state and a belief that the actions of the state will be for welfare of the beneficiaries.
- **Trust building through ethical outcomes:** It leads to prudent and ethical outcomes and building of trust over time.
- **Objectivity:** It provides for an objective and independent view on the fairness of the process
- **Checks and balances:** It helps in checking the abuse and misuse of power by various organs of government such as magistracy, police and all other providers of public service e.g. PWD, health, education, etc.
- **Equitable and sustainable development:** It is an essential and vital requirement for an efficient and effective system of governance and for socio-economic development.
- **To serve the constitutional cause:** Probity in Governance is required to serve the motto of Constitution. i.e. to provide Social, Political and economic justice to all. It enhances faith in the governance.
- **Reduced politicization of bureaucracy:** It helps address nepotism, Favoritism, Political partisanship. Public reposes more trust in governance and therefore it facilitates participatory governance. It leads to avoidance of sub-optimal outcomes, corruption and poor perception.

In this regard, the Scandinavian economist-sociologist, **Gunnar Myrdal** in his book 'Asian Drama', describes **India as a 'soft society'**. It is a society where there is a:

- **Lack of will to enact laws** necessary for progress and development
- Lack of will to implement even the existing laws
- Lack of discipline at all levels – including the administration and structures of governance

The famous economist **Mehboob-Ul-Haq**, remarked that corruption existed everywhere but it is a **greater cause of worry in South Asia** because it is exploitative and feeds on the helpless poor citizen.

Though instilling a sense of morality in the people and its representatives is a **long-term process** which needs an immediate attention, some legislative measures can be designed with an utmost urgency to ensure probity in governance.

According to the **National Commission to Review the working of Constitution's** (NCRWC, 2002) report on 'Probity in governance':

- 'An important requisite for ensuring probity in governance is absence of corruption. The other requirements are effective laws, rules and regulations governing every aspect of public life and, more important, an effective and fair implementation of those laws, etc.

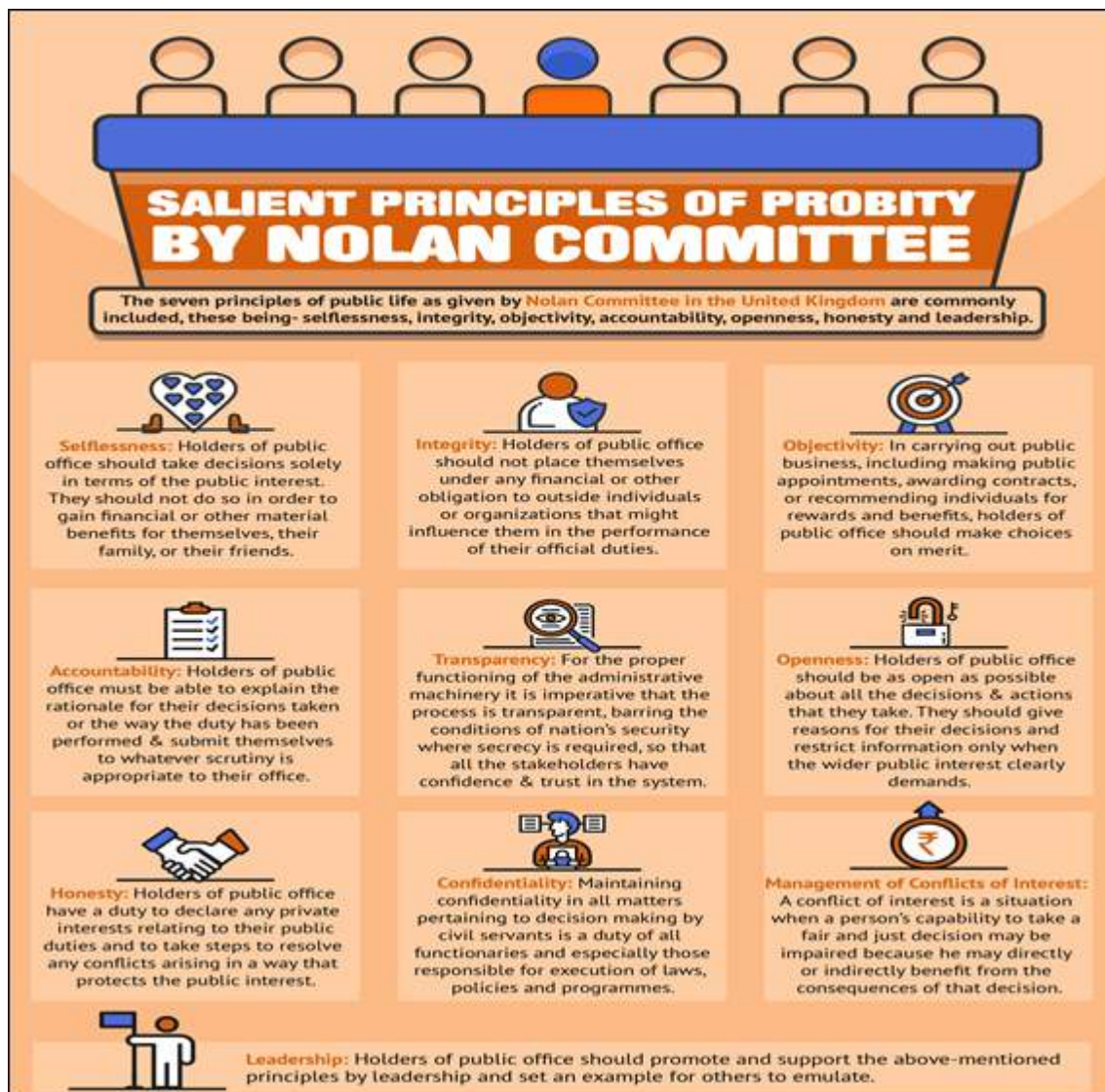
- The NCRWC made suggestions on ways to enforce probity in governance, specifically on legal and procedural aspects to control the menace of corruption.

Student Notes:

Thus, **Probity in governance** is an essential and vital requirement for an efficient and effective system of governance and for socio economic development.

### 3. Principles of Probity

While the doctrine and the principles of probity are clear and well defined, giving a concrete shape to implement them is the task of the government.



### 4. Transparency: Definition and Overview

Transparency has been defined by the **Second Administrative Reforms Commission** as, the 'availability of information to the general public and clarity about functioning of governmental institutions.'

Further, **Vishwanath and Kaufmann (1999)** have defined transparency as *the "increased flow of timely and reliable information, which is accessible to all relevant stakeholders"*. This perspective emphasizes **not only the availability** of information, but **also its reliability and accessibility**.

It is not a new concept as shown in the timeline depicting the evolution of 'transparency and right to information' which can be charted out as follows:

- **Resolution 59** of the UN General Assembly adopted in 1946 recognised Freedom of Information an integral part of the fundamental right of freedom of expression.
- **International Covenant on Civil and Political Rights (1966) and the American Convention on Human Rights (1969)** also recognized the Right to Information in one way or the other.
- Supreme Court Case in **Mr. Kulwal v/s Jaipur Municipal Corporation, 1982** emphasized that without Right to Information, the freedom of speech and expression cannot be fully used by the citizens.
- **MKSS (Mazdoor Kisan Shakti Sangathan)**, a grassroots organization led by activists Aruna Roy and Nikhil Dey that started the movement of Right to Information regarding development projects in rural Rajasthan
- **NCPRI (National Campaign for People's Right to Information), 1959** was formed with an objective of getting the legislation on Right to Information passed.
- **Tamil Nadu** was the first state to enact RTI legislation in 1997, Rajasthan enacted the Right to Information Act in 2000
- **The RTI Act 2005** overcame these lacunae and provided a legal framework for the working of Right to Information

### Why is Transparency and Information Sharing essential?

**Transparency and information sharing** form the two most important pillars of the good governance in a mature democracy.

- Transparency and information sharing are **key tools to build accountability and trust in public offices**. They are indispensable in the quest for good governance – be it timely execution of projects, or fight against corruption or arbitrary exercise of power.
- These **empower citizens, foster their participation in public affairs, strengthen participatory democracy and usher in people centric governance**.
- In transparent governance system, the criteria, procedures and systems of decision-making are openly known to all. Information sharing is **sine-qua-non for transparency**.
- **Further**, transparency of information is also seen as significant for motivating citizens to exercise '**voice power**'. Voice power is defined as the capacity of citizens to pressurize the frontline officials in ensuring effective delivery of services. **This voice power results in greater accountability**.

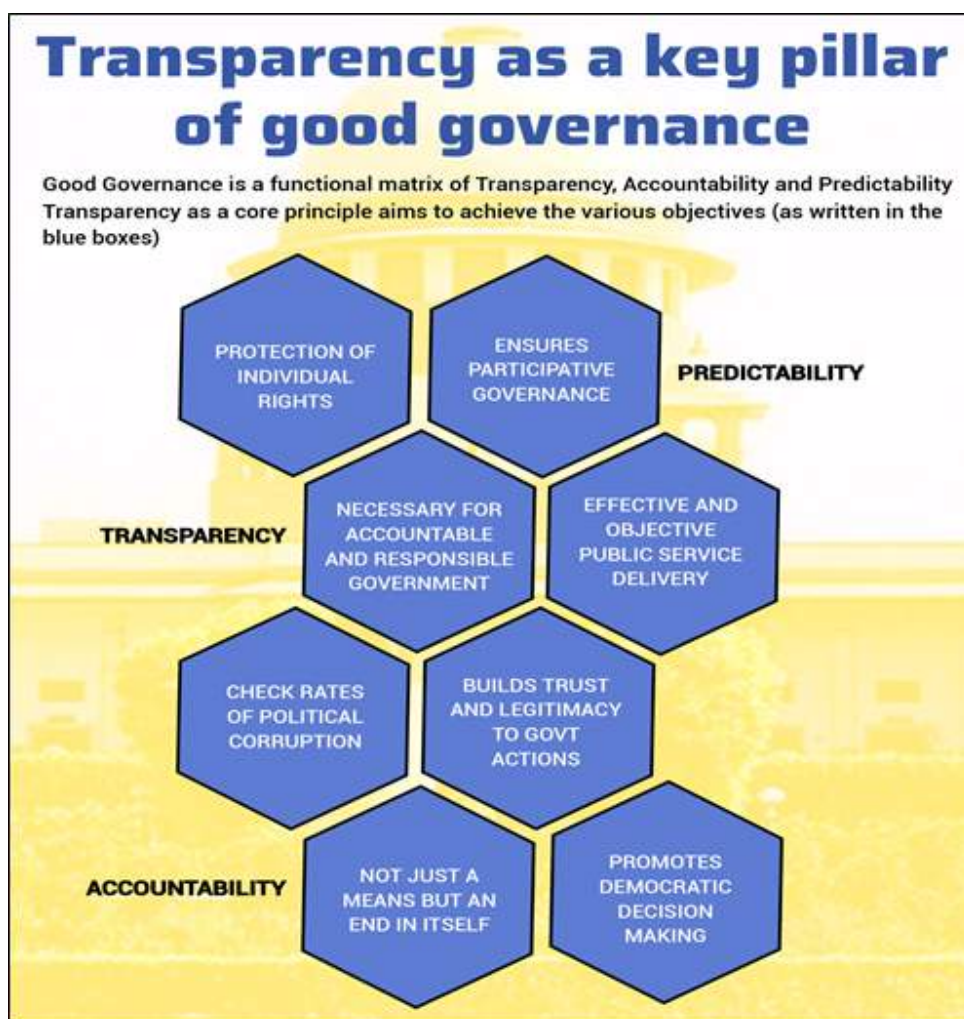
Therefore, we can say that in a broad sense, **Transparency** refers not only to the level of openness, accessibility and reliability of information but also to style of functioning and the priorities accorded by the government in policy making.

### 4.1. Transparency: A Pillar of Ethical Governance

It can be contended that transparency and accountability is the **fundamental requirement for preventing the abuse of power**. It is necessary condition for ensuring that power is directed towards the achievement of efficiency, effectiveness, responsiveness and transparency.

**Open, transparent and accountable government** is an imperative prerequisite for community-oriented public service delivery because **without it covert unethical behaviour will result**.

**Transparency is not just a means to fulfill certain functions but an end in itself**. Belief in the openness of government to regular inspection is so firmly ingrained in our collective consciousness that transparency has **innate value**.



## 4.2. Features of Transparent Governance

Over time, India has made consistent efforts to imbibe Transparency in the government by working on the following three focus areas:

- **Right to information laws** – to establish the constitutional/legal right for a citizen to access the information that they want;
- **Proactive transparency** – to commit governments to publishing as much information as possible in an accessible form;
- **Open data approach** – to enable all the stakeholders to reconfigure the government data into inter-operable and accessible formats.

### 4.2.1. Information Sharing

Information sharing refers to the exchange of data among various governing bodies, organizations and the general public. Access to information is a crucial, and perhaps the largest, subset of it.

Indian Parliament has also institutionalized this right by legislating Right to Information Act 2005 which mandates timely response to citizen requests for government information (*refer later sections of this document for the detailed analysis of the RTI Act*).

Further, **parliamentary debates are televised in India, government audit reports are published and the government positions on various policy issues** are widely advertised through websites, radio and social media. Most recently, the government has launched data.gov.in website to promote **Open Data Government (ODG)**.

|  <h1>Issues with respect to Transparency in India</h1>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| Issues with Official Secrets Act                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |
| <ul style="list-style-type: none"> <li>Given the colonial climate of mistrust of people and the primacy of public officials in dealing with the citizens, OSA created a culture of secrecy. Confidentiality became the norm and disclosure the exception.</li> <li>However, the abundant discretion bestowed under OSA results into a catch-all legal provision converting practically every issue of governance into a confidential matter.</li> </ul>                                                                                                                                                                                                                                                     |  |
| Issues with RTI Act                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |
| <ul style="list-style-type: none"> <li>Despite enactment of the RTI Act in 2005 there still remains gap between openness and pinning accountability. The pro-active disclosure by public sector organizations as mandated by RTI Act 2005 is still not widely practiced in India.</li> <li>The cumbersome process of application is another reason.</li> <li>Reluctance to fill vacancies. The backlog of pending appeals had reached 30,000 cases in late 2019 as the CIC has become a rather dysfunctional body.</li> <li>Political parties and judiciary do not come under the ambit of RTI Act 2005. There is lack of transparency in political funding, which is a conduit for black money.</li> </ul> |  |
| Top down approach in governance                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |
| <ul style="list-style-type: none"> <li>Centralized and one size fits all approach to governance hinders the openness, consistency and continuity with the dynamics of ever-changing needs of the citizens.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |
| Delay in enacting the Whistle blower Act                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |
| <ul style="list-style-type: none"> <li>Indian Parliament passed the Whistle-blower Protection Act in 2014, but it is yet to be operationalised.</li> <li>Further, an amendment introduced to the Act was criticised on the grounds that it dilutes protections to whistle-blowers.</li> <li>But while the Act doesn't cover corporate whistle-blowers, India Inc has followed regulatory norms to put in place mechanisms to enable whistle-blower complaints. The amendments do not provide immunity to whistle-blowers, making them liable for prosecution under the Official Secrets Act.</li> </ul>                                                                                                     |  |
| No proper monitoring and Performance Management Divisions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  |
| <p>For India, the de jure policies on transparency appear to be in place, and yet in the de facto implementation and delivery, there is rampant corruption, absenteeism, indifference, incompetence, inefficiencies or outright failures</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |
| Open, relevant and publicly accessible government data and records still a far-fetched dream                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |
| <ul style="list-style-type: none"> <li>According to the Report of Open Government Data in India, while government has initiated many e-governance initiatives, not many of them have resulted in publicly accessible databases.</li> <li>To ensure the relevance of open government data, mechanisms have to be put in place to take its benefits to the common person and to the marginalized communities, both by the government as well as by civil society organizations.</li> </ul>                                                                                                                                                                                                                    |  |
| Sealed envelopes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |
| <ul style="list-style-type: none"> <li>Sealed envelope has become a modus operandi in several Indian institutions, including the Supreme Court (SC).</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |

## 4.2.2. Participative Governance

Participative governance is one of the means to achieve transparency in governance through the **bottom up approach (73rd and 74th Constitutional Amendment Acts**, by giving constitutional status to Panchayats and Urban Local bodies). It entails **participation of people in decision-making at the grass root level through decentralization of powers to the local self-governing bodies**.

Following are some other **initiatives towards participative governance**:

- Social Audit** –It is a potent tool in the hands of citizens to monitor and evaluate the working of various governance bodies. Initiated by the **Mazdoor Kisan Shakti Sangathan (MKSS)** as '**jansunwai**' (**public hearing**), in 1990s, now social audits have been made mandatory in statutes such that the Mahatma Gandhi National Rural Employment Guarantee Act. Such audits have increased citizen participation and have helped in ensuring checks and balance in system. *For instance*, in Andhra Pradesh, state-wide social audits found fraud of large amounts **resulting in administrative or criminal charges against nearly 7,000 officials**. This has also ushered in environmental democracy and governance.

- **Resident Welfare Associations** –These include state-specific incentives to incorporate the views of society or to devolve the decision-making power for basic civic functions to the citizens. These initiatives have been applauded for their implementation and intent of engaging common citizens to **promote ‘janbhagidari’** (public participation).
- **The Bhagidari scheme of the Delhi Government** directly involves citizens through RWAs in monthly meetings in order to mobilize the community to take responsibility for their respective zones and areas. These RWAs are also the first point of contact for state utilities while planning development-related and other changes.
- **People’s Plan Campaign: (PPC) in Kerala** was an experiment in decentralized planning (1996). Local governments were required to make their **own Five-Year Plans with direct engagement of public**. Adequate funds from the State’s development budget were also devolved for the process. However, this scheme has since been scrapped.

## 5. Accountability and Responsibility

### 5.1. Meaning of Accountability

**Accountability** means making the public officials **answerable** for their behavior and responsive to the entity from which they derive their authority. Holders of public office are accountable for their decisions and actions and must submit themselves to the **scrutiny** necessary to ensure this.

Accountability also means establishing criteria to **measure the performance** of public officials, as well as oversight mechanisms to ensure that standards are met.

## What Does Accountability Includes?

In public services accountability is a legal concept, as it contours are fixed by the law, and ideally it includes 3 things:



**Answerability:** It means one is legally bound to give answers with respect to his commissions, omissions.



**Enforceability:** It means the respective civil servant is liable to be punished according to the law, if he found to be guilty in discharging his official duties.



**Grievance redressal:** It means the aggrieved person should have sufficient institutional mechanism to be heard and resolving his grievances.

**Answerability** refers to the obligation of the government, its agencies and public officials to provide information about their decisions and actions and to justify them to the public and those institutions of accountability tasked with providing oversight.

**Enforcement** suggests that the public or the institution responsible for accountability can sanction the offending party or remedy the contravening behavior. As such, different institutions of accountability might be responsible for either or both of these stages.

Accountability has little meaning without transparency. Without complete and correct information in public domain, accountability will be of little value. Accountability is not merely ‘to whom’ and ‘how’, it is also ‘for what’. The ‘what’ aspect is provided through **transparency**. This is the reason that transparency and accountability are mostly used in the same breath.

# Accountability Framework



## Institutions for extracting accountability of public servants for their action and inaction-

1. Head of the organization at the organizational level.
2. Departmental head at departmental level.
3. Concerned ministry at the ministerial level.
4. Parliamentary proceedings at the national level.
5. Public opinion at popular level.
6. Media and civil society at societal level.
7. Courts at judicial level.

There is thus both a routine accountability which is mostly departmental in nature and externally enforced accountability which is assessed only when called into question.

## 5.2. Why is it needed?

Evaluating the ongoing effectiveness of public officials or public bodies ensures that they are performing to their full potential, providing value for money in the provision of public services, instilling confidence in the government and being responsive to the community they are meant to be serving.

1. It **prevents the public services from turning into tyrant** as they are held answerable to their deeds and mis-deeds.
2. **Avoids conflict of interests**-Setting accountability clearly demarcates area of one's actions where he or she is required to act.
3. The first and last beneficiary of public service is public, as the public services are required to act in **interest of public** and they are answerable for their actions.
4. **Promotes justice, equality, and egalitarianism** because public servants are required to realize these constitutional ideals and at the same time, they are answerable for their actions.
5. It brings **legitimacy to public services**- Accountability promotes the loyalty to service as actions are carefully calculated and keeps a check on arbitrary and ill-conceived actions and policies.

6. Be it fear of legal consequences or an outcome of one's morality, owing accountability for their actions **motivates the public servants** to discharge their duty with honesty, integrity and efficiency.

Student Notes:

### 5.3. How can it be ensured?

The accountability mechanisms in any country are broadly categorized as those that are located **within the State and those outside it**. Accountability of the executive arm of government to Parliament and to the citizens of the country is of course the fundamental feature of a democracy.

Analysts have categorized these accountability mechanisms into “**horizontal**” accountability mechanisms which refer to those located within the State as against ‘**vertical**’ accountability mechanisms which are those outside the State and include the media, civil society and citizens.

| Institutions and Mechanisms that Promote Accountability                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                           |
|----------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Outside the State (Vertical)                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <ul style="list-style-type: none"> <li>To the People through elections</li> <li>Through RTI Act to citizens</li> </ul>                 | High effectiveness                                                                                                                                                                                                                                                                                                                                                                                                        |
| <ul style="list-style-type: none"> <li>Citizens' oversight committees</li> <li>Civil society/watchdog bodies</li> <li>Media</li> </ul> | Low effectiveness                                                                                                                                                                                                                                                                                                                                                                                                         |
| <ul style="list-style-type: none"> <li>Service delivery surveys</li> <li>Citizens' charters</li> </ul>                                 | Low to medium effectiveness                                                                                                                                                                                                                                                                                                                                                                                               |
| <ul style="list-style-type: none"> <li>Integrity Pacts</li> <li>Citizen Report Cards</li> <li>Through Whistle Blowers Act</li> </ul>   |                                                                                                                                                                                                                                                                                                                                                                                                                           |
| Within the State (Horizontal)                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                           |
| External<br>(Outside the Executive)                                                                                                    | <ul style="list-style-type: none"> <li>Parliament</li> <li>Judiciary</li> <li>Lokayukta</li> <li>CAG</li> <li>CVC</li> </ul>                                                                                                                                                                                                                                                                                              |
| Internal<br>(Within the Executive)                                                                                                     | <ul style="list-style-type: none"> <li>Superior officers</li> <li>1- Rewards/punishments</li> <li>2-Disciplinary procedures</li> <li>3-Performance Management System</li> <li>CBI/police/vigilance</li> <li>Internal Audit</li> <li>Grievance Redressal Mechanisms</li> <li>Disciplinary Procedures (Prevention of Corruption Act, Official Secrets Act)</li> <li>E-governance mechanisms (PRAGATI, NeGP etc.)</li> </ul> |

Further, by **promoting transparency**, through effective implementation of RTI in full earnest, especially the pro-active disclosure, then public officials would be more careful to function

strictly according to the spirit of the law and constitution. Secondly, it would educate the people about their rights, entitlements and how to question their fulfillment.

There should be **capacity building** of the stakeholders to question the public officials about their discharging of official duties. For example, the concept of Social Audit under MGNREGA. Also, effective **implementation of laws** like Prevention of Corruption Act should be ensured.

In India, constitutional and statutory bodies such as the office of the Comptroller & Auditor General, the Election Commission, and the Central Vigilance Commission (CVC) are examples of other **oversight mechanisms** that are autonomous but lie within the framework of the State. It should be ensured that these bodies are **strengthened** and **empowered** in both letter and spirit.

An **independent judiciary** embodies the constitutional doctrine of separation of powers and is another important element in the system of checks and balances that exists in any democratic country. The independence and effective role of judiciary is crucial for upholding the rule of law in India, thus various steps like **Memorandum of Procedure**, **e-courts** among other should be promoted.

The **final** expression of accountability in a democracy is through the **medium of periodic elections** which is an instrument for punishing and rewarding the Government of the day, and therefore, serves as an ultimate instrument of accountability. The **electoral reforms** and **democratic maturity of people** is the **ultimate bulwark of accountability**.

#### 5.4. Meaning of Responsibility

It means **accountability to oneself**, i.e. when the accountability turns inward. It is a moral concept, where a person feels the answerable to oneself for all his actions, even if it is not covered by any law.

It is more enduring than accountability, because it is based on ethical reasoning, and the person would always do the right thing, even if nobody is there to watch his action, as he holds himself answerable to oneself. Here the person takes ownership of one's actions and decisions.



Though, these terms are used interchangeably, **there is a subtle difference** between the two. Accountability makes the person accountable for the consequences of the actions or decisions made by him/her. As against this, **consequences are not necessarily attached to the responsibility**. Further, accountability requires a person to be liable and answerable for the things, he/she does. Conversely, responsibility expects a person to **be reliable and dependable to complete the tasks assigned to him**.



Responsibility is said to be attached with **ethical maturity**, therefore, to inculcate responsibility we need to impart the moral, ethical values through training, role playing etc.

## 6. Challenge of Corruption

The word '**corrupt**' is derived from the latin word **corruptus**, meaning '**to break or destroy**'.

One of the most persuasive definition given by the **Word bank**- "**Corruption is the abuse of public funds and or office for private or political gains.**"

This confirms the contention that corruption is a failure of governance. Corruption is an important manifestation of the failure of ethics.

**There are majorly two types of Corruption: Coercive and Collaborative.**

### Coercive Corruption:

- Coercive Corruption is where **a person is forced to give bribe to get a job done to which he is otherwise entitled**, such as getting a ration card, a driving license, a passport, an electric connection, or sanction for constructing a building.
- Such corruption is **endemic to how government carries out its routine activities** such as issue of license, permit, policing and revenue collection.
- Payments are generally of petty nature, to lower level inspectors, babus and clerks, and payoff facilitates benefits to which one is otherwise legally entitled

### Collaborative/ Big ticket Corruption:

- Collaborative Corruption is one involving **high officials and ministers that often implicate multinationals and large domestic firms, in which both parties gain substantial pecuniary benefits**, though the public is the ultimate loser.
- They mostly relate to mega-projects, large value contracts, concessions and other favors and difficult to prove nexus, as both bribe giver and takers are beneficiaries.

The countries which are rated as 'very corrupt' have a high incidence of coercive corruption, where corruption is institutionalized and citizens have to pay bribe for even basics.

## 6.1. Understanding Corruption: Unethical Basis

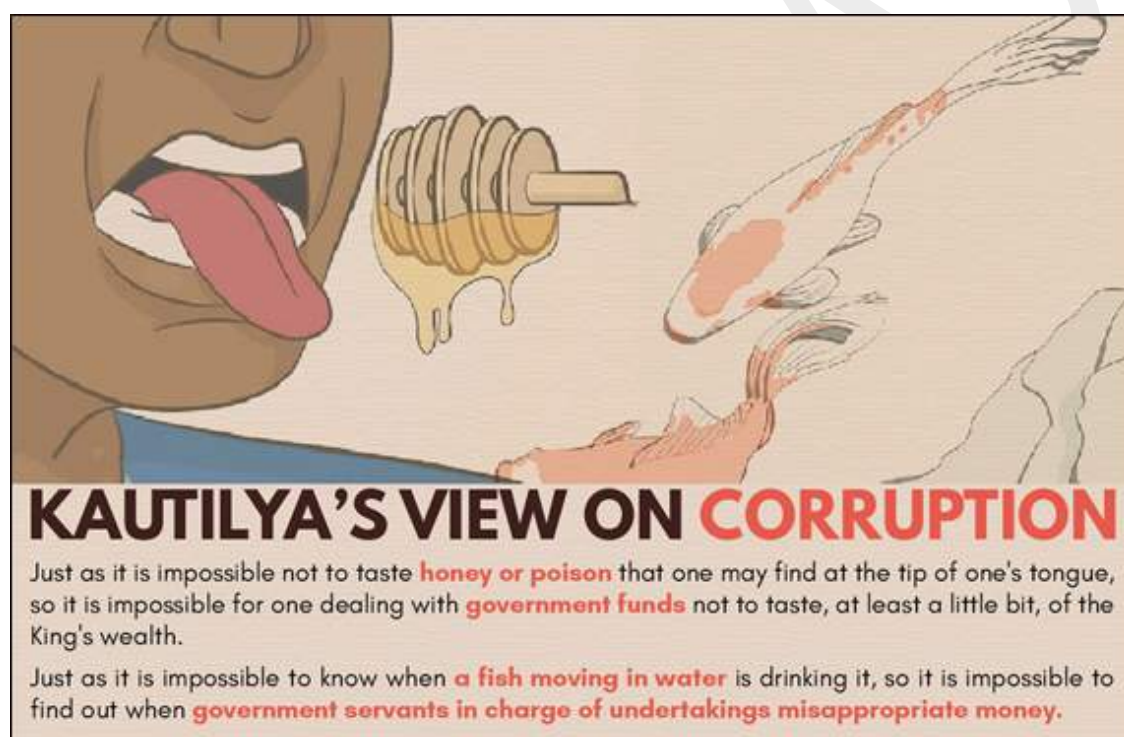
The ethical and moral values of a person decrease with steep rise in power. A Person who has absolute authority may misuse his position.

**"Power tends to corrupt and absolute power corrupts absolutely"-Lord Acton**

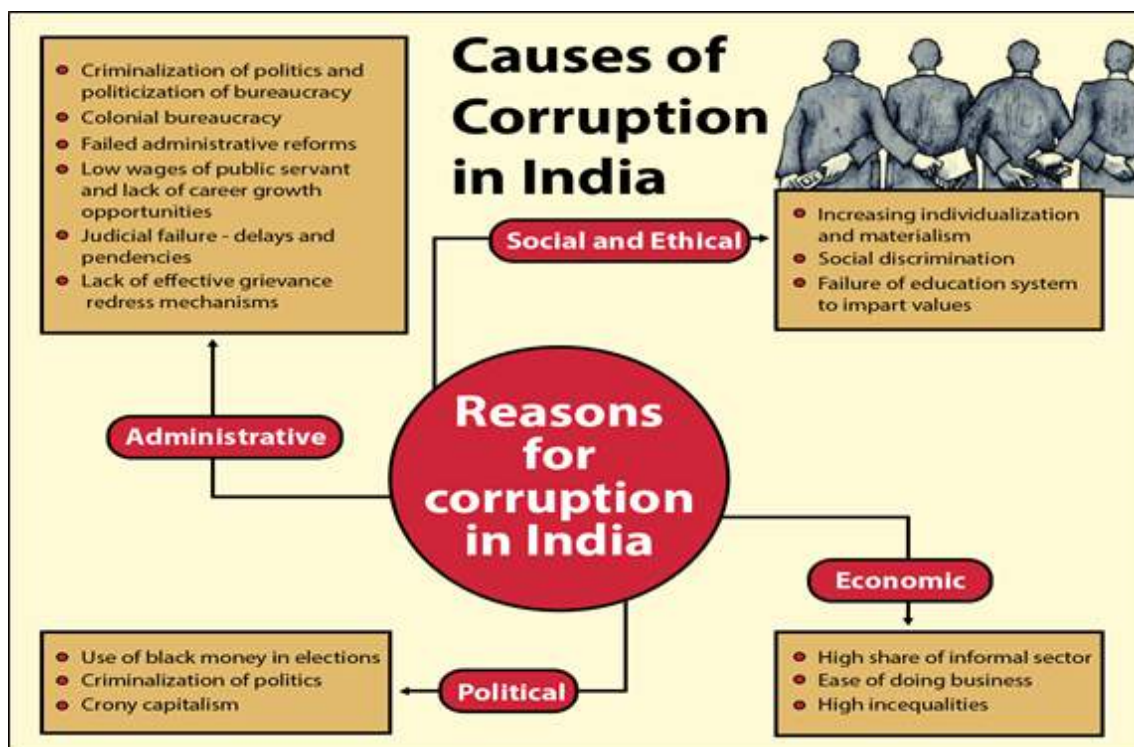
The focus on acts of corruption may mainly be placed '**before the act**' by deontologists and '**after the act**' by utilitarians.

**Utilitarians** maintain that people must act morally in ways that will produce the best consequences.

**Deontologists** rely on adherence to certain rules in order to militate against acts of corruption. Deontology as a **rule-based normative ethical theory** illuminates the moral dimension of human activities, especially those that concern human obligations and responsibilities. Deontologists see punishment for criminal deeds as a means of deterrence, whilst **utilitarianism** views punishment from the retributive angle. **Both these approaches demand special attention in a study of corruption.**



Honorable late President **Abdul Kalam** while terming corruption as a dreadful malady afflicting the society observed that **Erosion of Conscience and lack of righteousness** arise from the never-ending attitude of greed of '**what can I take?**' rather than '**What can I give?**'. He further added that **Failure of inculcation of virtue ethics in individual character ethics, work/professional ethics, parental ethics at all levels of society** is a reason for increased corrupt acts and laws not effective as deterrents.



## 6.2. Impacts of Corruption

Irrespective of the causes of corruption which may be economic, social, legal administrative or political, and the logic given by some 'pragmatic' experts in favour of the short-term benefits of speed money, corruption **slowly and surely rots away the credentials of an administration, person and even the society as a whole in the long term.**

*Recently, India has been ranked at the 80th position among 180 countries and territories in the Corruption Perception Index (CPI) prepared by Transparency International.*

### Ethical:

- Corruption generates black money, which impacts development. Moreover, when the corrupt gets scot free and prosper, **it leads to the development of an unethical culture wherein means may not necessarily justify the end.** Corruption is considered as a given and is no more abhorred.
- **As a corollary to this honesty no more remains a virtue to vouch for and practiced. Once a society accepts corruption as a given its journey to the abyss initiates.**
- It sets in **motion a cycle of vengeance wherein a person tries to make good the money he loses out due to corruption by indulging in corrupt acts himself.** For example, *a businessmen forced to pay bribery to an government official make up for the loss by selling sub-standard products/services or by inflating their prices, which forces others to do the same and in the long run everyone loses out including the corrupt government official as he is the consumer of such products and services too, e.g. today it's a challenge in India to find unadulterated milk, paneer and other food items.*

### Political:

- **Implications for democracy:** EIU's Democracy Index, 2020 has placed India at 51st position (out of 167 countries) and categorizes it as a flawed democracy citing erosion of civil liberties primarily due to **lingering issues of corruption and integrity.** Corruption eats into the vitals of an administrative setup thus threatening public faith in democracy itself.
- It leads to a **general disinterest in political process** and may even encourage the growth of radical trends in marginalized communities, e.g. Naxalism

## Social:

- **Corruption erodes trust in government and undermines the social contract.** This is cause for concern across the globe, but particularly in contexts of fragility and violence, as corruption fuels and perpetuates the inequalities and discontent that lead to fragility, violent extremism, and conflict.
- **Honest are victimized** and the competent / honest are not attracted to public services. It impacts morale and generates a culture of lethargy, non-participation and lack of focus on public-service delivery.
- **Culture of lethargy ('aaraam' and 'chalta hai')** leads to slow pace of development.

## Economic:

- **Cost overruns-** Corrupt workforce is focused on self-aggrandizement than on finding solutions to felt problems.
- **Promotions / postings determined on the basis of criteria** other than merit.
- **Effectiveness of government programmes decline**, impacts the quality of public infrastructure.
- **Corruption impedes investment, with consequent effects on growth and jobs.** Countries capable of confronting corruption use their human and financial resources more efficiently, attract more investment, and grow more rapidly.
- Corruption has **adverse effects on human development** (indicated by HDI indicators), as it's both the cause of poverty and a barrier in reducing it.
- Corruption **hurts the Poor the most, e.g. by fueling inflation**, increases the cost of basic services for common man, shifts government expenditure from priority areas to those areas where rent seeking is greater.

## 6.3. Corruption: Analysis and Indian Perspective

It is often said that **in India, corruption thrives because it is a low risk, high profit business.** There are so many safeguards and protection in the system in which a public servant operates that it is very difficult to catch and punish an official indulging in corruption.

Some of the key observations that can be understood is as follows:

### 1. The weak legal framework for punitive action:

- Because of **ill-defined policies, weak regulatory frameworks and large indiscretion among ministers and high public officials**, India has witnessed large cases of **crony capitalism** that may derail the entire economy. E.g. The CBI alone has hundreds of cases **pending in various courts under the PCA**, some of them as old as 25 years.
- However, **the judicial process in India is slow and time-consuming.** Cushions of safety have been built in the legal system on the principles that everybody is innocent till proved guilty. The legal provisions are exploited by the corrupt to escape punishment. E.g. The conviction rate of criminal cases in India is **hardly 6 per cent.** The PCA, 1988 hardly serves as a deterrent.
- There is also a **statutory bar that a public servant of the rank of Joint Secretary and above can't be prosecuted, without prior government permission**; the government often delays or prevaricates sanction, thus effectively barring trial of the guilty official.

### 2. Political Corruption: The Electoral Process and Reform:

- It is widely recognized that huge money required to fight elections is the **foundation of political corruption.** Due to the vast geographical area of a constituency, with more than two million voters in many cases, a candidate has to spend huge money to contest the elections.

## Student Notes:

- A good part of this money comes from business houses, who expect quid pro quo, in the form of opportunities to make black money and other favors. There are several other problems with our electoral system, such as flaws in the electoral rolls, lack of voters' education, booth capturing, and intimidation of voters.
- The most serious problem relates to persons with criminal background getting elected. In 2004, 24% of members of Parliament (MPs) had criminal cases pending against them. In 2009, that went up to 30%, in 2014 to 34%, and in 2019 as many as 43% of MPs had criminal cases pending against them.

### 3. The economic policy and the controlled economy:

- **License Permit Raj and The Rise of Corruption Monster:** India adopted a socialist model of economic development with the state occupying commanding heights since the time Five Year Plans were launched in 1950s. This model of economic development led to the government doing almost everything and placing vast discretionary powers in the hand of public officials in what has been called 'license permit Raj'.
- **Bureaucratic Red-Tapism and Abetting Corruption:** This has been highlighted suitably by Robert Merton as, "When the rule becomes more important than the game itself".
- While we have liberalized the economy, there has been practically no reform in archaic rules, procedures and systems of delivering public services.
- This has built in provision for delay and prevarication giving opportunity to officials to indulge in corruption and harass the hapless citizens.
- **Over-regulation combined with a weak state fosters corruption.** Cumbersome rules that make market entry difficult or impose costs on legitimate economic activity, if well-enforced, tend to hamper growth because they create high barriers for new projects, investments and entrepreneurial ventures, and this hurts economic activity.

This regulatory regime gave government extensive power of patronage, as also of delay and extortion. And they were fully exploited by the politicians on the pretext of raising party funds, the bureaucrats had their own share of the loot, and bribery became a pervasive phenomenon at all levels of the government.  
(S.S Gill, Former Civil Servant)

Departments such as police, municipal corporations, land records, sales tax, income tax, excise and customs are known to be corrupt and even routine work cannot be done without giving bribe-  
(OP Tiwari's analysis on Corruption in India)



**OVER-REGULATION COMBINED WITH A WEAK STATE FOSTERS CORRUPTION**

**"When the rule becomes more important than the game itself" Robert Merton**

**Case Study :**  
The manual of building by-laws of the Municipal Corporation of Delhi is a confused, intricate and excessively detailed document running into 350 pages. The complicated rules gives the engineers and architects an opportunity to harass citizens who wish to construct houses. S. S. Gill has given a graphic description of how in capital city of Delhi, at the centre of power, organisations such as DDA, MCD, electricity board, and Police have systematised corruption and where officials actively abet, land grabbing, unauthorised construction, theft of power, and illegal plying of transport vehicles

#### 4. Rise of the Elites and the post liberalization Corruption:

- The mega corruption thrives because of a **nexus between big business, politician and bureaucrat as highlighted by** Transparency International.
- Irrespective of coercion involved, the fact remains that **bribery fosters a culture of impunity and repeat corruption, undermines the functioning of public institutions** and fuels a perception that governments and bureaucracies are up for sale to the highest bidder.
- **Post-economic liberalization opportunity of corruption has increased many-fold due to policies of privatization, public-private Combating Corruption.**
- **As per Global Financial Integrity, Deregulation and trade liberalization are the main drivers of illicit flow of money abroad.** (out of the illicit flow of USD 462 billion from the country since 1948, 68 per cent occurred during the post-reform period of 1991–2008)

#### 5. MNC's and Lobbying:

Lobbying means **any activity of a group or individual with special interest designed to influence the legislative or regulatory actions of a public authority.**

Lobbying by MNCs in nexus with the incumbent government is employed as means to further vested interests to get the clearances of projects, diversions, bypassing of laws, land acquisition working in their favour.

##### Difference between Bribery and Lobbying:

Bribery is illegal because it prioritizes personal gains over public interest while lobbying without the use of extortive and corrupt means further erodes democratic ideals of participation.

**Case Study:** Kalikesh Narayan Singh Deo, a Lok Sabha MP from Orissa introduced a Private Members Bill to regulate lobbying activities. The Bill required lobbyists to register themselves and defined lobbying as communication with and payment to a public servant with the aim of influencing a legislation or securing an award of a contract. Such a definition however blurs the distinction between lobbying and bribery. It may even have the unintended consequence of legitimizing bribery prohibited under the Prevention of Corruption Act, 1988.

### 6.4. Ways to Tackle Corruption

1. **Ingrain ethical organizational culture** through regular ethical training modules and workshops:

**The 2<sup>nd</sup> Administrative Reforms Commission** states that **poor organizational culture has led to degradation of values and corruption in administration in India.** Also, if the work of the public servants is **not driven by values oriented to public service**, it may lose the trust, confidence and respect of the people who rely on it.

Thus, **an ethical organizational culture through regular ethical training modules, workshops** that encourages **effective employee participation and transmission of positive values must be employed** that leads to better motivation and higher levels of self-esteem for public servants.

**Ethical and spiritual training sessions** need to be organized in various training centers like **LBSNAA for ethical orientation of public officials to bring about an attitudinal change.** Use of **Yoga and meditation** for development of the inner self of the officials is required.

2. **Strict adherence of Code of Conduct and Code of Ethics:**

The code of conduct established for various officials needs to be backed by a Code of ethics which needs to be **imbibed internally** by the officials. **Code of conduct has its limitations but code of ethics will help in imbibing values like courtesy to public, honesty and dedication towards work, responsiveness towards needs of public.** This will ensure that there will be no need of coerce public officials to show ethical behaviour.

### 3. Power of the people: Enlightened Citizens as part of the system

Citizens also need to undergo attitudinal change and must refrain from bribing officials through 'speed money' to get their work done faster. They must be educated about the social costs of corruption.

Similar **ethical and spiritual training sessions** could be organized by the government to bring about this change. Lessons from the lives of great personalities like **Swami Vivekananda, Mahatma Gandhi, Pandit Jawaharlal Nehru** should be propagated among the masses so as to inspire them to live their lives according to the values followed by these legends.

### 4. Effective implementation of Institutional measures:

Strict and evolved implementation of the accountability mechanisms be it effective laws, mechanisms, procedures and tools in accordance with the changing dynamics of the requirements of the society is crucial.

Bring together formal and informal processes (this means working with the government as well as non-governmental groups) to change behavior and monitor progress will cut red-tapism.

### 5. Power of Technology:

The ambition of digital government is to transform the analogue, paper-based, legacy systems used to interact with citizens and make public services open, simple and citizen-centric. **Eg: E-auctions of Coal, telecom spectrum, digitization of services like passport, DBT, cashless transactions etc.**

Use of e-governance and ICT tools to build dynamic and continuous exchanges between key stakeholders: government, citizens, business, civil society groups, media, academia thus ensuring transparency and accountability in governance. For example: The Indian Government's Unique Identification **Number AADHAR initiative of gathering biometric and demographic data** of all Indian residents and linking it with social benefits like public distribution system entitlements is a good example to plug such leakages.

**The Bhoomi online management, and delivery of land records in Karnataka** need to be replicated across other services with rigor.

### 6. Act globally and locally:

Corruption is a global problem that requires global solutions. Keep citizens engaged on corruption at local, national, international and global levels – in line with the scale and scope of corruption. Make use of the architecture that has been developed and the platforms that exist for engagement. **Eg: UN Anti-corruption working group and WB anti-corruption initiatives**

**Some global success stories are:**

- The success story of **M-Pesa/M-Paisa in African countries and Afghanistan is widely known**. It not only made monetary transfers easier and more economical but also fought corruption.
- Chile's e-commerce public procurement system **ChileCompra** has **gained immense popularity around the world** by bringing transparency in public spending.

Lastly, the fight against corruption must **be turned into a mass movement like the way Mahatma Gandhi turned the struggle for independence into a mass movement**. We must instill a sense of patriotism among the officials and larger public that by **following an ethical path they are contributing towards nation building**. They must be given a sense of ownership regarding the country they are living in and they should be made stakeholders in this process.

This will ensure that **not only corruption will be eradicated from the country and an ethical perspective** towards life will be inculcated among the people. It will also mark the coming of the second independence and rebirth of our nation

Student Notes:

## 6.5. Conclusion

If corruption levels in India are reduced to those in Scandinavian countries, GDP would increase by 1.5% and investment would increase by 12%. If all overseas black money is brought back, India can pay back its debt. As many philosophers like **Rabbi Haim of Romshishok** have pointed out, the difference between heaven and hell lies in the fact whether the people in a given society have empathy for and trust on each other. '**Sanskritization of corruption**' will only push our society towards a living hell.

## 7. Other challenges associated with Probity in Governance

Probity in governance is an essential and vital requirement for an efficient and effective system of governance and for socio-economic development.

Some of the important issues/ challenges that hinders the path of ensuring probity in governance is as discussed below:

- **Lack of fair and effective implementation of laws:** The other requirements are effective laws, rules and regulations governing every aspect of public life and, more important, an effective and fair implementation of those laws, etc. Indeed, a proper, fair and effective enforcement of law is a facet of discipline.
- **Colonial legacy:** Due to *ingrained culture of indiscipline resulting out of colonial legacy of bureaucracy/executive functioning*, that those in authority can exercise power in an unchallenged way. This **culture of impunity** amounts to a culture of indiscipline and untruth; morality, both public and private, is at a premium. Discipline implies inter alia public and private morality and a sense of honesty.
- **Historical and social asymmetries of powers in society:** Nearly 90% of the people work in the unorganized sector. Two thirds of the remaining work in the organized sector having job security and regular monthly wages and are employees of the state either directly or indirectly. Such asymmetry of power reduces societal pressure to conform to ethical behaviour.
- **Erosion of Values and Institutions:** Gross perversion of the Constitution and democratic institutions amounting to willful violation of the oath of office and this is so deeply entrenched in the system that most people regard corruption as inevitable and any effort to fight it as futile. This cynicism is spreading so fast that it bodes ill for our democratic system itself.

Unfortunately for India, discipline is disappearing fast from public life and without discipline, as the Scandinavian economist- sociologist, Gunnar Myrdal, has pointed out, no real progress is possible. While in the West a man who rises to positions of higher authority develops greater respect for laws, the opposite is true in our country.

### Surveillance Society

Surveillance involves paying close and sustained attention to another person. The term encompasses not only visual observation but also the scrutiny of all behaviour, speech, and actions. Prominent examples of surveillance include surveillance cameras, wiretaps, GPS tracking, and Internet surveillance.

When this activity includes an entire or a substantial fraction of a population, it is said that there is a normalisation of a surveillance society. The recent decision of the Government of Delhi to install CCTV cameras in different parts of the capital has generated a debate on sanctity and normalisation of a surveillance society.

### Ethical Issues in Surveillance

- **What are the areas and events when people do not mind being surveyed?**
  - We do not have issues with the security checks at airports and railway stations. In fact, we

demand more and more surveillance. o Whereas on the other hand, even a small intrusion in our phone is resisted forcefully.

- **What powers of surveillance states should have over their citizens?**
  - o Can the state have a universal access and unlimited powers to survey a particular person, if it is convinced of its efficacy? Or there has to be a set of limitations on its use.
- **What powers of surveillance private companies should have over clients?**
  - o The companies in the guise of service delivery and research may be using misusing the data of citizens. E.g. as revealed in the recent case of Facebook where the users' personal data and activity was leaked to other agencies.
- **Which technologies should and shouldn't be used?**
  - o Today there are number of advanced technologies available which can intrude into the private space of citizens, such as phone tapping, spyglasses etc. There needs to be a rationing of the technologies available to the government agencies, which should be mandated by law.

## 8. Previous Years UPSC GS Mains Questions

### 2013

- The good of an individual is contained in the good of all. What do you understand by this statement? How can this principle be implemented in public life?

### 2014

- What does 'accountability' mean in the context of public service? What measures can be adopted to ensure individual and collective accountability of public servants?
- What do you understand by 'probity' in public life? What are the difficulties in practicing it in the present times? How can these difficulties be overcome?
- It is often said that poverty leads to corruption. However, there is no dearth of instances where affluent and powerful people indulge in corruption in a big way. What are the basic causes of corruption among people? Support your answer with examples.

### 2016

- "Corruption causes misuse of government treasury, administrative inefficiency and obstruction in the path of national development." Discuss Kautilya's Views.

### 2018

- What is meant by public interest? What are the principles and procedures to be followed by the civil servants in public interest?

### 2019

- What do you understand by probity in governance? Based on your understanding of the term, suggest measures for ensuring probity in government.
- What are the basic principles of public life? Illustrate any three of these with suitable examples.

## 9. Previous Years UPSC Mains Questions: Case Studies

1. You are the head of the Human Resources department of an organisation. One day one of the workers died on duty. His family was demanding compensation. However, the company denied compensation because it was revealed in investigation that he was drunk at the time of the accident. The workers of the company went to strike demanding compensation for the family of the deceased. The Chairman of the management board has asked for your recommendation.  
What recommendation would you provide the management?  
Discuss the merits and demerits of each of the recommendations
2. In a modern democratic polity, there is a concept of political executive and permanent executive. Elected people's representatives form the political executive and bureaucracy forms the permanent executive. Ministers frame policy decisions and bureaucrats execute these. In the initial decades after independence, relationship between the permanent executives and the political executives were characterized by mutual understanding,

respect, and cooperation, without encroaching upon each other's domain. However, in the subsequent decades the situation has changed. There are instances of the political executive insisting upon the permanent executives to follow its agenda. Respect for an appreciation of an upright bureaucrats has declined. There is an increasing tendency among the political executive to get involved in routine administrative matters such as transfers, posting etc. Under this scenario, there is a definitive trend towards 'politicization of bureaucracy'. The raising materialism and acquisitiveness in social life has also adversely impacted upon the ethical values of both the permanent executive and the political executive.

What are the consequences of this 'politicization of bureaucracy'? Discuss

## 10. Previous Years Vision IAS GS Mains Questions

### 1. *Probity is an essential condition of good governance. Explain.*

#### **Approach:**

- Define Probity.
- Provide arguments to bring out the significance of probity for good governance.
- Conclude answer.

#### **Answer:**

Probity is the quality of adhering to strong moral principles such as honesty and integrity as well as uprightness, good character and decency. It is the act of following the highest principles and ideals rather than merely avoiding corrupt or dishonest conduct. It balances service to the community against the self-interest of individuals.

#### **Probity and Good Governance**

Governance is the act and manner of managing public office. A working paper of the National Commission to Review the Working of the Constitution noted that probity in governance is an essential and vital requirement for an efficient and effective system of governance and for socio-economic development. While the constitution and laws provide legal framework for governance, probity is part of the ethical framework that determine the nature of governance and the relationship between the government and the governed.

#### **Probity is essential for good governance as it:**

- **Enhances the credibility of the state apparatus:** Since probity is concerned with procedures, processes and systems rather than outcomes, it ensures procedural integrity of the institutions. Thus, efficient and effective system of governance leads to socio-economic development.
- **Ensures institutional integrity:** Probity maintains ethicality and legality of institutions regardless of the individuals manning them. It involves adopting an ethical and transparent approach, allowing the process to withstand scrutiny.
- **Minimizes individual discretions:** Strict adherence to the highest moral standards allows institutions as well as the individuals to deal with everyone impartially.
- **Curbs corrupt behaviour:** Aspects of probity such as - accountability and transparency - prevents abuse of public resources or position in public life for private gain.
- **Upholds public confidence:** Probity in governance preserves public confidence in the government and governmental processes. It eases the way authority is exercised by the public officials.

Creation of a strong moral framework in governance is essential for good governance. However, procedural probity should not be at the cost of humane aspect of the

administration. To ensure probity in public life, a robust culture of integrity and moral standards needs to be cultivated.

Student Notes:

**2. What do you understand by the terms transparency and accountability in administration? Bring out the relationship between the two.**

**Approach:**

- Define and explain both transparency and accountability.
- Explain the relationship between transparency and accountability.
- Conclude appropriately.

**Answer:**

**Transparency** in administration means the availability of information in the public domain as permissible under the law. It aims to bring about clarity in the functioning of government institutions. It brings out clear communication on the process of decision-making and the reasons taken without distorting facts i.e. sanctity of procedure should be reflected in decision-making. For example, e-auction of any public procurement project where all the details and parameters are made available in public domain.

**Accountability** in administration means the answerability of the decision makers for their decisions and actions to the designated superior authority. It means they must submit themselves to the scrutiny necessary to ensure this. Further, it also includes the enforcement of the sanctions, if actions or justifications are judged unsatisfactory. For e.g. the government is accountable to the Parliament for its various actions and parliamentarians are accountable to their constituencies for their performance.

**Relationship between transparency and accountability:** Transparency and accountability share a **complementary relationship**. On one hand, accountability defines the type of transparency needed and on the other hand, the quality of information decides the type of accountability possible. It can be seen as follows:

- **Effect of transparency on accountability:** If there is transparency in the working of an authority, it will aid people to uphold accountability. For e.g the disclosure of information under Right to Information Act, aids the citizens to uphold the accountability of public officials.
- **Effect of accountability on transparency:** If there is an accountability mechanism in place, it will force the public authority to maintain transparency in the decision-making. For e.g. the audit and scrutiny conducted by the Comptroller and Auditor General of India makes way for the departments and authorities to maintain transparency in their record keeping.

To ensure a positive influence, transparency and accountability systems should be designed to support each other. Both the concepts reinforce each other and contribute towards good governance, rule of law and improving the citizen's trust in the government.

**3. Examine the role of media in promoting probity in governance.**

**Approach:**

- Define the term 'probity in governance'.
- Assess the role of the media in ensuring probity in governance.
- Mention a few issues with the media and suggest a way forward.

**Answer:**

Student Notes:

Probity is the quality of having strong moral principles and strictly following them. It includes principles such as - honesty, integrity, fairness, uprightness, transparency and incorruptibility. Probity in Governance is concerned with the propriety and character of various organs of the government as to whether these uphold the procedural uprightness, regardless of the individuals manning these institutions. An important requisite for ensuring probity in governance is absence of corruption. Media plays following role in ensuring it:

- **Transparency:** Media is essential to safeguarding transparency of democratic processes. This is often called its '**watchdog**' role. For example, media presence at voting and counting centres is critical to fair and transparent elections.
- **Corruption: Investigative reporting** by media or reporting of instances of corruption may prompt public bodies to launch formal investigation into allegations of corruption. For example, investigations into alleged mishandling of funds during CWG games.
- **Institutional Integrity:** Media disseminate the findings of public anti-corruption bodies, thus reinforcing the legitimacy of these bodies as well as insulating them from undue pressures from vested interests. For example, bringing politicians to account for violations of code of conduct during elections.
- **Accountability:** Sometimes, mere inquiries by journalists, in the absence of a story's publication or of conclusive proof of wrongdoing, can lead to a tangible response from authorities eager to protect their reputations and those of the institutions they represent.
- **Participative democracy:** It brings public concerns and voices into the open and works to strengthen government responsiveness to various social problems including corruption.
- **Feedback mechanism:** It can also expose flaws in policy, laws or regulation that foster a climate ripe for corruption, thus creating pressure for reform.
- However, the role of media in ensuring probity is affected by several challenges such as monopolization of media by powerful interests, lack of protection of journalists who investigate corruption, inadequate press freedom, less media accountability whereby profits take precedence over integrity, misuse of self-regulation provisions etc.

For the media to effectively help in ensuring probity in governance, it needs to be independent from governmental, political or economic control. As well as, media should be pluralistic with the existence of the greatest possible number of newspapers, periodicals and broadcasting stations. Such a media will reflect the widest possible range of opinions within a community and play its role of the fourth pillar of democracy in true form.

**4. Explain the importance of probity in governance. What measures have been undertaken for ensuring probity in governance in India?**

**Approach:**

- Briefly explain the term probity.
- Discuss the importance of probity in governance.
- Mention the measures taken by government to ensure probity in governance.

**Answer:**

Probity is the quality of having strong moral principles and strictly following them. It includes principles such as - honesty, integrity, uprightness, transparency and

incorruptibility. Probity is confirmed integrity. It is usually regarded as being incorruptible.

Probity in Governance is concerned with the propriety and character of various organs of the government as to whether these uphold the procedural uprightness, *regardless of* the individuals manning these institutions. It involves adopting an ethical and transparent approach, allowing the process to withstand scrutiny. The objective of having probity is that it ensures **procedural integrity**. It is concerned with processes, procedures, and systems. It includes principles such as honesty, integrity, uprightness, transparency and incorruptibility.

According to NCRCW, absence of corruption is a prerequisite for ensuring probity in governance. The other requirements are effective laws, rules and regulations to govern every aspect of public life and fair implementation of those laws. Probity in governance ensures that the **system remains transparent, accountable, responsive and open to scrutiny**.

#### Importance of probity in governance:

- It helps in building legitimacy of the state and trust in its institutions. It instills a belief that actions of the state are for the welfare of the beneficiaries.
- It leads to prudent and ethical outcomes and building of trust over time.
- It leads to avoidance of sub-optimal outcomes, corruption and poor perception.
- It provides for an objective and independent view on the fairness of the process.
- It helps in checking abuse and misuse of power by various organs of the government.
- It is vital for the efficient and effective system of governance and for socio-economic development.

#### Measures taken by Government of India to ensure probity in governance are:

- **Prevention of Corruption Act, 1988:** The Act defines a public servant and crimes which come within corruption/bribery.
  - Amendments in 2018 included the act of offering gifts/bribes to the public servants as punishable offence.
  - It also amended the act to protect honest bureaucrats through bringing more clarity on criminal misconduct and by making the prior sanction by competent authority necessary before starting inquiry investigation against them.
- **Right to Information Act, 2005:** It helps the cause of probity in governance through citizen activism. The 2<sup>nd</sup> ARC considers RTI as the master key to good governance.
- **Whistle-blowers Protection Act, 2014:** The act provides a mechanism for receiving and inquiring into public interests disclosure against act of corruption, misuse of power/discretion or criminal offences by public servants.
- **Prohibition of Benami Property Transaction Act, 1988** and amendments in 2016: Now, Benami transactions have been clearly defined, and confiscation of such properties without payment of compensation has been established as law.
- **Central Vigilance Commission:** It advises government in matters related to maintenance of integrity in administration.
- **Lokpal and Lokayukta Act, 2013:** It envisages an institution of ombudsman which enquires into allegations of corruption against certain public functionaries and matters related to them.

There must be a legislation to check misfeasance in public offices, confiscation of illegally acquired assets by public servants, and a code of ethics for government. A strong criminal judicial system is also required to ensure probity. As a society, one must evolve to a level where probity becomes a way of life and honesty becomes a routine

Student Notes:

expectation. The value of integrity, impartiality and merit must become the guiding principle to be followed by bureaucrats.

Student Notes:

**5. Transparency in government organisations is an essential pre-condition for good governance. Elucidate.**

**Approach:**

- Briefly define transparency and its role in a democracy.
- State the tools of transparency in India and discuss how they lead to objective decision-making, increased efficiency etc.
- Mention the current issues regarding transparency in India.
- Conclude suitably.

**Answer:**

Transparency refers to the availability of information to the general public and clarity about functioning of governmental institutions. Governance is the manner in which decisions are taken and implemented, particularly by the lawful authority. 'Good' signifies that governance system adheres to certain well-accepted principles which make the system of governance ethical, just and effective. Some of these principles include adherence to rule of law, participation, accountability, transparency, equity, efficiency & effectiveness and inclusivity.

**Transparency as a tool for good-governance**

- In a functional democracy, the government is obliged to keep its citizens informed. This helps citizens to hold their public officials accountable, which is key to just and good governance.
- As per the **2<sup>nd</sup> Administrative Reforms Commission**, transparency in a democracy allows bi-directional information flow, which allows citizens to participate in governance.
- It empowers the citizens to demand and get information about public policies and programmes, keep themselves informed about their rights as well as duties. Thus, it promotes efficiency, effectiveness and responsiveness in public administration.

**Tools for transparency**

- In India, the Right to Information Act, 2005 (RTI Act), Lokpal and Lokayuktas Act, 2013, Citizen's Charter, social audit, digitization of records, etc. are tools of transparency and accountability.
- When the process of decision-making is transparent, decisions are taken objectively in a fair manner. This ensures equality before law, just allocation of resources, cutting down on discretionary and arbitrary decisions etc.
- It not only leads to increased transparency but also reduction in corruption. For example, **e-auctions of coal blocks** by Coal India in 2018-19 made the auction process more transparent and fetched 44% higher prices.

Despite these measures, India has not fared well on the global parameters related to transparency in governance.

- According to Global Corruption Index, 2018 developed by **Transparency International** corruption is all pervasive Indian administration. The index ranks India 78 out of 180 countries.
- Despite its positive impacts, there are several issues in the implementation of the RTI Act such as low level of awareness about the act especially among women,

rural population, SC/ST/OBCs etc., procedural constraints in filing RTI applications, poor quality of information, increased attacks on RTI activists etc.

- Institutions such as the judiciary, political parties etc. remain outside the purview of the RTI Act, hence, it is difficult to monitor their functioning.
- Apathetic government officials who are secretive in their workings. This undermines both transparency and accountability in public functioning.

Measures should be taken to improve transparency in government organizations, accountability of public servants and involve more citizens in the governance process. The government should proactively and voluntarily make information public as per Section 4 of RTI act to promote transparency in governance. It will ensure just and good governance.

**6. *Bring out the significance of probity in public life. What are the requisites for ensuring probity in governance? Pointing out the key concerns in India in this context, suggest certain remedial measures.***

**Approach:**

- Define probity, with special focus on your own understanding.
- List what constitutes probity in governance and the relevant issues plaguing the country in this context.
- Finally, provide a multipronged approach to remedy the issues.

**Answer:**

Probity can be defined as strict adherence to your moral principles based on undeviating honesty and a quality of being incorruptible.

According to the Nolan Principles of Public Life, maintaining a high standard of probity in public life means following the principles of selflessness, integrity, objectivity, accountability, openness, honesty and leadership.

In the modern world, various areas of public life are plagued by corruption, dishonesty and the lack of integrity.

Without these principles discipline cannot be maintained, which according to Gunnar Myrdal is necessary for progress to be made. Corruption has an adverse impact on all aspects of our lives, to tackle which probity in public life is a must.

To ensure probity in governance, absence of corruption is a must along with effective institutions to oversee and enforce laws, rules and regulations which govern various aspects of public life.

In this context the key concerns in India with regards to ensuring probity in governance are:

- Despite laws being present to combat corruption, there is lack of will to enforce them in letter and spirit.
- Deficiency in rule of law as there is asymmetry of power and information. This opens channels for exploitation of dependents on state by those who form part of the executive arm of the state.
- Acceptance of corruption as a necessary evil in large sections of the society.
- A culture of non-transparency in government which discourages attainment of outcomes from outlays.

In order to remedy this situation, two-pronged approach:

From legal-administrative perspective, the following steps can be taken:

- Enacting a comprehensive law to check mala fide actions of public servants.
- Providing a law for confiscation of illegally acquired assets of public servants.
- Strengthening the Whistle-blower Act to protect whistle-blowers.
- Implementation of RTI Act in letter and spirit.
- Strengthening the Institution of Lokpal
- Strengthening the criminal judicial system i.e. reforms in all aspects which include police/investigating agency, the prosecuting agency, the advocates, witnesses and finally the judiciary.
- Undertaking measures like social audit to promote social accountability

From a **general perspective**, we as a society need to impart value education at home and school. As the children learn a lot from the elders, we need to be better role models and citizens to ensure that the younger generation grow up to adopt probity in public life.

7. ***While discretion is necessary for effective discharge of duties, it is also a major factor responsible for corruption in administration at all levels. Comment. In this context, suggest some ways in which smooth execution of responsibilities can be ascertained while minimizing corruption.***

**Approach:**

- First explain the meaning of discretion in administration.
- Then explain why discretion is required for effective discharge of duties.
- Explain how discretion could lead to corruption.
- Finally explain measures to minimise corruption while ensuring smooth execution of responsibility.

**Answer:**

Discretion means the power to decide or act according to one's judgment. Indian law grants some discretionary powers to administrative authorities. Such exercise is not to be arbitrary, vague and fanciful, but legal and regular.

Discretionary powers bestowed on the administrative authorities are of a vast range. Their power serve the purpose of simple ministerial tasks like maintenance of birth and death register as well as those which seriously affect the rights of an individual, e.g. acquisition of property, regulation of trade, industry or business, inquiry, seizure, confiscation and destruction of property, detention of a person on subjective satisfaction of an executive authority and many more. The list of their functions is exhaustive in nature.

The problem of administrative discretion is complex. There has been a constant conflict between the claims of the administration to an absolute discretion and the claims of subjects to a reasonable exercise of it. Now a question is raised that how it can be control.

It can be control with two types, first judicial and other one is non-judicial. There are so many ways to control it.

**Judicial Control**

Judiciary must concentrate on two points. Firstly, it should direct the legislative that they do not confer wide and unlimited discretion to executive. And other is that every discretionary act must come under the power of judicial review. Judiciary can thus play a good role to control abuse of discretionary powers.

Supreme Court of India in its various judgements has held that:

- The administrative discretion should be used according to rules of reason and justice and not according to private opinion, according to law and not humor.
- It is not to be arbitrary, vague and fanciful but legal and regular.
- It must be exercised within limit to which an honest man competent to the discharge of his office ought to confine himself.

### Non-judicial control

We must incorporate such rules which will be mandatory for the authority who will exercise discretion to adhere to. If legislative fails to maintain such norms in that statute to control discretion, those norms must be incorporated by administration with the help of delegated legislation. Mechanisms like code of conduct and code of ethics ensure that self-discipline is observed while exercising discretion. Various institutions like CVC, CBI, Lokpal etc. ensure that abuse of discretion is caught and punished which acts as deterrent in the future.

Hence, through the above mechanism, abuse of discretion can be curbed while at the same time flexibility is maintained while taking administrative decisions.

### 8. *Open government is an even more comprehensive concept than transparency and freedom of information. Elaborate.*

#### Approach:

First, explain the concept of transparency. Then discuss the essential elements of open government. The last part of the answer should focus on how open government is even more comprehensive than transparency.

#### Answer:

Transparency is an essential feature of open government. Transparency means that information about the activities of public bodies is created and is available to the public, with limited exceptions, in a timely manner, in open data formats and without restrictions on reuse. Transparency mechanisms must include the disclosure of information in response to requests from the public and proactive publication by public bodies. Key information about private bodies should be available either directly or via public bodies.

**But open government has two other essential elements.** They are **participation** and **accountability**. Participation means that the public can engage directly in the consideration of policy options and decision making, and can contribute ideas and evidence that lead to policies, laws, and decisions which best serve society and broad democratic interests. Governments should actively seek to mobilize citizens to engage in public debate. Mechanisms should exist which permit the public to participate at their own initiative and to trigger policy debates on matters of concern.

An accountable government is one which makes itself answerable to the public, upholding standards of behavior and integrity, and both explaining and taking responsibility for its decisions and actions. Accountability requires that rules, regulations and mechanisms be in place governing the exercise of public power and the spending of public funds. Specific and detailed measures are required to reduce corruption risks, to identify and prevent potential conflicts of interest, and to guard against illicit enrichment. There should be protections for those who expose wrongdoing.

Thus in an open government openness through transparency becomes a means to greater civic participation in an enabled environment, where there is effective free flow of information both ways to see through the working of government; and to verify

whether or not public servants are meeting their obligation to expectations of citizen; All four component of accountability i.e. answerability, sanction, redress and system improvement ensure responsiveness of government and finally civic engagements in the process of governance, in the form of people's planning, participatory budgeting, corruption watch by citizen audit etc. makes it (open government) the new democratic culture of an open society toward which every liberal democracy is moving.

**9. *Ethics is the first line of defense against corruption while law enforcement is remedial and reactive. Examine the statement with suitable examples.***

**Approach:**

- Describe the importance of ethics and laws in preventing corruption.
- Elaborate the statement while taking a stand on it and justify with examples.

**Answer:**

Ethics refer to well-founded standards of right and wrong that prescribe what humans ought to do, usually in terms of rights, obligations, fairness or specific virtues. Laws are usually based on an ethical framework and aim to bring social order while controlling the immoral or unethical behaviour of individuals in the society.

Laws act as an external set of standards and rules imposed on an individual by the government. An individual disobeying the law is liable to face the prescribed penalties and punishments and thus deter non-compliance. Laws have societal sanctions and approvals and thus have an important role in smooth functioning of the society. The fact that laws are grossly violated often by the wealthy and the powerful suggest a fundamental lack of ethics in the society.

Ethics act as a moral compass in guiding an individual even when the law is silent on the action which ought to be taken. A typical example is the role of an administrator where discretion has to be exercised. Discretion provides ample opportunities for corruption and a person with weak ethics may easily fall prey to money-making even at the cost of society's wellbeing. Therefore, ethics is the first line of defense, even if there is no law on the subject.

As another example, a government may not frame laws to dictate whether a company should make its products more environmentally safe or easier to recycle, but doing so may be the ethical thing to do. But a responsible and ethically upright organisation will consider these measures even in the absence of laws mandating the same.

Hence, it is ethics that act as a strong defence mechanism for all societies to prevent corruption whereas laws are reactive and only a remedy. A permanent solution for wiping corruption from its roots shall only come with the internalization and not from the external forces. External mechanisms remain effective till they tend to have some reward or punishments while inherited value system shall accompany lifelong.

## **11. Previous Years Vision IAS GS Mains Questions: Case Studies**

- 1. *Sandhya recently completed her B. Com. and was extremely excited to be hired for her dream job working for a Public Sector Bank. During her initial days, she began to notice that funds from grants were being mismanaged and misallocated. Some of her co-workers were also using bank property materials, including cars, for personal business.***

***However, Sandhya was most shocked by the hiring practices she witnessed at the office. Applicants to the jobs were supposed to take exams that were invigilated by bank employees. Sandhya began to notice that the invigilators were allowing***

*applicants to cheat on the tests because the applicants had already been chosen for the job. Many of these pre-chosen applicants were friends of current employees. Sandhya reported what she witnessed to Mahesh, the Branch Assistant Manager, who was second-in-command to the Branch Manager. Mahesh told her, "You heard nothing, you saw nothing, and you say nothing." Sandhya was absolutely shocked; not only by the corruption, but that it was deliberately being swept under the rug. Sandhya I was in a dilemma. She really needed the job to pay off loans, and she loved the actual content of the work she was doing. She was also concerned that it would look bad to leave her first job out in less than a year, as well as tarnish future chances to work in a government organization. On the other hand, she felt extremely uncomfortable in her work environment due to the culture of corruption.*

**(a) What are the options available to Sandhya?**

**(b) Evaluate each of these options and choose the option you would adopt, giving reasons.**

**Answer:**

Sandhya is caught in a typical dilemma where she doesn't want to leave the job but cannot see such a work environment embroiled in corruption too. One should point out how overlooking this matter would mean a lot of loss to public exchequer and inefficiency in the working of the bank. As Sandhya was unsuccessful in her attempt to bring out the matter to Mahesh, her approaching the Branch Manager to report the issue seems the most appropriate option in such a situation.

Some of the options available to Sandhya are:

- She can ignore the matter and proceed in her usual way as this does not impact her directly and any action taken would adversely impact her personally
- She should report the matter to Branch manager and bring to light how she was told to keep the matter under wraps.
- She can resign from the job as taking either of the first steps would not leave her satisfied and in a comfortable situation
- Become a whistleblower. She can bring the matter to the notice of someone in the vigilance department overseeing the functioning of the bank as it is public money after all that is being squandered through such activities.

Option a) As per the rights/duty, fairness and common based approach it is Sandhya's duty to uphold the integrity of the banking system. The money that is being squandered away is public money and therefore any such activity is hurting the public interest in the long term. Additionally, the faulty hiring practices would greatly impact the working of the bank and bring down its efficiency and effectiveness further hurting the interests of the public and the society at large. It would be unethical to ignore the matter for the dire consequences it might have on the organization in future.

Even though ignoring the matter would save Sandhya from the trouble of getting into any controversy and help save her job but as discussed above it would not be healthy in the long run for either the organization or even Sandhya.

Option b) because of the following reasons: Virtue approach: integrity and honor are two virtues that one should embody and help promote. One must ask myself what is the highest state of character one can aspire to? One obviously recognizes the virtue of honesty and merit. Likewise, one should push himself/herself to think about the values one should live up to, those being integrity and promotion of merit in this particular case. Therefore, the most appropriate option seems to reporting the matter to the branch manager.

Option c) Resigning from the job does not seem a feasible option considering the fact that Sandhya has to pay off her loan and any such action would not show well on her

CV and have an adverse impact on her career. It would save Sandhya the trouble of getting into any kind of problem with regards to the conscience but it would put her in a great trouble as she would be out of job and would put her and her family's livelihood at stake. Moreover, such an action would mean running away from the situation and punishing oneself for the fault of others.

Option d) Even option D seems like a possible option but whistleblowing is a double edged sword and should only be explored once all the possible options have been exploited. It may be possible that if the matter is brought to branch manager's attention, he/she may take a strict action against those embroiled in such activities. Proceeding to blow whistle on the matter without exploring this option may be taking an action in haste and puts the reputation of the bank in a danger.

2. ***Big firms often undertake sub-contracting to complete large infrastructure projects in a timely manner. You recently joined one such firm as a manager responsible for awarding these contracts. Looking at the past records, you find that all contracts for the past few years have been awarded to a particular firm, X. Your superior has asked you to award an upcoming contract to the same firm. Although, not binding, company procedure maintains that sub-contracting work should be offered after competitive bids. This is to ensure that the firm most suitable for the project in terms of operations and finance gets the contract. When you discuss this with your superior, he insists that hiring of the firm X has been done as per legal norms of the company and no official rule has been violated. You decide to contact the owner of the firm X. After doing so, you realize that he is the nephew of your superior, who is also a shareholder in the company.***

***(a) State the ethical issues involved in the case.***

***(b) Does this form of transaction between two private parties constitute a conflict of interest? Justify.***

***(c) Evaluate the possible ways of awarding contracts in such a situation with their merits and demerits. Also state which method would be more suitable in each.***

**Approach:**

- State some of the ethical issues in the case.
- Evaluate if a situation of interest is generated due to the relationship of your superior with the owner of firm X and the knowledge of the superior being a shareholder in the company.
- Suggest ways of awarding contracts in the situation, along with their merits and demerits.
- State your eventual course of action in this scenario.

**Answer:**

**Basic Facts:** In this situation, the company where I work is repeatedly sub-contracting work to another private firm, X, without holding competitive bids, which should be carried out according to company procedures. The case highlights the issue of conflict of interest, as the owner of firm X is the nephew of my superior and is also a shareholder of the firm.

**Stakeholders:**

- Myself, as I am the manager of the company, with the responsibility of awarding contracts.
- My superior who is a shareholder of firm X as well as an employee of the company where I work.
- Owner of firm X as the decisions made by our company affect his business interests.

- Owners of other firms who vie for company contracts as they are not getting a fair chance in the bidding process.
- Shareholders of the company who can suffer due to poor decisions.
- Consumers who will be affected by substandard infrastructure.

(a) Some of the ethical issues involved in this case are:

- **Nepotism and compromise on professional integrity:** Subcontracts are being granted on the basis of personal relations, without competitive bids. Due to this, there is no guarantee that the firm most suitable in terms of efficiency and financial aspects gets the contracts.
- **Lack of objectivity in decision-making:** The interests of my superior and his nephew are guiding the decision-making process of the company. There is inherent subjective bias in this scenario.
- **Legal vs Ethical:** It may be legally correct but not ethical as no official rule of the company has been violated, but, it goes against established company procedure.

(b) Transaction between two private parties generates a conflict of interest since the owner of firm X is the nephew of my superior, who has repeatedly directed that the contract be awarded to firm X. Since my superior is also a shareholder in firm X, he is invariably taking business decisions on the basis of personal relations and perceived financial opportunities. He would not be affected much due to poor performance of the company as his family is benefitting, but other shareholders and employees will be affected. Thus, personal interests are directly in conflict with interest of shareholders. Also, they are in conflict with the interest of consumers who expect quality infrastructure.

(c) Possible ways of awarding contracts in such a situation are:

- **Granting the contract to firm X as suggested by my superior.**
- **Merits:** I will remain in good terms with him, may get quick promotion and increment.
- **Demerits:** I will be unethical in my work conduct as a manager. I will also obstruct competitive bidding and play a role in eschewing probable offers that could save the company more money and get the work done more efficiently. I would be compromising my integrity and commitment to interest of shareholders, colleagues and consumers.
- **Refuting my superior and revealing his interest in firm X, while simultaneously organizing the competitive bid.**
- **Merits:** I will follow company procedure and my professional integrity will be upheld.
- **Demerits:** I will go directly against the order of my superior, who can hinder my chances of promotion in the company. I will also violate the established work hierarchy in the company.
- **The most suitable action** will be to talk to my superior about the generated conflict of interest and argue in favour of holding competitive bids. However, if he still refuses to acknowledge the gravity of the situation, I will approach the company head/board regarding the issue. This will ensure that other managers and subordinates are not in a similar position in the future. Meanwhile, I will also accept competitive bid offers and award the contract to the firm most suitable for the job. It will ensure my professional integrity and uphold the interest of all stakeholders.

3. *You are representing India in an international bidding for oil exploration in a country. Other, richer countries are also bidding for the project. You are sure that your bid of exploration is better as well as cheaper than that of others, and that you will definitely win the bid. A day before the auction, you come to know that other countries are employing every means, including bribing the authorities for being successful. Some of the officials of the home country have also contacted you and made some demands in exchange for assurance of India winning the bid. You are aware of the criticality of this bid in terms of domestic economic and strategic implications.*
- Based on above information, answer the following questions.*
- (a) Specify the ethical dilemma(s) that you face in this situation.*
- (b) Do ethical concerns really matter in international transactions or are they secondary to domestic interests?*
- (c) What will be your course of action in the above situation? Justify with merits and demerits.*

**Approach:**

- Identify the ethical dilemmas that you face.
- Highlight the importance of ethical concerns in international transactions vis a vis domestic interests.
- Then mention the course of action that you would follow. Justify it by taking into account the merits and demerits of the decision.

**Answer:**

- a) The situation in this case study presents the following ethical dilemma:

The dilemma is whether to pay the bribe vs being upright and avoid the temptation to pay.

The former action may help India win the bid, but it will be an unethical course of action and may spoil the image of the country in the long run when the truth comes out in the public. It will also have adverse consequences for India's relations with the countries involved in bidding process. Moreover, this is inimical to a healthy competition, level playing field and innovation. This action will also set a wrong example to others. The action is not only unethical but also illegal as regards to Indian laws. It may not bring in me a sense of accomplishment or content.

The latter course of action may lead to a possible defeat in the bidding process, setback for my career and economic and strategic implications for the country. But it is the right path to follow.

b) Advocates of national interest in international relations argue that national interests are paramount. As Henry Kissinger has said- "there are no permanent ally or permanent enemies, only interests are permanent". These arguments are based on the fact that the government of a country primarily works on the behalf of its citizens and thus it is bound to uphold their interests. The political party in power has to face general elections regularly and its report card of performance evaluates not only domestic but international actions as well. Hence, national interest alone should be paramount in international relations.

However, these arguments suffer from certain inconsistencies. If the national interest alone is taken into account then wrong doings like colonization, regime change, arm twisting of weaker nations etc. will be justified. Further, there exists a wide inequality internationally and if strong nations justify their actions solely based on the national interests than this gap will further widen. Moreover, the global commons will not survive and sustainable development will remain a distant dream.

Thus, fairness, justice, apathy, sustainable development of whole world, equity etc. are ethical principles which are as important as national interests and really matter in international relations.

c) In such situation, I will pursue the following **course of action**:

- a. Verifying, at my own level, the correctness of information related to bribery activities in the auctioning process.
- b. Informing my seniors, seeking their advice as they might have faced similar situation earlier.
- c. Approach the head of the authorities handling the whole process of auction and inform them about inconsistencies which has come to notice and demand a fair and transparent bidding process.
- d. If grievances are not addressed at that level then, after taking my seniors into confidence, we can approach other higher authorities of home country like judiciary for intervention.

I will also demand that the officials involved in bribe-seeking activities must be punished which will deter such malpractices in future. Those nations who are involved in unfair practices must also be punished (by way of fines, blacklisting them or cancelling their bids).

#### **Justification of such course of action**

In international transactions, sometimes unethical actions like bribery are also sought to be justified in the name of national interest. However, on a closer look, such actions are clearly against the national interests in reality. The revelation about involvement in bribery would jeopardize the international relations of future generations of our country.

Further, a single contract cannot be so important to our country that we sacrifice our moral standards and higher values maintained for so long. Moreover, corruption can never be the true foundation of prosperity. The gains obtained from it corrupt the whole society.

By following the stated course of action, I will display faith in the governance of home country, uphold our moral values and there will be higher chances of fair bidding process. As India's bid is better and cheaper, it will ensure India's success. It will generate the good will for our nation among the people of that country; set a right example against corruption in international transaction. Overall, it will be a right step towards the righteousness which we expect in international relations.

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